



PO Box 1999
Kingsport, TN 37662
Phone: 423.230.3399

TITLE REQUEST

TO: Hazelwood & Associates, LLC
hazelwoodassociatesllc@gmail.com
FROM: Janice Wagner / Katie Phillips
DATE: 10/28/2025

Please conduct a

_____ 30 year search

___X___ 40 year search

on property located at 224 Oak Lane Road, Dryden, VA 24243

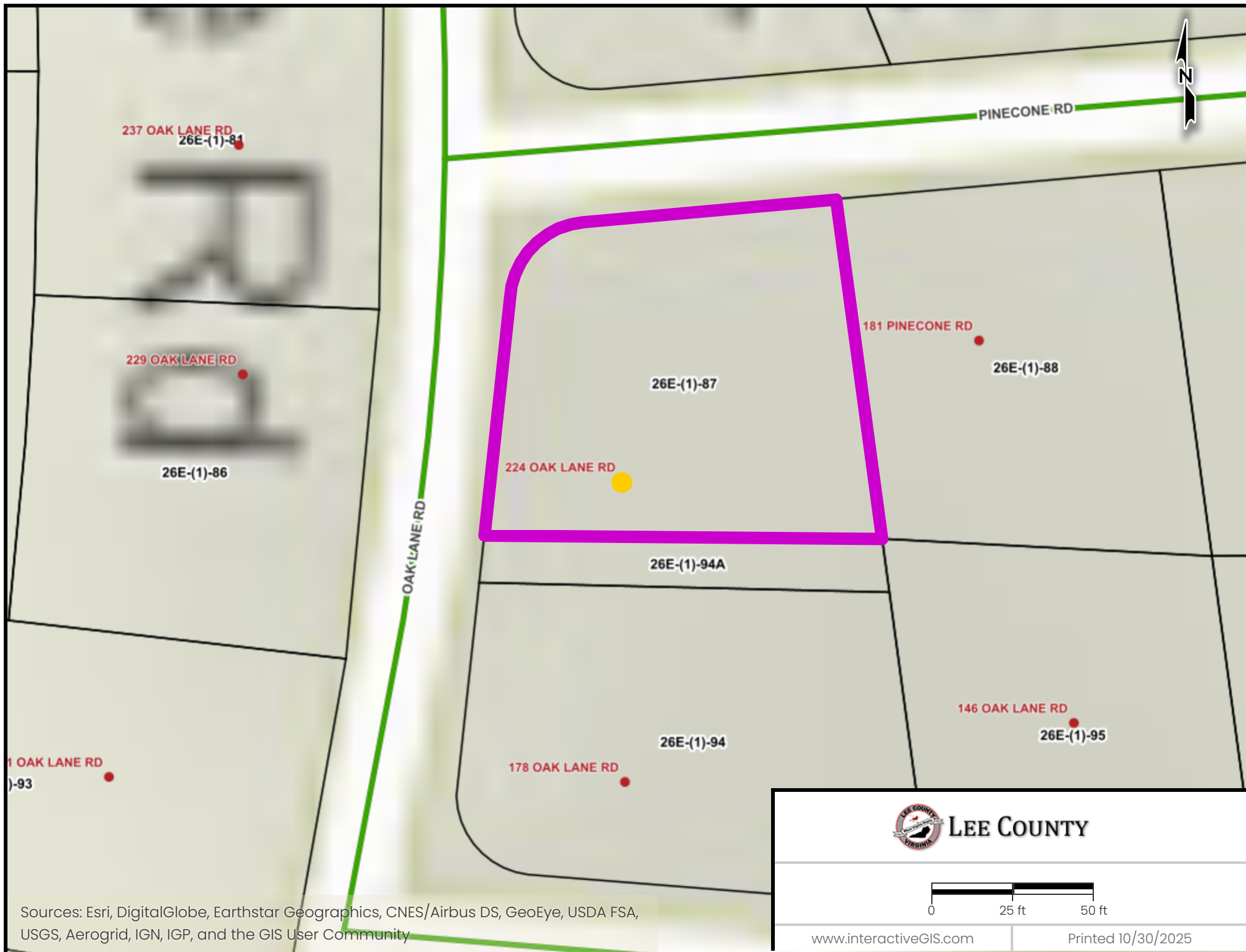
Buyer/Borrower: Karen L Presley

Thanks!

Note to abstractor: Please send the Title Search to abstracttitle@ecutitle.org

Janice Wagner
jwagner@ecutitle.org
Paralegal

Katie Phillips
kphillips@ecutitle.org
Title Specialist



Property Identification Card

Property Address

224 OAK LANE RD
DRYDEN, VA

Owner Name/Address

PRESLEY KAREN
634 CROSS CREEK RD
DRYDEN VA 24243

Map ID: 26E-(1)-87,94A

Acct No: 18869-1

Legal Description: LOT 87 & PT OF 94 CROSS CREEK ESTATES
C-61

Plat Book/Page: 494 / 539

Deed Book/Page: 494 / 536

Instrument: BS 2023 2301374

Occupancy:

Dwelling Type: 2 STR FRM

Use/Class: SINGLE FAMILY COUNTY

Acreage: 0.296

Year Assessed: 2025

Year Built: 1998

Land Use:

Zoning:

Year Remodeled:

Total Mineral: \$0

District: 06 YOKUM STATION DISTRICT

Year Effective:

Total Land: \$12,000

MH/Type:

On Site Date: 12/13/2024 **Total Improvements:** \$125,100

Condition: SF AVG

Review Date:

Total Value: \$137,100



----- Improvement Description -----									
Exterior			Interior			Site			
CONSTRUCTION-WOOD			NO. ROOMS - 7			STREET-PAVED			
EXTERIOR-VINYL SID			NO. BEDROOMS - 4			UTILITIES-PUB SEWE			
FOUNDATION-CINDER			NO. BATHS - 2			UTILITIES-PUB WATE			
ROOFING-COMPOSITE			FLOORS-CARPET			:			
			FLOORS-LINOLEUM			8			
			HEAT-HEAT PUMP			:			
			INTERIOR-SHEET ROC			+-----23-----+3WD-13-----+-----18-----+			
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Date: 10/30/25 Payment History Inquiry Time:
15:52:19
Dept/Bill#: RE2025 / 00143910001 Frq: 001 Pen/Int Dt: 10/30/2025 /
10/30/2025
Name: PRESLEY KAREN SSN 1/2: 000-00-0000 /
000-00-0000
Nam2: Acct#: 18869
Sup#: 00
Addr: 634 CROSS CREEK RD PAdr: 224 OAK LANE RD

DRYDEN VA Zip: 24243 - 0000 PstDt:
Desc: LOT 87 & PT OF 94 MAP#: 26E-(1)-87,94A
StsCd

CROSS CREEK ESTATES
C-61 MrtgCo: 000
Acre: .296 DsoClaim#:

000000000
Land: \$10,000 Improve: \$92,500 Use:

\$0
Original Bill: \$379.25 Payments: \$379.25 Discount:
\$.00

Penalty Paid: \$.00 Int Paid: \$.00 Last Date:
5/30/2025

Amount Owed: \$.00 Other: \$.00 Pnk Denotes Dir
Deposit#

Total Owed: \$.00 Penalty: \$.00 Interest:
\$.00

Date Type Drawer Trans Check Number Trans. Amount
Balance

4/17/2025 CHG \$379.25
\$379.25

5/30/2025 PAY NC 31465 \$379.25CR
\$.00

VIRGINIA LAND RECORD COVER SHEET

Commonwealth of Virginia VA. CODE §§ 17.1-223, -227.1, -249

2301374**FORM A – COVER SHEET CONTENT**Instrument Date: 2/1/2023Instrument Type: DBSNumber of Parcels: 1 Number of Pages: 3☐ City ☒ County LEE COURT
CIRCUIT COURTTax Exempt? VIRGINIA/FEDERAL CODE SECTION☐ Grantor:☐ Grantee:

DATE: 03/09/2023 @11:35 AM

Business/Name

(Area Above Reserved For Deed Stamp Only)

1 Grantor: DEAN, SHARON E
2 Grantor: DAUGHERTY, SHARON E
1 Grantee: PRESLEY, KAREN
Grantee:

Grantee Address

Name: KAREN PRESLEYAddress: 634 CROSS CREEK ROADCity: DRYDEN State: VA Zip Code: 24243Consideration: \$145,000.00 Existing Debt: \$0.00 Actual Value/Assumed: \$102,500.00

PRIOR INSTRUMENT UNDER § 58.1-803(D):

Original Principal: \$0.00 Fair Market Value Increase: \$0.00

Original Book No.: Original Page No.: Original Instrument No.:

Prior Recording At: ☐ City ☐ County Percentage In This Jurisdiction: 100%

Book Number: Page Number: Instrument Number:

Parcel Identification Number/Tax Map Number: 26E-(1)-87,94AShort Property Description:
.....

Current Property Address:

City: DRYDEN State: VA Zip Code: 24243Instrument Prepared By: KINSER LAW PLC Recording Paid By: KAREN PRESLEYRecording Returned To: KAREN PRESLEYAddress: 634 CROSS CREEK ROADCity: DRYDEN State: VA Zip Code: 24243

2301375

This Instrument Prepared By:
Kinser Law, PLC
Attorney at Law
P.O. Box 216
Pennington Gap, VA 24277
Phone: 276-546-1099

Tax Map ID: 26E-(1)-87,94A
Total Assessed Value: \$102,500.00

THIS DEED, made and entered into this 1st day of February, 2023, by and between **SHARON E. DEAN F.K.A SHARON E. DAUGHTERY**, hereinafter designated and referred to as the Grantor; and, **KAREN PRESLEY**, 634 Cross Creek Road, Dryden, VA 24243, hereinafter designated and referred to as the Grantee, therefore;

WITNESSETH:

THAT FOR AND IN CONSIDERATION of the sum of **ONE HUNDRED FORTY-FIVE THOUSAND DOLLARS (\$145,000.00)**, cash in hand paid, the receipt of which is hereby acknowledged, and other good and valuable consideration, the said Grantor does hereby grant and convey with **GENERAL WARRANTY** and **ENGLISH COVENANTS OF TITLE**, unto the Grantee, the following described real estate:

All that certain tract or parcel of land lying and being situated in the **YOKUM STATION MAGISTERIAL DISTRICT** of Lee County, Virginia, and being made up of all of **LOT 87** and a portion of **LOT 94** of Cross Creek Estates, Inc, further bounded and described as follows:

BEGINNING at an iron pin found in the southerly line of Oak Street (SR 1055), said iron pin being a common corner to Lot 87 and Lot 88, thence leaving Oak Street and with the line between said Lot 87 and Lot 88 S 02d 54' 00" W 106.14 feet to an iron pin found, said iron pin being a common corner to Lots 87, Lot 88, Lot 94, and Lot 95; thence with the line between Lot 94 and Lot 95 S 02d 46' 00" W 13.16 feet to an iron pin set; thence leaving the line between Lot 94 and Lot 95 and with a new line through Lot 94 N 81d 45' 00" W 125.11 feet to an iron pin set in the easterly line of Redbud Lane (SR1058); thence with said line of

said lane along a curve to the left 93.37 feet to an iron pin found, said curve having a radius of 1360.64 feet, a delta angle of 03d 55' 45", and a chord with bearing and distance of N 15d 43' 04" E 93.29 feet to an iron pin found; thence continuing along a curve to the right 35.95 feet to an iron pin found in the southerly line of the aforesaid Oak Street, said curve having a radius of 25.00 feet, a delta angle of 82d 23' 29", and a chord with bearing and distance of N 54d 29' 16" E 32.93 feet; thence with said line of said street S 84d 19' 00" E 78.12 feet to the BEGINNING and containing 12,915.54 square feet or 0.296 acre as shown on a plat dated April 22, 1999, by W.R. Palmer, Registered Land Surveyor, said plat recorded in Deed Book 494 Page 539.

This conveyance is made subject, however, to all easements, conditions, restrictions and reservations appearing of record which affect said property.

BEING the same property Sharon E. Daugherty acquired by deed dated May 5, 1999, from Lee County Redevelopment and Housing Authority, of record in the Circuit Court Clerk's Office of Lee County, Virginia in Deed Book 494 Page 536.

TO HAVE AND TO HOLD the said tract or parcel of land unto the said grantee, her heirs or assigns forever, in fee simple, together with all the appurtenances thereunto belonging or in anywise appertaining.

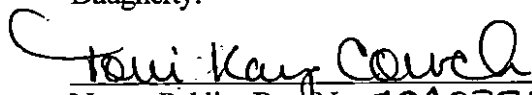
WITNESS the following signature and seal:

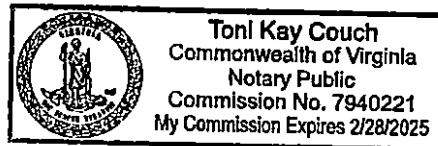
STATE OF VIRGINIA

COUNTY OF LEE, to-wit:

The foregoing instrument was acknowledged before me this the 1st day of February, 2023, by Sharon E. Dean F.K.A. Sharon E. Daugherty.


Sharon E. Dean F.K.A. Sharon E. Daugherty (SEAL)

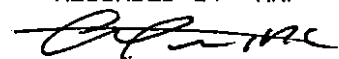

Notary Public Reg. No.: 7940221
My Comm. Expires: 02/28/2025



This instrument was prepared by Kinser Law, P.L.C. from information furnished by the Grantor(s) and/or Grantee(s) named therein. Kinser Law, P.L.C. has not examined any public record with respect to the property described in this instrument or with respect to the parties thereto; therefore, Kinser Law, P.L.C. makes no representation or warranty regarding title to the described property, the existence of any encumbrance, nor the true identity or legal capacity of any party.

2301377

INSTRUMENT 2301374
RECORDED IN THE CLERK'S OFFICE OF
LEE CIRCUIT COURT ON
MARCH 9, 2023 AT 11:36 AM
\$145.00 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: \$72.50 LOCAL: \$72.50
RENE LAMEY, CLERK
RECORDED BY: AXF



RECORDED
DATE JUL 09 1999

PG 494 PAGE 536

This DEED, made and entered into this the 5th day of May, 1999, by and between

LEE COUNTY REDEVELOPMENT AND HOUSING AUTHORITY, hereinafter

designated and referred to as the Grantor, and **SHARON E. DAUGHERTY**, whose address is 102 Redbud Lane, Dryden, Virginia 24243, hereinafter designated and referred to as the Grantee;

-W-I-T-N-E-S-S-E-T-H-

THAT FOR AND IN CONSIDERATION of the sum of SEVENTY THOUSAND AND NO/100 (\$70,000.00) DOLLARS, cash in hand paid to the Grantor, the receipt of which is hereby acknowledged, the Grantor does hereby GRANT, BARGAIN, SELL and CONVEY with GENERAL WARRANTY and ENGLISH COVENANTS OF TITLE unto the grantee that certain tract or parcel of land situate, lying and being near the community of Dryden in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, said tract or parcel of land being made up of all of LOT 87 and a *portion* of LOT 94 of Cross Creek Estates, Inc. and being more particularly described by a current survey as:

BEGINNING at an iron pin found in the southerly line of Oak Street (SR 1055), said iron pin being a common corner to Lot 87 and Lot 88; thence leaving Oak Street and with the line between said Lot 87 and Lot 88 S 02d 54' 00" W 106.14 feet to an iron pin found, said iron pin being a common corner to Lots 87, Lot 88, Lot 94, and Lot 95; thence with the line between Lot 94 and Lot 95 S 02d 46' 00" W 13.16 feet to an iron pin set; thence leaving the line between Lot 94 and Lot 95 and with a new line through Lot 94 N 81d 45' 00" W 125.11 feet to an iron pin set in the easterly line of Redbud Lane (SR1058); thence with said line of said lane along a curve to the left 93.37 feet to an iron pin found, said curve having a radius of 1360.64 feet, a delta angle of 03d 55' 45", and a chord with bearing and distance of N 15d 43' 04" E 93.29 feet to an iron pin found; thence continuing along a curve to the right 35.95 feet to an iron pin found in the southerly line of the aforesaid Oak Street, said curve having a radius of 25.00 feet, a delta angle of 82d 23' 29", and a chord with bearing and distance of N 54d 29' 16" E 32.93 feet; thence with said line of said street S 84d 19' 00" E 78.12 feet to the BEGINNING and containing 12,915.54 square feet or 0.296 acre as shown on a plat dated April 22, 1999, by W. R. Palmer, Registered Land Surveyor, said plat to be recorded herewith this deed.

LAW OFFICE OF
GEORGE F. CRIDLIN
P. O. Box 338
Pennington Gap, VA 24277

Grantor acquired title to the above property (being all of Lot 87 and a *portion* of Lot 94) by the following deeds: Lot 87 by deed from Steve F. Riggs, et ux, dated October 24, 1995, which deed is of record in the Office of the Clerk of the Circuit Court of the County of Lee, Virginia, in Deed Book 446, Page 846; and a portion of Lot 94 by deed of Steve F. Riggs, et ux, dated April 21, 1999, which deed is of record in said Clerk's Office in Deed Book 492, Page 690.

There is also CONVEYED herewith a right of ingress and egress across all necessary streets as are dedicated by a Deed of Dedication recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 380, at Page 185, and as shown on a prior plat of Cross Creek Estates, Inc., of record in Plat Slide C-61.

This conveyance is made expressly subject to all easements, reservations, rights of way, encumbrances, covenants and restrictions of record, including, without limitation, covenants and easements and a Declaration of Restrictions, which is recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 380 at page 194, together with a plat known as Cross Creek Estates, Inc., drawn by Thompson & Litton, Inc., dated May, 1988, Project Pt 3984, of record in Plat Slide C-61.

TO HAVE AND TO HOLD said lot or parcel of land unto the grantee, her heirs and assigns forever, in fee simple, together with all the appurtenances thereunto belonging or in anywise appertaining.

WITNESS the following signature and seal:

LEE COUNTY REDEVELOPMENT AND HOUSING AUTHORITY

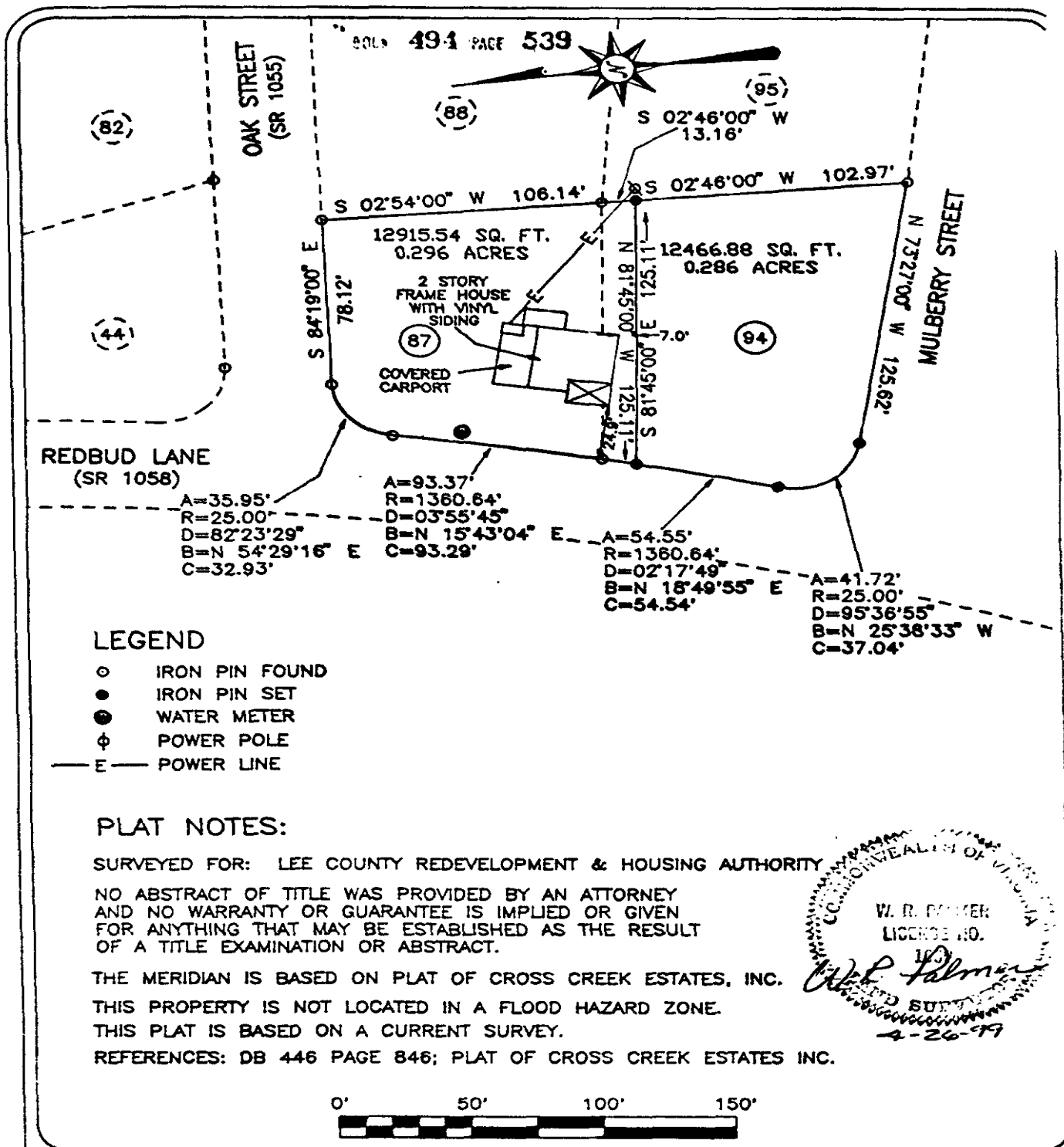
By [Signature] (Seal)
Its Executive Director

Commonwealth of Virginia,
County of Lee, to-wit:

The foregoing Deed bearing date of the 5th day of May, 1999, was acknowledged to before me by SCOTT A. NAPIER, of Lee County Redevelopment And Housing Authority this the 10th day of JUNE, 1999, on behalf of the Housing Authority.

My commission expires: 1-31-2003
Kathy B. Harber
Notary Public

VIRGINIA Lee County, to-wit: 4:18 AM
In the Clerk's Office of Lee County, at 10 P.M. on this the 10
day of June, 19 99, this Deed
was presented and together with the certificate annexed, admitted to record
and recorded. The taxes imposed by Section 58-54.1 of the Code of Virginia,
as amended have been paid in the amount of 32.00
Teste: Charles S. Smith
By: Ronda M. Smith Clerk



PALMER ENGINEERING, INC

Rt. 2 Box 368B, Big Stone Gap, Virginia 24219
Telephone / Fax - 640-623-7137

PLAT OF A SURVEY OF

LOT 87 AND LOT 94 AS SHOWN ON A PLAT OF CROSS CREEK ESTATES, INC. NEAR
DRYDEN IN THE YOKUM STATION MAGISTERIAL DISTRICT OF LEE COUNTY, VIRGINIA

SCALE: 1 INCH = 50 FEET

DATE: APRIL 22, 1999

EX-100-111111
DATE DEC 20 1995

BOOK 446 PAGE 846

This DEED, made and entered into this the 24th day of October, 1995, by and between STEVE F. RIGGS and JANICE S. RIGGS, his wife, hereinafter designated and referred to as the Grantors, and LEE COUNTY REDEVELOPMENT AND HOUSING AUTHORITY, whose address is P. O. Box 665, Jonesville, Virginia 24263, hereinafter designated and referred to as the Grantee;

-W-I-T-N-E-S-S-E-T-H-

FOR AND IN CONSIDERATION of the sum of TEN DOLLARS (\$10.00) cash in hand paid to the Grantors, and other good and valuable consideration, the receipt of which is hereby acknowledged, the Grantors do hereby GRANT, BARGAIN, SELL and CONVEY with GENERAL WARRANTY and ENGLISH COVENANTS OF TITLE unto the grantee the following described real estate being five (5) lots of land lying and being in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, approximately 1 1/2 miles east of Dryden, Virginia, in the subdivision development known as "Cross Creek Estates," which lots of land are more particularly described as follows, to-wit:

LOTS NOS. 87, 95, 103, 107, and 108, as shown on a plat of Cross Creek Estates, Inc., recorded in the Office of the Clerk of the Circuit Court of the County of Lee, Virginia, in Plat Slide C-61.

BEING a portion of the same property which the grantors acquired by deed of Cross Creek Estates, Inc., et als, dated May 8, 1995, which deed is of record in the Office of the Clerk of the Circuit Court of the County of Lee, Virginia, in Deed Book 443, Page 169.

JAMES S. THOMAS

Attorney

703-544-4651

Licensed To Practice In VA & KY

LAW OFFICES OF

GEORGE F. CRIDLIN

Penningsburg Cap. VA 22777

Jonesville, VA 20833

There is also CONVEYED herewith a right of ingress and egress across all necessary streets as are dedicated by a Deed of Dedication recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 380, at Page 185, and as shown on the aforesaid plat.

This conveyance is made expressly subject to all easements, reservations, rights of way, encumbrances, covenants and restrictions of record, including, without limitation, covenants and easements and a Declaration of Restrictions, which is recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 380 at page 194, together with a plat known as Cross Creek Estates, Inc., drawn by Thompson & Litton, Inc., dated May, 1988, Project Pt 3984, of record in Plat Slide C-61.

TO HAVE AND TO HOLD said lot or parcel of land unto the grantees, its heirs and assigns forever, in fee simple, together with all the appurtenances thereunto belonging or in anywise appertaining.

WITNESS the following signatures and seals:

Steve F. Riggs (Seal)
Steve F. Riggs
Janice S. Riggs (Seal)
Janice S. Riggs

Commonwealth of Virginia,
County of Lee, to-wit:

The foregoing Deed bearing date of the 24th day of October, 1995, was acknowledged to before me by Steve F. Riggs and Janice S. Riggs, his wife, this the 30th day of November, 1995.

My commission expires: 11-30-97
Amelia D. Gibson
Notary Public

VIRGINIA, Lee County, to-wit: 3:36 P.M. on this the 30th day of Nov 19 95 this Deed was presented and together with the certificate annexed, admitted to record and indexed. The taxes imposed by Section 58-54.1 of the Code of Virginia, as amended have been paid in the amount of 0
Test: Charles Carter Clerk
Arrenda Griggs Clerk

JAMES S. THOMAS
Attorney
703-544-4571
Licensed To Practice In VA & KY

LAW OFFICES OF
GEORGE F. CRIDLIN
Pamplin Co., VA 24277
Jennett, VA 20533

RECORDED
MAY 19 1999
DATE

452 INT 690

This DEED, made and entered into this the 21ST day of April, 1999, by and between **STEVE F. RIGGS** and **JANICE S. RIGGS**, his wife, hereinafter designated and referred to as the Grantors, and **LEE COUNTY REDEVELOPMENT AND HOUSING AUTHORITY**, whose address is P. O. Box 665, Jonesville, Virginia 24263, hereinafter designated and referred to as the Grantee;

-W-I-T-N-E-S-S-E-T-H-

THAT FOR AND IN CONSIDERATION of the sum of TEN DOLLARS (\$10.00) cash in hand paid to the Grantors, and other good and valuable consideration, the receipt of which is hereby acknowledged, the Grantors do hereby GRANT, BARGAIN, SELL and CONVEY with GENERAL WARRANTY and ENGLISH COVENANTS OF TITLE unto the grantee, all that certain lot or parcel of land and being a part of the subdivision known as "Cross Creek Estates," which property is located in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, approximately 1 1/2 miles east of Dryden, Virginia, and south of U. S. Highway 58, and said lot is more particularly described as follows:

LOT NO. 94, as shown on a plat of Cross Creek Estates, Inc., recorded in the Office of the Clerk of the Circuit Court of the County of Lee, Virginia, in Plat Slide C-61.

BEING a portion of the same property which the grantors acquired by deed of Cross Creek Estates, Inc., dated May 8, 1995, which deed is of record in the Office of the Clerk of the Circuit Court of the County of Lee, Virginia, in Deed Book 443, Page 169.

Doc 482 PAGE 691

There is also CONVEYED herewith a right of ingress and egress across all necessary streets as are dedicated by a Deed of Dedication recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 380, at Page 185, and as shown on the aforesaid plat.

This conveyance is made expressly subject to all easements, reservations, rights of way, encumbrances, covenants and restrictions of record, including, without limitation, covenants and easements and a Declaration of Restrictions, which is recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 380, Page 194, together with a plat known as Cross Creek Estates, Inc., drawn by Thompson & Litton, Inc., dated May, 1988, Project Pt 3984, of record in Plat Slide C-61.

TO HAVE AND TO HOLD the said lot or parcel of land unto the grantee, its heirs and assigns forever in fee simple, together with all the appurtenances thereunto belonging or in anywise appertaining.

WITNESS the following signatures and seals:


Steve F. Riggs (Seal)

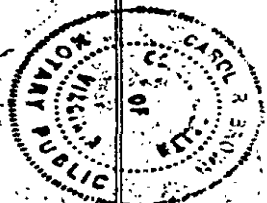

Janice S. Riggs (Seal)

Commonwealth of Virginia,
County of Lee, to-wit:

The foregoing Deed bearing date of the 21st day of April, 1999, was acknowledged to before me by Steve F. Riggs and Janice S. Riggs, his wife, this the 22nd day of April, 1999.

My commission expires: October 31, 2002

Carol R. Brown
Notary Public



VIRGINIA, Lee County, to-wit: 3:43
In the Clerk's Office of Lee County, at PM on this the 22
day of April, 1999, this deed
was presented and together with the certificate annexed, admitted to record
and indexed. The taxes imposed by Section 58-54.1 of the Code of Virginia,
as amended have been paid in the amount of 12.30

Teste: Charles Callan Clerk
By: Andrea Mitt D Clerk

EXAMINED
AUG. 18 1995

BOOK 443 PAGE 169

This DEED, made and entered into this the 8th day of May, 1995, by and between CROSS CREEK ESTATES, INC., a Virginia Corporation, hereinafter designated and referred to as the GRANTOR, and STEVE F. RIGGS and JANICE S. RIGGS, his wife, whose address is Route 1, Box 223, Dryden, Virginia 24243, as tenants by the entirety with the right of survivorship as at common law, hereinafter designated and referred to as the GRANTEES;

-W-I-T-N-E-S-S-E-T-H-

THAT FOR AND IN CONSIDERATION of the sum of TEN DOLLARS (\$10.00) cash in hand paid, the receipt of which is hereby acknowledged, and other good and valuable consideration, the Grantor does hereby GRANT, BARGAIN, SELL and CONVEY with GENERAL WARRANTY and ENGLISH COVENANTS OF TITLE unto the grantees as tenants by the entirety with the right of survivorship as at common law, all those certain tracts or parcels of land lying and being in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, approximately 1 1/2 miles east of Dryden, Virginia, and being a parcel of land containing a subdivision development known as "Cross Creek Estates," including roads and the sewer plant situated thereon, being more particularly described as follows, to-wit:

TRACT I: BEGINNING at a set stone on the north side of Virginia State Route 642, also the Southwest corner of said tract; thence N 13 degrees 45' 00" W 531.59 feet to an iron pin on the north edge of Camp Branch, S 89 degrees 00' 00" W 133.00 feet to an iron pin N 37 degrees 19' 55" W 213.01 feet to an iron pin N 23 degrees 59' 51" W 470.00 feet to an iron pin at Powell River; thence up said river N 34 degrees

JAMES S. THOMAS

Attorney

703-546-4651

Licensed To Practice In VA & KY

LAW OFFICES OF

GEORGE F. CRIDLIN

Pennings Gap, VA 24277

Jennettville, VA 24343

04' 18" E 208.14 feet to an iron pin, N 20 degrees 24' 12" E 457.34 feet to an iron pin, N 0 degrees 29' 18" W 469.54 feet to an iron pin, N 20 degrees 57' 17" W 766.98 feet to an iron pin; thence N 62 degrees 30' 00" E 1347.27 feet to a 50 foot right of way; thence along said right of way toward U. S. Alternate 58 N 31 degrees 22' 06" E 382.31 feet to a point; thence along a curve to the left with an arc length of 195.70 feet and Δ of 8 degrees 55' 51" to a point; thence N 22 degrees 26' 15" E 221.10 feet to a point; thence along a curve to the left with an arc length of 189.89 feet and Δ of 18 degrees 58' 21" to a point; thence N 3 degrees 27' 54" E. 344.58 feet to a point; thence along a curve to the right with an arc length of 110.83 feet and a Δ of 30 degrees 06' 14" to a point; thence N 33 degrees 34' 09" E 64.95 feet to a fence post; thence S 11 degrees 39' 46" E 72.13 feet to a point; thence S 33 degrees 34' 09" W 14.07 feet to a point; thence along a curve to the left with an arc length of 84.55 feet and a Δ of 30 degrees 06' 13" to a point; thence S 3 degrees 27' 54" W 344.58 feet to a point; thence along a curve to the right with an arc length of 206.45 feet and a Δ of 18 degrees 58' 21" to a point; thence S 22 degrees 26' 15" W 221.10 feet to a point; thence along a curve to the right with an arc length of 203.49 feet and a Δ of 8 degrees 55' 51" to a point; thence S 31 degrees 22' 06" W 311.82 feet to a point near the edge of a barn; thence N 62 degrees 30' 00" E 147.54 feet to a fence post at the northeast corner of main tract; thence S 16 degrees 56' 04" E 1236.00 feet to an iron pin; thence S 79 degrees 30' 00" E 127.00 feet to an iron pin; thence S 10 degrees 30' 00" E 369.00 feet to an iron pin; thence S 86 degrees 45' 00" E 117.00 feet to an iron pin; thence S 75 degrees 00' 00" E 149.00 feet to an iron pin; thence S 86 degrees 30' 00" E 132.00 feet to an iron pin; thence S 43 degrees 45' 00" E 60.71 feet to an iron pin located north side of Virginia State Road 642; thence with Route 642 S 48 degrees 51' 39" 453.04 feet to an iron pin; thence with a curve to the left with an arc length of 401.30 feet to and a Δ of 6 degrees 44' 20" to an iron pin; thence S 42 degrees 07' 18" W 54.52 feet to an iron pin; thence along a curve to the left with an arc length of 154.25 feet and a Δ of 58 degrees 58' 55" to an iron pin; thence S 22 degrees 19' 55" E 166.17 feet to an iron pin; thence along a curve to the right with an arc length of 95.07 feet and a Δ of 43 degrees 50' 28" to an iron pin; thence along a curve to the right with an arc length of 174.32 feet and a Δ of 23 degrees 32' 48" to an iron pin; thence S 45 degrees 03' 21" W 145.09 feet to an iron pin; thence along a curve to the right with an arc length of 198.96 feet and a Δ of 14 degrees 20' 48" to an iron pin; thence S 59 degrees 24' 08" W 548.26 feet to an iron pin; thence along a curve to the right with an arc length of 99.20 feet and a Δ of 16 degrees 33' 29" to an

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Jonesville, VA 24263

iron pin; thence S 75 degrees 57' 37" W 221.34 feet to the BEGINNING, consisting of 102.930 acres, more or less.

There is EXCEPTED and RESERVED from the above conveyance the cemeteries designated as Boundary B and Boundary C as shown upon a map showing cemeteries located on the Cecil Horne property, Drawing No. C-1368-95-72, said plat to be recorded herewith and reference to which is hereby made for a more particular description of said cemeteries, Cemetery C being known as the Creed F. Flanary Cemetery as excepted and reserved in Deed Book 318, Page 191 and Deed Book 63, Page 81.

There is also EXCEPTED and RESERVED the right of ingress and egress to said cemeteries.

There is FURTHER EXCEPTED from the above described property the following (59) lots or parcels which have been sold by Cross Creek Estates, Inc:

Lots 3, 4, 5, 6, 7, 8, 9, 16, 17, 18, 19, 25, 26, 27, 33, 34, 35, 41, 42, 43, 54, 55, 58, 61, 62, 63, 64, 65, 68, 69, 75, 81, 83, 85, 86, 88, 89, 90, 91, 92, 96, 97, 98, 99, 100, 104, 116, 117, 121, 126, 127, 131, 132, 134, 137, 140, 141, 143, and 145, said lots being shown on a plat of Cross Creek Estates, Inc., recorded in the Clerk's Office of Lee County, Virginia, in Plat Slide C-61.

There is FURTHER EXCEPTED from the above described property nine tracts of land containing a total of 36.95 acres as shown on a plat identified as a Division of the Cecil Horne Lands said plat being recorded in the Circuit Court Clerk's Office of Lee County, Virginia in Plat Slide C-84.

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TRACT II: BEGINNING at an iron pin at the intersection of the southern right of way line of U. S. Alt. 58 and the western right of way line of a 50' right of way; thence leaving said U.S. At. 58 and with said line of a 50' right of way, S 11 degrees 39' E, 391.89' to an iron pin corner; thence leaving said 50' right of way, N 85 degrees 18' 00" W, 502.45' to a fence post corner in the line of Alice Lucas; thence with line of said Lucas N 11 degrees 39' 46" W, 72.13' to a fence post corner; thence leaving said Lucas and with a new division line of James Dale Gilbert N 33 degrees 34' 09" E, 170.08' to a point; thence with a curve to the right having a delta of 12 degrees 09' 37", a radius of 196.14', a tangent of 20.89' an arc length of 41.63', and a degree of curve of 29 degrees 12' 42" to an iron pin corner; thence N 11 degrees 52' 33" W, 185.82' to an iron pin corner in the line of Ila S. Kinser; thence with said Kinser line S 85 degrees 18' E, 330.37' to an iron pin corner in the southern right of way line of U. S. Alt. 58; thence with said right of way line of U. S. Alt. 58 S 65 degrees 29' 24" E, 15.67' to the BEGINNING, containing 3.986 acres, and being situated one and one half mile east of Dryden, Virginia.

This conveyance is **SUBJECT** to certain mineral reservations and easements as were retained in a Deed dated May 29, 1984, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 333 at Page 132.

TRACT III: BEGINNING at a 1/2" rebar (found) at the intersection of the southerly right of way line of U. S. Alt. Route 58 and the westerly line of a 50 foot right of way and a common corner to Cecil Horne property; thence leaving said intersection point and with a common line to said Cecil Horne property N 85-18-00 W, 118.41 feet to a 3/4" rebar (set this survey); thence leaving said Cecil Horne property and with a new division line of Ila S. Kinser property N 23-55-11 E, 38.98 feet to a 3/4" rebar (set this survey) in said right of way of U. S. Alt. Route 58; thence with said right of way line S 66-04-49 E, 111.81 feet to the BEGINNING, and containing 0.050 acres, as shown on a plat of the Ila S. Kinser Property, dated 6/23/88, drawing number A-1448-98-54, which plat is to be recorded in the Clerk's Office of Lee County, Virginia.

BEING the same property Cross Creek Estates, Inc. acquired by deed dated April 13, 1989, from Gateway Resources, Inc., of

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Perrinton Gap, VA 22077
Jennsville, VA 20633

record in the Clerk's Office of Lee County, Virginia, in Deed Book 380 at Page 180; by deed dated December 16, 1987, from Dale Gilbert, et ux, of record in Deed Book 362 at Page 605; and, by deed dated June 24, 1988, from Ila S. Kinser, single, of record in Deed Book 367 at Page 251. Cross Creek Estates, Inc. further acquired said property by deed of correction, dated February 10, 1994, from Cecil J. Horne, et ux, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 425 at Page 445.

TRACT IV: Being a 0.857 acre tract located within the bounds of 2 tracts, said 0.857 acre tract being the easterly portion of a 0.050 acre tract conveyed to Cecil Horne by Deed dated June 24, 1988, as recorded in Deed Book 367 at Page 251, and the northeasterly portion of a 3.986 acre tract conveyed to Cecil Horne as recorded in Deed Book 362 at Page 605, in the Office of the County Clerk of Lee County, Virginia, and more particularly described as follows:

BEGINNING at a 1/2" rebar (found) at the intersections of the southerly right of way line of U. S. Alternate Route 58 and the westerly line of a 50 feet right of way; thence leaving said right of way line of U. S. Alternate Route 58 and with said westerly line of a 50.00 foot right of way S 07-15-23 E, 272.71 feet to a 3/4" rebar (set this survey); thence leaving said westerly line of a 50.00 foot right of way and with a division line of Cecil Horne property, 2 calls, S 89-56-02 W, passing through a 36" oak at 76.30 feet a total distance of 162.22 feet to a 3/4" rebar (set this survey) 1 foot south of a 12" double maple; thence N 03-03-33 W, 177.34 feet to a 3/4" rebar (set this survey) in the southeasterly right of way line of a 50.00 foot street; thence with said right of way line along the arc of a curve concave to the northwest having a radius of 285.44 feet, a chord of N 41.13-14 E 117.50 feet, a central angle of 23 degrees, 45 minutes and 28 seconds and an arc length of 118.36 feet to a 3/4" rebar (set this survey); thence continuing with said right of way Line N 29-20-30 E, 32.95 feet to a 3/4" rebar (set this survey) in said southerly right of way line of U. S. Alternate Route 58; thence with said southerly right of way line of U. S. Alternate Route

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Jonestown, VA 22033

58; thence with said southerly right of way line of U. S. Alternate Route 58 S 61-44-09 E, 49.57 feet to the BEGINNING and containing 0.857 acre as shown on a plat by James J. Thomas dated September 22, 1988, attached hereto and made a part thereof.

BEING the same property Cross Creek Estates, Inc. acquired by deed dated November 21, 1990, from Cecil J. Horne, et ux, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 388 at Page 759.

TRACT V: BEGINNING at a point on the intersection of the southern right of way line of U. S. Alt. 58 and the western right of way line of a 50' right of way; thence leaving line of U. S. Alt. 58 and with said line of a 50' right of way S 11 degrees 39' E 51.15' to a point; thence leaving line of said 50' right of way S 66 degrees 09' 39" W 259.976 to a point; thence with a curve to the left having a delta of 32 degrees 35' 33", a radius of 146.14', a tangent of 42.72', an arc length of 83.13' and a degrees of curve of 39 degrees 12' 21" to a point; thence S 33 degrees 34' 09" W, 235.03' to a point; thence with a curve to the left having a delta of 30 degrees 06' 13", a radius of 160.93', a tangent of 43.28', an arc length of 84.55', and a degree of curve of 35 degrees 36' 10" to a point; thence S 3 degrees 27' 54" W, 344.58' to a point; thence with a curve to the right having a delta of 18 degrees 58' 21", a radius of 623.46', a tangent of 104.18', and an arc length of 206.45' and a degree of curve of 9 degrees 11' 23" to a point; thence S 22 degrees 26' 15" W, 221.10' to a point; thence with a curve to the right having a delta of 8 degrees 55' 51", a radius of 1305.50', a tangent of 101.95', an arc length of 203.49' and a degree of curve of 4 degrees 23' 19" to a point; thence S 31 degrees 22' 06" W, 311.82' to a point; thence S 66 degrees 43' 09" W, 86.42' to a point; thence N 31 degrees 22' 06" E, 382.31' to a point; thence with a curve to the left having a delta of 8 degrees 55' 51", a radius of 1255.50', a tangent of 98.05', an arc length of 195.70', and a degree of curve of 4 degrees 33' 48" to a point; thence N 22 degrees 26' 15" E, 221.10' to a point; thence with a curve to the left having a delta of 18 degrees 58' 21", a radius of 573.46', a tangent of 95.82', an arc length of 189.89' and a degree of curve of 9 degrees 59' 28" to a point; thence N 3 degrees 27' 54" E, 344.58' to a point; thence with a curve to the right having a delta of 30 degrees 06' 14", a radius of 210.93', a tangent of 56.72', and an arc length of 110.83' and a degree of curve of 27 degrees 09' 48", to a point; thence N 33 degrees 34' 09" E,

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Jonestown, VA 20863

235.03' to a point; thence with a curve to the right having a delta of 32 degrees 35' 32", a radius of 196.14', a tangent of 57.34', and an arc length of 111.57', and a degree of curve of 29 degrees 12' 42" to a point; thence N 66 degrees 09' 39" E, 270.77' to the BEGINNING, and being across lands which the party of the first part acquired by deed of record in the Clerk's Office of Lee County, Virginia, in Deed Book 229 at page 62, and Deed Book 118 at Page 281.

BEING the same property Cross Creek Estates, Inc. acquired by deed dated December 8, 1989, from Alice B. Lucas, widow, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 380 at Page 629.

There is further CONVEYED herewith DRAINAGE EASEMENTS as described in more particular detail in the following deeds: Deed of Easement, dated December 15, 1988, from Alice B. Lucas, widow, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 374 at Page 406; Deed of Easement, dated December 30, 1988, from Alice B. Lucas, widow, of record in Deed Book 374 at Page 404; and, Deed of Easement, dated January 1, 1989, from Walter Tignor, et ux, of record in Deed Book 374 at Page 408.

This conveyance is made expressly subject to all easements, reservations, rights of way, encumbrances, covenants and restrictions of record, including, without limitation, covenants and easements and a Declaration of Restrictions, which is recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 380 at Page 194, together with a plat known as Cross Creek Estates, Inc., drawn by Thompson & Litton, Inc., dated May, 1988, Project #3984, of record in Plat Slide C-61.

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Pennington Gap, VA 20277

Leesville, VA 20263

TO HAVE AND TO HOLD the said lots or parcels of land unto the grantees, as tenants by the entirety with right of survivorship as at common law, in fee simple, together with all the appurtenances thereunto belonging or in anywise appertaining.

WITNESS the following signature and seal:

CROSS CREEK ESTATES, INC.

by: Cecil J. Horne (Seal)
Its President

Commonwealth of Virginia,
County of Lee, to-wit:

I, the undersigned, a Notary Public in and for the County and State aforesaid, do hereby certify that Cecil J. Horne, President of Cross Creek Estates, Inc., whose name is signed to the foregoing deed bearing date of May 8, 1995, has acknowledged the same before me in my County and State aforesaid.

Given under my hand this the 31st day of July, 1995.

My commission expires: October 31, 1998

Carol R. Brown
Notary Public

VIRGINIA, Lee County, to-wit: 2:27 PM on this the 31st day of July, 1995, this deed was presented and together with the certificate annexed, admitted to record and indexed. The taxes imposed by Section 58-64.1 of the Code of Virginia, as amended have been paid in the amount of 250.00.

Witness: Charles Patton Clerk
Glenn Hitt Clerk

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Attorney
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GEORGE F. CRIDLIN
Pensation Gap, VA 24277
Jonesville, VA 24263

EXAMINED 4-1991
DATE

BOOK 425 PAGE 445

THIS DEED OF CORRECTION, made and entered into this 10th day of February, 1994, by and between CECIL J. HORNE and JENELLE B. HORNE, his wife, by LENVILLE ORICK their attorney-in-fact, parties of the first part; and, CROSS CREEK ESTATES, INC., a Virginia corporation, party of the second part, whose address is Dryden, VA 24243;

W I T N E S S E T H :

WHEREAS, by deed dated September 27, 1988, and recorded in the Circuit Court Clerk's Office of Lee County, Virginia, in Deed Book 369 at Page 825, the parties of the first part conveyed the hereinafter described real estate to Gateway Resources, Inc.,; and, further the said Gateway Resources, Inc. conveyed said property to Cross Creek Estates, Inc. by deed dated April 13, 1989, and recorded in the said Clerk's Office in Deed Book 380 at Page 180; which real estate description in said deed contained certain errors describing the southern portion of said property and metes and bounds, and it is the purpose of this deed of correction to correct said drafting errors.

WHEREAS, the said parties wish to correct said errors and to properly convey the said real estate.

NOW, THEREFORE, in consideration of the sum of TEN DOLLARS (\$10.00), cash in hand paid, the receipt of which is hereby acknowledged by the parties of the first part, the said parties of the first part does hereby GRANT, BARGAIN, SELL and CONVEY with SPECIAL WARRANTY OF TITLE unto the said Cross Creek Estates, Inc., the following described real estate lying in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, bounded and further described as follows:

BEING the southern 36.95 acres of the property described in said original deed, the metes and bounds of which are shown on a plat recorded in the Circuit Court Clerk's Office of Lee County, Virginia identified as a "Division of the Cecil Horne Lands", in Plat Slide C-84. All remaining portion of said

GEORGE F. CRIDLIN
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JENESVILLE VIRGINIA 24263

land previously conveyed remains the property of the grantee and is unaffected by this deed of correction intended to correct the metes and bounds of the southern portion of this tract.

BEING the same property the parties of the first part acquired by deeds, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 318 at Page 191, Deed Book 365 at Page 652, Deed Book 362 at Page 607; Deed Book 362 at Page 605; and Deed Book 367 at Page 251.

Lenville Orick executes this Deed of Correction as attorney-in-fact for Cecil J. Horne and Jenelle B. Horne, pursuant to a power of attorney of record in the Clerk's Office of Lee County, Virginia, in Deed Book _____ at Page _____.

WITNESS the following signatures and seals:

Cecil J. Horne (SEAL)
Cecil J. Horne, by Lenville Orick
his attorney-in-fact

Jenelle B. Horne (SEAL)
Jenelle B. Horne, by Lenville Orick
her attorney-in-fact

STATE OF VIRGINIA

COUNTY OF LEE, to-wit:

I, the undersigned, a Notary Public in and for the County and State aforesaid, do hereby certify that Cecil J. Horne and Jenelle B. Horne, his wife, whose names are signed by Lenville Orick, their attorney-in-fact, to the foregoing Deed of Correction, dated February 10, 1994, have acknowledged the same before me in my County and State aforesaid.

Given under my hand this 15th day of February, 1994.

My commission expires: 1-31-95.

Kathy B. Harber
Notary Public

Virginia, Lee County, to-wit:

In the Clerk's Office of Lee County, at 3:06 P.M. on this
The 23rd day of Feb 1994, this deed of correction
presented and together with the certificate attached, admitted to record
and indexed.

Taken
By D. Clark

EXAMINED
DATE DEC. 29 1989

280 180

THIS DEED, made and entered into this 13th day of April, 1989, by and between GATEWAY RESOURCES, INC., a Virginia corporation,, hereinafter designated and referred to as the grantor; and, CROSS CREEK ESTATES, INC., Dryden, Virginia 24243, hereinafter designated and referred to as the grantee;

W I T N E S S E T H :

That for and in consideration of the sum of TEN DOLLARS, (\$10.00), cash in hand paid, the receipt of which is hereby acknowledged, and other good and valuable consideration, the said grantor does hereby GRANT, BARGAIN, SELL, and CONVEY unto the grantee, with General Warranty and English Covenants of Title, all those certain tracts or parcels of land lying and being in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, bounded and further described as follows:

TRACT I: BEGINNING at a set stone on the north side of Virginia State Route 642, also the Southwest corner of said tract; thence N 13 degrees 45' 00" W 531.59 feet to an iron pin on the north edge of Camp Branch, S 89 degrees 00' 00" W 133.00 feet to an iron pin N 37 degrees 19' 55" W 213.01 feet to an iron pin N 23 degrees 59' 51" W 470.00 feet to an iron pin at Powell River; thence up said river N 34 degrees 04' 18" E 208.14 feet to an iron pin, N 20 degrees 24' 12" E 457.34 feet to an iron pin, N 0 degrees 29' 18" W 469.54 feet to an iron pin, N 20 degrees 57' 17" W 766.98 feet to an iron pin; thence N 82 degrees 30' 00" E 1347.27 feet to a 50 foot right of way; thence along said right of way toward U. S. Alternate 58 N 31 degrees 22' 06" E 382.31 feet to a point; thence along a curve to the left with an arc length of 195.70 feet and Δ of 8 degrees 55' 51" to a point; thence N 22 degrees 26' 16" E 221.10 feet to a point; thence along a curve to the left with an arc length of 189.89 feet and Δ of 18 degrees 58' 21" to a point; thence N 3 degrees 27' 54" E. 344.58 feet to a point; thence along a curve to the right with an arc length of 110.83 feet and a Δ of 30 degrees 06' 14" to a point; thence N 33 degrees 34' 09" E 64.95 feet to a fence post; thence S 11 degrees 39' 46" E 72.13 feet to a fence post; thence S 33 degrees 34' 09" W 14.07 feet to a point; thence along a curve to the left with an arc length of 84.55 feet and a Δ of 30 degrees 06' 13" to a point; thence S 3 degrees 27' 54" W 344.58 feet to a point; thence along a curve to the right with an arc length of 206.45 feet and a Δ of 18 degrees 58' 21" to a point; thence S 22 degrees 26' 15" W 221.10 feet to a point, thence along a curve to the right with an arc length of 203.49 feet and a Δ of 8 degrees 55' 51" to a point; thence S 31 degrees 22' 06" W 311.82 feet to a point near the edge of a barn;

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JONESVILLE, VIRGINIA 24243

thence N 62 degrees 30' 00" E 147.54 feet to a fence post at the northeast corner of main tract; thence S 16 degrees 56' 04" E 1236.00 feet to an iron pin; thence S 79 degrees 30' 00" E 127.00 feet to an iron pin; thence S 10 degrees 30' 00" E 369.00 feet to an iron pin; thence S 86 degrees 45' 00" E 117.00 feet to an iron pin; thence S 75 degrees 00' 00" E 149.00 feet to an iron pin; thence S 86 degrees 30' 00" E 132.00 feet to an iron pin; thence S 43 degrees 45' 00" E 60.71 feet to an iron pin located north side of Virginia State Road 642; thence with Route 642 S 48 degrees 51' 39" 453.04 feet to an iron pin; thence with a curve to the left with an arc length of 401.30 feet to and a Δ of 6 degrees 44' 20" to an iron pin; thence S 42 degrees 07' 18" W 54.52 feet to an iron pin; thence along a curve to the left with an arc length of 154.25 feet and a Δ of 58 degrees 58' 55" to an iron pin; thence S 22 degrees 19' 55" E 166.17 feet to an iron pin; thence along a curve to the right with an arc length of 95.07 feet and a Δ of 43 degrees 50' 28" to an iron pin; thence along a curve to the right with an arc length of 174.32 feet and a Δ of 23 degrees 32' 48" to an iron pin; thence S 45 degrees 03' 21" W 145.09 feet to an iron pin; thence along a curve to the right with an arc length of 198.96 feet and a Δ of 14 degrees 20' 48" to an iron pin; thence S 59 degrees 24' 08" W 548.26 feet to an iron pin; thence along a curve to the right with an arc length of 99.20 feet and a Δ of 16 degrees 33' 29" to an iron pin; thence S 75 degrees 57' 37" W 221.34 feet to the BEGINNING, consisting of 102.930 acres, more or less.

There is excepted and reserved from the above conveyance the cemeteries designated as Boundary B and Boundary C as shown upon a map showing cemeteries located on the Cecil Horne property, Drawing No. C-1368-95-72, said plat to be recorded herewith and reference to which is hereby made for a more particular description of said cemeteries, Cemetery C being known as the Creed F. Planary Cemetery as excepted and reserved in Deed Book 318, Page 191 and Deed Book 63, Page 81. There is also excepted and reserved the right of ingress and egress to said cemeteries.

TRACT II: BEGINNING at an iron pin at the intersection of the southern right of way line of U. S. Alt. 58 and the western right of way line of a 50' right of way; thence leaving said U.S. At. 58 and with said line of a 50' right of way, S 11 degrees 39' E, 391.89' to an iron pin corner; thence leaving said 50' right of way, N 85 degrees 18' 00" W, 502.45' to a fence post corner in the line of Alice Lucas; thence with line of said Lucas N 11 degrees 39' 48" W, 72.13' to a fence post corner; thence leaving said Lucas and with a new division line of James Dale Gilbert N 33

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CHESVILLE, VIRGINIA 24223

degrees 34' 09" E, 170.08' to a point; thence with a curve to the right having a delta of 12 degrees 09' 37", a radius of 196.14', a tangent of 20.89' an arc length of 41.63', and a degree of curve of 29 degrees 12' 42" to an iron pin corner; thence N 11 degrees 52' 33" W, 186.82' to an iron pin corner in the line of Ila S. Kinser; thence with said Kinser line S 85 degrees 18' E, 330.37' to an iron pin corner in the southern right of way line of U. S. Alt. 58; thence with said right of way line of U. S. Alt. 58 S 65 degrees 29' 24" E, 16.67' to the BEGINNING, containing 3.986 acres, and being situated one and one half mile east of Dryden, Virginia.

This conveyance is SUBJECT to certain mineral reservations and easements as were retained in a Deed dated May 29, 1984, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 333 at Page 132.

TRACT III: BEGINNING at a 1/2" rebar (found) at the intersection of the southerly right of way line of U. S. Alt. Route 58 and the westerly line of a 50 foot right of way and a common corner to Cecil Horne property; thence leaving said intersection point and with a common line to said Cecil Horne property N 85-18-00 W, 118.41 feet to a 3/4" rebar (set this survey); thence leaving said Cecil Horne property and with a new division line of Ila S. Kinser property N 23-55-11 E, 38.98 feet to a 3/4" rebar (set this survey) in said right of way of U. S. Alt. Route 58; thence with said right of way line S 66-04-49 E, 111.81 feet to the BEGINNING, and containing 0.050 acres, as shown on a plat of the Ila S. Kinser Property, dated 6/23/88, drawing number A-1448-98-54, which plat is to be recorded in the Clerk's Office of Lee County, Virginia.

There is EXCEPTED from TRACTS II and III the following described parcel:

Being a 0.857 acre tract located within the bounds of 2 tracts, said 0.857 acre tract being the easterly portion of a 0.050 acre tract conveyed to Cecil Horne by Deed dated June 24, 1988, as recorded in Deed Book 367 at Page 251, and the northeasterly portion of a 3.986 acre tract conveyed to Cecil Horne as recorded in Deed Book 362 at Page 605, in the Office of the County Clerk of Lee County, Virginia, and more particularly described as follows:

BEGINNING at a 1/2" rebar (found) at the intersections of the southerly right of way line of U. S. Alternate Route 58 and the westerly line of a 50 foot right of way; thence leaving said right of way line of U. S. Alternate Route 58 and with said westerly line of a 50.00 foot right of way S 07-15-23 E, 272.71 feet to a 3/4" rebar (set this survey); thence leaving said westerly line of a 50.00 foot right of way and with a division line of Cecil Horne property, 2 calls, S 89-56-02 W, passing through a 36" oak at 76.30 feet a

total distance of 162.22 feet to a 3/4" rebar (set this survey) 1 foot south of a 12" double maple; thence N 03-03-33 W, 177.34 feet to a 3/4" rebar (set this survey) in the southeasterly right of way line of a 50.00 foot street; thence with said right of way line along the arc of a curve concave to the northwest having a radius of 285.44 feet, a chord of N 41.13-14 E 117.50 feet, a central angle of 23 degrees, 45 minutes and 28 seconds and an arc length of 118.36 feet to a 3/4" rebar (set this survey); thence continuing with said right of way line N 29-20-30 E, 32.95 feet to a 3/4" rebar (set this survey) in said southerly right of way line of U. S. Alternate Route 58; thence with said southerly right of way line of U. S. Alternate Route 58 S 61-44-09 E, 49.57 feet to the BEGINNING and containing 0.857 acre as shown on a plat by James J. Thomas dated September 22, 1988, attached hereto and made a part thereof.

BEING the same property acquired by Gateway Resources, Inc. by deed dated September 27, 1988, from Cecil J. Horne, et ux, of record in the Lee County Circuit Court Clerk's Office in Deed Book 369, Page 825.

TO HAVE AND TO HOLD the said tracts or parcels of land unto the grantee, its successors or assigns forever, in fee simple, together with all the appurtenances thereunto belonging or in anywise appertaining.

WITNESS the following signature and seal.

GATEWAY RESOURCES, INC.

BY: M. Bardin Thrower, Jr. (SEAL)
PRESIDENT

STATE OF VIRGINIA

COUNT OF LEE, to-wit:

I, the undersigned, a Notary Public in and for the County and State aforesaid, do hereby certify that M. Bardin Thrower, Jr., President of Gateway Resources, Inc., whose name is signed to the foregoing Deed, bearing date of April 13, 1989, has

GEORGE F. CRIDLIN
ATTORNEY AT LAW
JONESVILLE, VIRGINIA 22023

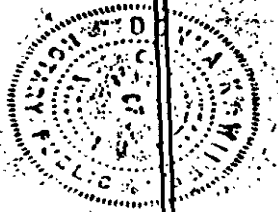
380 1st 184

acknowledged the same before me in my County and State
aforesaid.

Given under my hand this 27th day of April, 1989.

My commission expires: March 22, 1991.

Norma K. Wiley
Notary Public



See Plat Slide C-61

Witnessed, Lee County, Va. at 2:38 PM on this the 20th
day of November, 1989 this Deed
was presented to me and I read it and it was explained, admitted to record and
I have signed this instrument in the presence of the parties, as
per the provisions of the Code of Virginia, as
witnessed by Charles Dalton Clerk
and Charles Dalton D. Clerk

GEORGE F. CRIDLIN
ATTORNEY AT LAW
JONESVILLE, VIRGINIA 24363

EXAMINED
DEC. 9 1988

BOOK 369 PAGE 825

THIS DEED made this 27th day of September, 1988 by and between CECIL J. HORNE AND JENELLE B. HORNE, his wife, hereinafter referred to as GRANTORS and GATEWAY RESOURCES, INC., 1028 Park Avenue, Northeast, Norton, Virginia, hereinafter referred to as GRANTEE:

W I T N E S S E T H :

THAT FOR AND IN CONSIDERATION of the sum of TEN DOLLARS (\$10.00), cash in hand paid by the Grantee unto the Grantors, the receipt whereof is hereby acknowledged, and other good and valuable considerations thereof, the Grantor does hereby grant, bargain, sell and convey unto the Grantee, with GENERAL WARRANTY and the ENGLISH COVENANTS OF TITLE, the following described real estate.

All of those certain tracts or parcels of land lying and being in the YOKUM STATION MAGISTERIAL DISTRICT OF LEE COUNTY, VIRGINIA and being more particularly bounded and described as follows, to-wit:

TRACT I:

BEGINNING at a set stone on the north side of Virginia State Route 642, also the Southwest corner of said tract; thence N 13° 45' 00" W 531.59 feet to an iron pin on the north edge of Camp Branch, S 89° 00' 00" W 133.00 feet to an iron pin N 37° 19' 55" W 213.01 feet to an iron pin N 23° 59' 51" W 470.00 feet to an iron pin at Powell River; thence up said river N 34° 04' 18" E 208.14 feet to an iron pin, N 20° 24'

CYNTHIA D. KINSER
ATTORNEY AT LAW
P. O. BOX 587
HENNINGTON GAP, VA. 24277

BOOK 369 PAGE 826

12° E 457.34 feet to an iron pin, N 0° 29' 18" W 469.54 feet to an iron pin, N 20° 57' 17" W 766.98 feet to an iron pin; thence N 62° 30' 00" E 1,347.27 feet to a 50 foot right-of-way; thence along said right-of-way toward U. S. Alternate 58 N 31° 22' 06" E 382.31 feet to a point; thence along a curve to the left with an arc length of 195.70 feet and Δ of 8° 55' 51" to a point; thence N 22° 26' 15" E 221.10 feet to a point; thence along a curve to the left with an arc length of 189.89 feet and Δ of 18° 58' 21" to a point; thence N 3° 27' 54" E 344.58 feet to a point; thence along a curve to the right with an arc length of 110.83 feet and a Δ of 30° 06' 14" to a point; thence N 33° 34' 09" E 64.95 feet to a fence post; thence S 11° 39' 46" E 72.13 feet to a fence post; thence S 33° 34' 09" W 14.07 feet to a point; thence along a curve to the left with an arc length of 84.55 feet and a Δ of 30° 06' 13" to a point; thence S 3° 27' 54" W 344.58 feet to a point; thence along a curve to the right with an arc length of 206.45 feet and a Δ of 18° 58' 21" to a point; thence S 22° 26' 15" W 221.10 feet to a point; thence along a curve to the right with an arc length of 203.49 feet and a Δ of 8° 55' 51" to a point; thence S 31° 22' 06" W 311.82 feet to a point near the edge of a barn; thence N 62° 30' 00" E 147.54 feet to a fence post at the northeast corner of main tract; thence S 16° 56' 04" E 1,236.00 feet to an iron pin; thence S 79° 30' 00" E 127.00 feet to an iron pin; thence S 10° 30' 00" E 369.00 feet to an iron pin; thence S 86° 45' 00" E 117.00 feet to an iron pin; thence S 75° 00' 00" E 149.00 feet to an iron pin; thence S 86° 30' 00" E 132.00 feet to an iron pin; thence S 43° 45' 00" E 60.71 feet to an iron pin located north side of Virginia State Road 642; thence with Route 642 S 48° 51' 39" 453.04 feet to an iron pin; thence with a curve to the left with an arc length of 401.30 feet to and a Δ of 6° 44' 20" to an iron pin; thence S 42° 07' 18" W 54.52 feet to an iron pin; thence along a curve to the left with an arc length of 154.25 feet and a Δ of 58° 58' 55" to an iron pin; thence S 22° 19' 55" E 166.17 feet to an iron pin; thence along a curve to the right with an arc length of 95.07 feet and a Δ of 43° 50' 28" to an iron pin; thence along a curve to the right with an arc length of 174.32 feet and a Δ of 23° 32' 48" to an iron pin; thence S 45° 03' 21" W 145.09 feet to an iron pin; thence along a curve to the right with an

369 827

arc length of 198.96 feet and a Δ of $14^{\circ}20'48''$ to an iron pin; thence S $59^{\circ}24'08''$ W 548.26 feet to an iron pin; thence along a curve to the right with an arc length of 99.20 feet and a Δ of $16^{\circ}33'29''$ to an iron pin; thence S $75^{\circ}57'37''$ W 221.34 feet to the BEGINNING, consisting of 102.930 acres, more or less.

Being the property acquired by Grantors by Deed of Record in the Clerk's Office of Lee County, Virginia in Deed Book 318, Page 191, Deed Book 365, Page 652 and Deed Book 362, Page 607.

There is excepted and reserved from the above conveyance the cemeteries designated as Boundary B and Boundary C as shown upon a map showing cemeteries located on the Cecil Horne property, Drawing No. C-1368-95-72, said plat to be recorded herewith and reference to which is hereby made for more particular description of said cemeteries, Cemetery C being known as the Creed F. Flanary Cemetery as excepted and reserved in Deed Book 318, Page 191 and Deed Book 63, Page 81. There is also excepted and reserved the right of ingress and egress to said cemeteries.

TRACT II:

BEGINNING at an iron pin at the intersection of the southern right of way line of U.S. Alt. 58 and the western right of way line of a 50' right of way; thence leaving said U.S. Alt. 58 and with said line of a 50' right of way, S $11^{\circ}39'$ E, 391.89' to an iron pin corner; thence leaving said 50' right of way, N $85^{\circ}18'00''$ W, 502.45' to a fence post corner in the line of Alice Lucas; thence with line of said Lucas N $11^{\circ}39'46''$ W, 72.13' to a fence post corner; thence leaving said Lucas and with a new division line of

BOOK 369 PAGE 828

James Dale Gilbert N 33° 34' 09" E, 170.08' to a point; thence with a curve to the right having a delta of 12° 09' 37", a radius of 196.14', a tangent of 20.89', an arc length of 41.63', and a degree of curve of 29° 12' 42" to an iron pin corner; thence N 11° 52' 33" W, 185.82' to an iron pin corner in the line of Ila S. Kinser; thence with said Kinser line S 85° 18' E, 330.37' to an iron pin corner in the southern right of way line of U.S. Alt. 58; thence with said right of way line of U.S. Alt. 58 S 65° 29' 24" E, 15.67' to the BEGINNING, containing 3.986 acres, and being situated one and one half mile east of Dryden, Virginia.

This conveyance is SUBJECT to certain mineral reservations and easements as were retained in the grantors' deed dated May 29, 1984, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 333 at Page 132.

Being the property acquired by Cecil Horne by deed of record in the Clerk's Office of Lee County, Virginia in Deed Book 362, Page 605.

TRACT III:

BEGINNING at a 1/2" rebar (found) at the intersection of the southerly right of way line of U.S. Alt. Route 58 and the westerly line of a 50 foot right of way and a common corner to Cecil Horne property; thence leaving said intersection point and with a common line to said Cecil Horne property N 85-18-00 W, 118.41 feet to a 3/4" rebar (set this survey); thence leaving said Cecil Horne property and with a new division line of Ila S. Kinser property N 23-55-11 E, 38.98 feet to a 3/4" rebar (set this survey) in said right of way of U.S. Alt. Route 58; thence with said right of way line S 66-04-49 E, 111.81 feet to the BEGINNING, and containing 0.050 acres, as shown on a plat of the Ila S. Kinser Property, dated 6/23/88, drawing number A-1448-98-54, which plat is to be recorded in the Clerk's Office of Lee County, Virginia.

BOOK 369 829

Being the property acquired by Cecil Horne by deed of record in the Clerk's Office of Lee County, Virginia in Deed Book 367, Page 251.

There is EXCEPTED from TRACTS II and III the following described parcel:

Being a 0.857 acre tract located within the bounds of 2 tracts, said 0.857 acre tract being the easterly portion of a 0.050 acre tract conveyed to Cecil Horne by deed dated June 24, 1988 as recorded in Deed Book 367, Page 251 and the northeasterly portion of a 3.986 acre tract conveyed to Cecil Horne as recorded in Deed Book 362, Page 605 in the Office of the County Clerk of Lee County, Virginia and more particularly described as follows:

BEGINNING at a 1/2" rebar (found) at the intersections of the southerly right-of-way line of U.S. Alternate Route 58 and the westerly line of a 50 foot right-of-way; thence leaving said right-of-way line of U.S. Alternate Route 58 and with said westerly line of a 50.00 foot right-of-way S 07-15-23 E, 272.71 feet to a 3/4" rebar (set this survey); thence leaving said westerly line of a 50.00 foot right-of-way and with a division line of Cecil Horne property, 2 calls, S 89-56-02 W, passing through a 36" oak at 76.30 feet a total distance of 162.22 feet to a 3/4" rebar (set this survey) 1 foot south of a 12" double maple; thence N 03-03-33 W, 177.34 feet to a 3/4" rebar (set this survey) in the southeasterly right-of-way line of a 50.00 foot street; thence with said right-of-way line along the arc of a curve concave to the northwest having a radius of 285.44 feet, a chord of N 41-13-14 E, 117.50 feet, a central angle of 23 degrees, 45 minutes, and 28 seconds and an arc length of 118.36 feet to a 3/4" rebar (set this survey); thence continuing with said right-of-way line N 29-20-30 E, 32.95 feet to a 3/4" rebar (set this survey) in said southerly right-of-way line of U.S. Alternate Route 58; thence with said southerly right-of-way line of U.S. Alternate Route 58; thence with said southerly right-of-way line of U.S. Alternate Route 58 S 61-44-09 E, 49.57 feet to the BEGINNING and containing

CYNTHIA D. KINSER
ATTORNEY AT LAW
P. O. BOX 587
JENNINGTON GAP, VA. 24377

BOOK 369 PAGE 830

0.857 acre as shown on a plat by James J. Thomas dated September 22, 1988 attached hereto and made a part thereof.

This conveyance is made subject, however, to all easements, condition, restrictions and reservations appearing of record which affect said property.

WITNESS the following signatures and seals:

Cecil J. Horne (SEAL)
CECIL HORNE

Jenelle B. Horne (SEAL)
JENELLE B. HORNE

STATE OF VIRGINIA

COUNTY OF LEE, TO-WIT:

The foregoing Deed was acknowledged before me this 27th of September, 1988, by CECIL HORNE and JENELLE B. HORNE.

Kathy B. Harber
NOTARY PUBLIC

My Commission expires: 1-26-91

CYNTHIA D. KINSEY
ATTORNEY AT LAW
P. O. BOX 587
PENNINGTON GAP, VA. 24277

VIRGINIA, Lee County, to-wit:
this Clerk's Office of Lee County, at 10:07 A.M. on this the 5th
of October 1988 this Deed
was presented and together with the certificate annexed, submitted to record and
the taxes imposed by Section 59.1-11, of the Code of Virginia, as
and in the amount of \$ 800.00.
Teste C. Harber, Clerk
By Cathy Harber, D. Clerk

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THIS DEED, made and entered into on this 13th day of December, 1982, by and between CECIL J. HORNE and JENELLE B. HORNE, his wife, parties of the first part, and CECIL J. HORNE and JENELLE B. HORNE, his wife, as tenants in common without the right of survivorship as at common law, Route 1, Box 46, Dryden, Virginia 24243, parties of the second part.

W I T N E S S E T H:

THAT for and in consideration of the sum of TEN (\$10.00) DOLLARS, cash in hand paid, the receipt of which is hereby acknowledged, the parties of the first part do hereby grant, bargain, sell and convey with Covenants of GENERAL WARRANTY of Title unto the said parties of the second part as tenants in common without the right of survivorship as at common law, a certain tract or parcel of land lying and being in the Yokum Station Magisterial District of Lee County, Virginia, more particularly described as follows, to-wit:

BEGINNING at a set stone on the north edge of the old State No. 11 Highway, also the Southwest corner of said tract; thence N 13 3/4 W 539 feet to a large rock on the north edge of Camp Branch, S 89 W 133 feet to a stake, S 37 1/2 W 207 feet to a stake in the said branch on Orbin Coxes line and with the same, N 27 W 470 feet to a stake at Powell River; thence up said river as it meanders, N 38 1/2 E 122 feet to a stake, N 21 1/2 E 379 feet to a stake, N 2 E 517 feet to a stake, N 21 3/4 W 500 feet to a stake, N 23 W 283 feet to a double sycamore (small trees), N 10 W 62 feet to a flat rock in the edge of the water, a corner to the 90 acre tract; thence leaving the river with lines of said tract, N 62 1/2 E 1623 feet to a post, S 16 3/4 E 1236 feet to a set stone, S 79 1/2 E 127 feet to a stone on the east bank of the branch, and 99 feet below the Cave Spring X on rock; thence S 10 1/2 W 369 feet to a stake, thence up the Spring Branch, S 86 3/4 E 117 feet, S 75 E 149 feet, S 86 1/2 E 132 feet to large spring, head of same and dividing the same; S 43 3/4 E 62 feet to the public road; thence down the road, S 47 1/2 W 415 feet to a stake corner, S 43 1/2 W 535 feet, S 16 1/2 E 213 feet, S 39 W 393 feet, S 57 1/2 W 764 feet to a stake, S 76 1/2 W 292 feet to the BEGINNING, containing 104.3 acres, more or less.

BEING the same land as conveyed unto Cecil J. Horne, et ux from Kyle Wade, et ux, by deed dated September 28, 1976, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 264, page 147, reference thereto being hereby specifically made.

There is EXCEPTED AND RESERVED from the above conveyance the cemetery known as the Creed F. Flanary Cemetery, together with the right of way thereto, containing 72 square rods fully set forth and described in Deed Book 63, page 81 and Deed Book 63, page 84.

TO HAVE AND TO HOLD said land unto the said parties of the second part in fee simple, as tenants in common without the right of survivorship as at common law, together with all the appurtenances thereunto belonging or in anywise appertaining.

WITNESS the following signatures and seals.

Cecil J. Horne (SEAL)
CECIL J. HORNE

Jenelle B. Horne (SEAL)
JENELLE B. HORNE

STATE OF VIRGINIA,
COUNTY OF LEE, TO-WIT:

The foregoing instrument was acknowledged before me by Cecil J. Horne and Jenelle B. Horne, his wife, on this the 17 day of December, 1982.

MY COMMISSION EXPIRES Sept. 21, 1985

Rheta R. Hines
NOTARY PUBLIC

VIRGINIA, Lee County, to-wit:

In the Clerk's Office of Lee County, at 9:00 A.M. on Dec 2 day of January, 1983, this Deed was presented and together with the certificate annexed, admitted to record and indexed. The taxes imposed by Section 58-54.1, of the Code of Virginia, as amended, have been paid in the amount of None Required

Teste Chas. C. Cox Clerk

By _____ D. Clerk

Examined
10-26-76

BOOK 264 PAGE 147

This DEED made this the 28th day of September, 1976, by and between KYLE WADE and BRENDA WADE, his wife, parties of the first part and CECIL J. HORNE and JENELLE B. HORNE, his wife, as tenants by the entireties with the right of survivorship as at common law, parties of the second part,

WITNESSETH:

That for Three Hundred Seventy-Five Thousand (\$375,000.00) Dollars, cash in hand paid by the parties of the second part to the parties of the first part, receipt of which is hereby acknowledged, the parties of the first part do hereby GRANT, BARGAIN, SELL and CONVEY with Covenants of General Warranty of Title, unto the parties of the second part, a certain tract or parcel of land lying and being in the Yokum Station Magisterial District of Lee County, Virginia, more particularly described as follows, to-wit:

BEGINNING at a set stone on the north edge of the old State No. 11 Highway, also the Southwest corner of said tract; thence N 13 3/4 W 539 feet to a large rock on the north edge of Camp Branch, S 89 W 133 feet to a stake, S 37 1/2 W 207 feet to a stake in the said branch on Orbin Coxes line and with the same, N 27 W 470 feet to a stake at Powell River; thence up said river as it meanders, N 38 1/4 E 122 feet to a stake, N 21 1/2 E 379 feet to a stake, N 2 E 517 feet to a stake, N 21 3/4 W 500 feet to a stake, N 23 W 283 feet to a double sycamore (small trees), N 10 W 62 feet to a flat rock in the edge of the water, a corner to the 90 acre tract; thence leaving the river with lines of said tract, N 62 1/2 E 1623 feet to a post, S 16 3/4 E 1236 feet to a set stone, S 79 1/2 E 127 feet to a stone on the east bank of the branch, and 99 feet below the Cave Spring X on rock; thence S 10 1/2 W 369 feet to a stake, thence up the Spring Branch, S 86 3/4 E 117 feet, S 75 E 149 feet, S 86 1/2 E 132 feet to a large spring, head of same and dividing the same; S 43 3/4 E 62 feet to the public road; thence down the road, S 47 1/2 W 415 feet to a stake corner, S 43 1/2 W 535 feet, S 16 1/2 E 213 feet, S 39 W 393 feet, S 57 1/2 W 764 feet to a stake, S 76 1/2 W 292 feet to the BEGINNING, containing 104.3 acres, more or less.

There is EXCEPTED and RESERVED from the above conveyance the cemetery known as the Creed F. Flanary Cemetery, together with right of way thereto, containing 72 square rods fully set forth and described in Deed Book 63, Page 81 and Deed Book 63, Page 84.

The parties of the first part acquired title to the above described real estate by deed recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 242, page 646.

TO HAVE AND TO HOLD said tract or parcel of land unto the parties of the second part in fee simple, as tenants by the entirety with the right of survivorship as at common law, together with all the appurtenances thereunto belonging or in anywise appertaining.

And the parties of the first part covenant to and with the parties of the second part that they have the right to convey said real estate; that they have done no act to encumber the same; that the parties of the second part shall have quiet and peaceable possession of said real estate, free from all encumbrances, and that they, the parties of the first part will execute such other and further assurances of title to said land as may be requisite.

Witness the following signatures and seals.

Kyle Wade (SEAL)

Brenda Wade (SEAL)

State of Virginia,

County of Lee, to-wit:

I, Betty W. Bellamy, a notary public of and for the County and State aforesaid do hereby certify that Kyle Wade and Brenda Wade, his wife, whose names are signed to the foregoing deed bearing date of September 28, 1976, have and each has this day personally appeared before me in my County and State aforesaid and acknowledged the same.

Given under my hand this the 2 day of October, 1976.

My Commission expires on the 28 day of November, 1979.

Betty W. Bellamy
Notary Public

VIRGINIA, Lee County, to-wit:

At the Clerk's Office of Lee County, at 10:50 A.M. on this the 6th day of October, 1976 this Deed was presented and together with the certificate annexed, admitted to record and indexed. The taxes imposed by Section 58-54.1, of the Code of Virginia, as amended, have been paid in the amount of \$375.00.

Teste Charles Calton, Clerk
By Stephen K. Barker, D. Clerk

EXAMINED
DATE FEB 10 1988

BOOK 362 PAGE 605

THIS DEED, made and entered into this 16th day of December, 1987, by and between DALE GILBERT and STELLA GILBERT, his wife, hereinafter designated and referred to as the grantors; and, CECIL HORNE, Dryden, Virginia, hereinafter designated and referred to as the grantee;

W I T N E S S E T H :

That for and in consideration of the sum of FIFTEEN THOUSAND DOLLARS (\$15,000.00) cash in hand paid, the receipt of which is hereby acknowledged, the said grantors do hereby GRANT, BARGAIN, SELL and CONVEY unto the said grantee with General Warranty and English Covenants of Title all that certain tract or parcel of land lying and being in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, and being more particularly described as follows:

BEGINNING at an iron pin at the intersection of the southern right of way line of U.S. Alt. 58 and the western right of way line of a 50' right of way; thence leaving said U.S. Alt. 58 and with said line of a 50' right of way, S 11° 39' E, 391.89' to an iron pin corner; thence leaving said 50' right of way, N 85° 18' 00" W, 502.45' to a fence post corner in the line of Alice Lucas; thence with line of said Lucas N 11° 39' 46" W, 72.13' to a fence post corner; thence leaving said Lucas and with a new division line of James Dale Gilbert N 33° 34' 09" E, 170.08' to a point; thence with a curve to the right having a delta of 12° 09' 37", a radius of 196.14', a tangent of 20.89', an arc length of 41.63', and a degree of curve of 29° 12' 42" to an iron pin corner; thence N 11° 52' 33" W, 185.82' to an iron pin corner in the line of Ida S. Kinser; thence with said Kinser line S 85° 18' E, 330.37' to an iron pin corner in the southern right of way line of U.S. Alt. 58; thence with said right of way line of U.S. Alt. 58 S 65° 29' 24" E, 15.67' to the BEGINNING, containing 3.986 acres, and being situated one and one half mile east of Dryden, Virginia.

This conveyance is SUBJECT to certain mineral reservations and easements as were retained in the grantors' deed dated May 29, 1984, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 333 at Page 132.

BEING a part of the property Dale Gilbert acquired by deed dated May 29, 1984, from Mary Virginia Flanary Edmonds, et als, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 333 at Page 132.

TO HAVE AND TO HOLD the said tract or parcel of land unto the said grantee, his heirs or assigns, forever in fee simple, together with all the appurtenances thereunto belonging or in anywise appertaining.

GEORGE F. CRIDLIN
ATTORNEY AT LAW
NESVILLE, VIRGINIA 24263

WITNESS the following signature and seal:

Dale Gilbert (SEAL)
Dale Gilbert

Stella Gilbert (SEAL)
Stella Gilbert

STATE OF VIRGINIA

COUNTY OF LEE, to-wit;

I, the undersigned, a Notary Public in and for the County and State aforesaid, do hereby certify that Dale Gilbert, ^{and wife Stella Gilbert} ~~single~~, whose name is signed to the foregoing Deed, bearing date of November 27, 1987, has acknowledged the same before me in my County and State aforesaid.

Given under my hand this 29th day of December, 1987.

My commission expires: April 12, 1991.

Velda B. Orick
Notary Public



VIRGINIA, Lee County, to-wit:
in the Clerk's Office of Lee County, at 10:02 A.M. on this the 4th
day of January, 1988, this Deed
was presented and together with the fee of \$15.00 to pay for
the same. The taxes imposed by said law are \$15.00
paid in the amount of \$15.00.

Teste Charles Calton
By Blunty Anderson, C. Clerk

JUL 05 1984

333 132

This DEED, made and entered into on this the 29th day of May, 1984, by and between MARY VIRGINIA FLANARY EDMONDS, WIDOW, and FRANK S. FLANARY and ROSALYN FLANARY, his wife, hereinafter referred to as GRANTORS, and DALE GILBERT, SINGLE, P. O. Box 4, Dryden, Virginia 24243, hereinafter referred to as GRANTEE, provides as follows:

W I T N E S S E T H :

That for and in consideration of the sum of SEVEN THOUSAND THREE HUNDRED (\$7,300.00) DOLLARS, and other good and valuable consideration, cash in hand paid, receipt of which is hereby acknowledged, the Grantors do hereby GIVE, GRANT, BARGAIN, SELL and CONVEY unto the Grantee with Covenants of General Warranty, all that certain lot or parcel of land lying and being in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, and being more particularly bounded and described as follows:

BEGINNING at a point on State Route Alternate #58 and a fifty (50') foot right-of-way; thence N 85-18 W 502.45 feet to an iron pin; thence S 11-39 E 450.00 feet to an iron pin; thence S 85-18 E 502.45 feet to an iron pin at the 50 foot right-of-way and along said right-of-way N 11-39 W 450.00 feet to the point of BEGINNING, containing 5.00 acres, more or less, and being Lot Number 11 as shown upon a plat of the Flanary Property dated May 05, 1984, said plat to be recorded in the Clerk's Office of Lee County, Virginia, in the current deed book.

Being part of the property acquired by Bennie A. Flanary, Widow, Mary Virginia Flanary (now Edmonds), and Frank S. Flanary, by deed of record in the Clerk's Office of Lee County, Virginia, in Deed Book 193, Page 595, and being part of the property acquired by Mary Virginia Flanary Edmonds and Frank S. Flanary as the sole heirs-at-law of Bennie A. Flanary, who died intestate on July 8th, 1971.

It is understood between the parties that the Grantors RESERVE and EXCEPT from this conveyance a one-half (1/2) interest in any and all mineral rights on the hereinabove described property.

CYNTHIA D. KIMBER
ATTORNEY AT LAW
P. O. BOX 607
PRINCETON GAP, VA. 24277
(703) 940-4451

333 1st 133

There is hereby RESERVED an utility easement for power, telephone, waterline and t. v. cable along all lot lines. This easement is a variable width necessary to accommodate the installation, operation and maintenance of the above facilities. The above easement is abdicated on lines common to lots owned solely by the same party in cases where facilities are not in place.

TO HAVE AND TO HOLD said lot or parcel of land, together with all the appurtenances thereunto belonging, or in anywise appertaining, unto the said Grantee, his heirs and assigns, forever, in fee simple.

The Grantors covenant to and with the said Grantees that they have good right to convey the said land unto the Grantee, that they have done no act to encumber the same, and that the said Grantee shall have quiet and peaceable possession of the same, free from all encumbrances, and that they, the Grantors, will execute such other and further assurances of title thereto as may be deemed requisite.

WITNESS the following signatures and seals:

Mary Virginia Edmonds (SEAL)
MARY VIRGINIA FLANARY EDMONDS

Frank S. Flanary (SEAL)
FRANK S. FLANARY

Rosalyn Flanary (SEAL)
ROSALYN FLANARY

CYNTHIA D. KINSEY
ATTORNEY AT LAW
P. O. BOX 107
CHAMBERSBURG, PA. 17037
(717) 261-1000

STATE OF Virginia
CITY/COUNTY OF Lee

to-wit:

I, Winn H. Hopkins, a Notary Public in and for the City/County and State aforesaid, do hereby certify that MARY VIRGINIA FLANARY EDMONDS, WIDOW, whose name is signed to the foregoing Deed, bearing date of the 29th day of May, 1984, has acknowledged the same before me in my City/County and State aforesaid.

Given under my hand and seal on this the 6th day of June, 1984.

My Commission expires: September 01, 1985

Winn H. Hopkins
NOTARY PUBLIC

STATE OF Virginia
CITY/COUNTY OF Lee

to-wit:

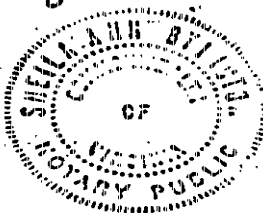
I, Sheila Byington, a Notary Public in and for the County/City and State aforesaid, do hereby certify that FRANK S. FLANARY and ROSALYN FLANARY, his wife, whose names are signed to the foregoing Deed, bearing date of the 29th day of May, 1984, have each acknowledged the same before me in my City/County and State aforesaid.

Given under my hand and seal on this the 11th day of June, 1984.

My Commission expires: August 3, 1987

Sheila Byington
NOTARY PUBLIC

CYNTHIA D. KINER
ATTORNEY AT LAW
P. O. BOX 117
PURCHASER GAP, VA. 20277
(703) 446-0000



-3-

Attest, Lee County, to-wit:
In the Clerk's Office of Lee County, at 11:30 A.M. on this the 20th day of June, 1984, this Deed was presented and together with the certificate annexed, admitted to record and indexed. The taxes imposed by Section 5-54.1, of the Code of Virginia, as amended, have been paid in the amount of \$7.50

Teste Charles Patton, Clerk
By Cynthia D. Kiner, D. Clerk

*Examined
1-16-64*

BOOK 193 PAGE 595

THIS DEED, made and entered into this the 1st. day of November, 1962, by and between PAUL R. FLANARY, single, and GOLDEN F. BONDURANT, widow, parties of the first part and BENNIE A. FLANARY, widow, MARY VIRGINIA FLANARY and FRANK S. FLANARY, all heirs of M.E. Flanary, deceased, parties of the second part.

W I T N E S S E T H:

WHEREAS, the parties hereto are the joint owners of the property herein described; and,

WHEREAS, the parties desire to partition this land,

NOW, THEREFORE, the parties of the first part do hereby grant and convey unto the parties of the second part, with covenants of general warranty, all their undivided interest in and to a certain tract of land, in the Yokum Station Magisterial District of Lee County, Virginia, which tract of land is located north of Route 642 from Woodway, Virginia, to Big Stone Gap, Virginia, and south of Route Alternate 58 from Dryden, Virginia, to Big Stone Gap, Virginia, between Route 642 and Alternate Route 58, east of Dryden, Virginia, and the same being bounded on the west by the land of Hazen Lucas, bounded on the north by the lands of Dale Gilbert, Ila Kinser and by Alternate Route 58, bounded on the east by land of Earl Stapleton, bounded on the south east by lands of Marshall Coomer and Joshua Pennington, bounded on the south by Route 642, bounded on the south west by land of the Old Elkanah Flanary Home Place, containing 130 acres more or less.

For reference as to the chain of title to said property, reference is made to deeds recorded in the Office of the Clerk of the Circuit Court of Lee County, Virginia, in Deed Book 22, page 28; Deed Book 22, page 30; Deed Book 22, page 31; Deed Book 37, page 436; Deed Book 37, page 549; Deed Book 91, page 123 and to the Will of Elkanah Flanary recorded in said Clerk's

Office in Will Book 3, page 574.

Golden F. Bondurant, one of the parties of the first part, grants to the parties of the second part, their heirs and assigns, an easement across her 100 acre tract of land south of Route 642, for the purpose of using and maintaining the existing water pipe line from a spring on the Hobbs tract. Said easement is for the benefit of the Old Elkanah Flanary Home Place, which E.S. Flanary acquired under the Will of Elkanah Flanary.

Witness the following signatures and seals, this the day, month and year first above written.

Paul R. Flanary (SEAL)

Golden F. Bondurant (SEAL)

STATE OF VIRGINIA

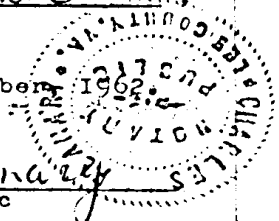
COUNTY OF LEE, to-wit:

I, Charles Flanary a Notary Public, for the County aforesaid, in the State of Virginia, do certify that Paul R. Flanary, single, and Golden F. Bondurant, Widow, whose names are signed to the writing above, bearing date on the 1st day of November, 1962, have acknowledged the same before me, in my County aforesaid.

My commission expires on the 23 day of Dec 1963.

Given under my hand this 1st day of November, 1962.

Charles Flanary
Notary Public



Virginia, Lee County, to-wit:

In the Clerk's Office of Lee County, at 2:50 P.M. on this the 10th day of January 1964 this Partition Deed was presented, properly stamped, and together with the certificate annexed, admitted to record and indexed.

Tes Arthur K. Burchette Clerk
By _____ D. Clerk

EXAMINED

DATE JAN. 09 1990

JAN. 09 1990 380 629

THIS DEED, made and entered into this 8th day of December, 1989, widow, by and between ALICE B. LUCAS, widow, hereinafter designated and referred to as the grantor; and, CROSS CREEK ESTATES, INC., Rt. 1, Dryden, VA 24243, hereinafter designated and referred to as the grantee;

W I T N E S S E T H :

That for and in consideration of the sum of TEN DOLLARS, (\$10.00), cash in hand paid, the receipt of which is hereby acknowledged, and other good and valuable consideration, the said grantor does hereby GRANT, BARGAIN, SELL, and CONVEY unto the grantee, with General Warranty and English Covenants of Title, all those certain tracts or parcels of land lying and being in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, situated one and one half miles east of Dryden, and being a 50 foot road right of way, bounded and further described as follows:

BEGINNING at a point on the intersection of the southern right of way line of U. S. Alt. 58 and the western right of way line of a 50' right of way; thence leaving line of U. S. Alt. 58 and with said line of a 50' right of way S 11 degrees 39' E 51.15' to a point; thence leaving line of said 50' right of way S 66 degrees 09' 39" W 259.976 to a point; thence with a curve to the left having a delta of 32 degrees 35' 33", a radius of 146.14', a tangent of 42.72', an arc length of 83.13' and a degree of curve of 39 degrees 12' 21" to a point; thence S 33 degrees 34' 09" W, 235.03' to a point; thence with a curve to the left having a delta of 30 degrees 06' 13", a radius of 160.93', a tangent of 43.28', an arc length of 84.55', and a degree of curve of 35 degrees 36' 10" to a point; thence S 3 degrees 27' 54" W, 344.58' to a point; thence with a curve to the right having a delta of 18 degrees 58' 21", a radius of 623.46', a tangent of 104.18', and an arc length of 206.45' and a degree of curve of 9 degrees 11' 23" to a point; thence S 22 degrees 26' 15" W, 221.10' to a point; thence with a curve to the right having a delta of 8 degrees 55' 51", a radius of 1305.50', a tangent of 101.95', an arc length of 203.49' and a degree of curve of 4 degrees 23' 19" to a point; thence S 31 degrees 22' 06" W, 311.82' to a point; thence S 66 degrees 43' 09" W, 86.42' to a point; thence N 31 degrees 22' 06" E, 382.31' to a point; thence with a curve to the left having a delta of 8 degrees 55' 51", a radius of 1255.50', a tangent of 98.05', an arc length of 195.70', and a degree of curve of 4 degrees 33' 48" to a point; thence N 22 degrees 26' 15" E, 221.10' to a

GEORGE F. CRIDLIN
ATTORNEY AT LAW
MANASSAS, VIRGINIA 22040

point; thence with a curve to the left having a delta of 18 degrees 58' 21", a radius of 573.46', a tangent of 95.82', an arc length of 189.89' and a degree of curve of 9 degrees 59' 28" to a point; thence N 3 degrees 27' 54" E, 344.58' to a point; thence with a curve to the right having a delta of 30 degrees 06' 14", a radius of 210.93', a tangent of 56.72', and an arc length of 110.83' and a degree of curve of 27 degrees 09' 48", to a point; thence N 33 degrees 34' 09" E, 235.03' to a point; thence with a curve to the right having a delta of 32 degrees 35' 32", a radius of 196.14', a tangent of 57.34', and an arc length of 111.57', and a degree of curve of 29 degrees 12' 42" to a point; thence N 66 degrees 09' 39" E, 270.77' to the BEGINNING, and being across lands which the party of the first part acquired by deed of record in the Clerk's Office of Lee County, Virginia, in Deed Book 229 at page 62, and Deed Book 118 at Page 281.

And being the same property conveyed by Deed of Easement dated November 27, 1987, from the grantor to Cecil Horne, recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 362 at Page 607. Cecil Horne subsequently conveyed said property by Deed dated September 27, 1988, recorded in said Clerk's Office in Deed Book 369 at Page 825 and thereafter reacquired said property by Deed dated April 13, 1989, recorded in said Clerk's Office in Deed Book 380 at Page 180. The purpose of this conveyance being to convey in fee simple the same property which the grantor conveyed originally by Deed of Easement only, it being understood the above described property describes a strip of land connecting U. S. Alt. 58 to a subdivision known as Cross Creek Estates, Inc. which is currently paved and is a center strip of the grantee's property.

TO HAVE AND TO HOLD the said tract or parcel of land unto the grantee, its successors or assigns forever, in fee simple, together with all the appurtenances thereunto belonging or in anywise appertaining.

WITNESS the following signature and seal:

 (SEAL)
ALICE B. LUCAS

GEORGE F. CRIDLIN
ATTORNEY AT LAW
ONESVILLE, VIRGINIA 24263

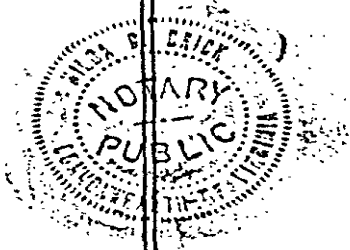
STATE OF VIRGINIA

COUNTY OF LEE, to-wit:

I, the undersigned, a Notary Public in and for the County and State aforesaid, do hereby certify that Alice B. Lucas, widow, whose name is signed to the foregoing Deed, bearing date of December 8, 1989, has acknowledged the same before me in my County and State aforesaid.

Given under my hand this 10th day of December, 1989.

My commission expires: April 12, 1991.



Nilda B. Orick
Notary Public

WITNESSETH, I, the County, to-wit:
a Clerk of Lee County, at 4:28 AM on this the 10th
of December, 1989 this Deed
was presented and together with the certificate annexed, admitted to record as
required. The taxes imposed by Section 55-511, of the Code of Virginia, as
amended, have been paid in the amount of \$1.00

Teste Charles Calton, Clerk
By Beverly Anderson, D. Clerk

GEORGE F. CRIDLIN
ATTORNEY AT LAW
JONESVILLE, VIRGINIA 24263

EXAMINED
DATE FEB 10 1988

BOOK 362 PAGE 607

THIS DEED OF EASEMENT, made and entered into this 27th day of November, 1987, by and between ALICE B. LUCAS, widow, party of the first part; and, CECIL HORNE, Rt. 1, Box 46, Dryden, Virginia, party of the second part;

W I T N E S S E T H :

That for and in consideration of the sum of TEN DOLLARS (\$10.00) cash in hand paid, and other good and valuable consideration, the receipt of which is hereby acknowledged by the party of the first part, the said party of the first part does hereby GRANT and CONVEY unto Cecil Horne, his successors and assigns, the following described easement, to-wit:

Being a proposed 50' road right of way situated one and one half miles east of Dryden and being in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, and being more particularly described as follows, to-wit:

BEGINNING at a point on the intersection of the southern right of way line of U. S. Alt. 58 and the western right of way line of a 50' right of way; thence leaving line of U. S. Alt. 58 and with said line of a 50' right of way S 11° 39' E, 51.15' to a point; thence leaving line of said 50' right of way S 66° 09' 39" W, 259.976 to a point; thence with a curve to the left having a delta of 32° 35' 33", a radius of 146.14', a tangent of 42.72', an arc length of 83.13' and a degree of curve of 39° 12' 21" to a point; thence S 33° 34' 09" W, 235.03' to a point; thence with a curve to the left having a delta of 30° 06' 13", a radius of 160.93', a tangent of 43.28', an arc length of 84.55', and a degree of curve of 35° 36' 10" to a point; thence S 3° 27' 54" W, 344.58' to a point; thence with a curve to the right having a delta of 18° 58' 21", a radius of 623.46', a tangent of 104.18', and an arc length of 206.45' and a degree of curve of 9° 11' 23" to a point; thence S 22° 26' 15" W, 221.10' to a point; thence with a curve to the right having a delta of 8° 55' 51", a radius of 1305.50', a tangent of 101.95', an arc length of 203.49' and a degree of curve of 4° 23' 19" to a point; thence S 31° 22' 06" W, 311.82' to a point; thence S 66° 43' 09" W, 86.42' to a point; thence N 31° 22' 06" E, 382.31' to a point; thence with a curve to the left having a delta of 8° 55' 51", a radius of 1255.50', a tangent of 98.05', an arc length of 195.70', and a degree of curve of 4° 33' 48" to a point; thence N 22° 26' 15" E, 221.10' to a point; thence with a curve to the left having a delta of 18° 58' 21", a radius of 573.46', a tangent of 95.82', an arc length of 189.89' and a degree of curve of 9° 59' 28" to a point; thence N 3° 27' 54" E, 344.58' to a point; thence with a curve to the right having a delta of 30° 06' 14", a radius of 210.93', a tangent of 56.72', and an arc length of 110.83' and a degree of curve of 27° 09' 48", to a point; thence N 33° 34' 09" E, 235.03' to a point; thence with a curve to the right having a delta of 32° 35' 32", a radius of 196.14', a tangent of 57.34', and an arc length of 111.57', and a degree of curve of 29° 12' 42" to a point; thence N 66° 09' 39" E, 270.77' to the BEGINNING, and being across lands which the party of the first part acquired by deed of record in the Clerk's Office of Lee County, Virginia, in Deed Book _____ at Page _____. Said easement shall be for the purpose of ingress to and egress from the lands of the party of the second part, which lands were conveyed to the party of the second part by deed dated _____, and of record in the Clerk's Office of Lee County, Virginia, in Deed Book _____ at Page _____.

GEORGE F. CRIDLIN
ATTORNEY AT LAW
LEESVILLE, VIRGINIA 24263

The party of the first part agrees that the above described 50' easement will be developed and maintained by the party of the second part and that a large volume of traffic may traverse said road as it is contemplated that a large housing development to be developed on the property of the party of the second part will travel thereto across said road which leads to U. S. Alt. 58.

As evidenced by his acceptance and recordation of this deed, the party of the second part hereby agrees for himself and his successors in title, to pay ~~one-half~~ ^{ALL} of the costs of maintenance of said right-of-way.

WITNESS the following signature and seal:

Alice B. Lucas (SEAL)
Alice B. Lucas

STATE OF VIRGINIA

COUNTY OF LEE, to-wit;

I, the undersigned, a Notary Public in and for the County and State aforesaid, do hereby certify that Alice B. Lucas, whose name is signed to the foregoing Deed of Easement, bearing date of November 27, 1987, has acknowledged the same before me in my County and State aforesaid.

Given under my hand this 28th day of December, 1987.

My commission expires: April 12, 1991.

Wilder B. Orick
Notary Public



Virginia Lee County, to-wit:
the Clerk's Office of Lee County
the 4th day of January, 1988
presented and together with the Easement
and indexed.

Teste: Charles Colton
By: Wilder B. Orick

GEORGE F. CRIDLIN
ATTORNEY AT LAW
LEESVILLE, VIRGINIA 24260

*Examined
1-20-72*

BOOK 220 PAGE 62

This DEED made and entered into this the 8th day of January, 1972, by and between CHARLES W. LUCAS, single, MARY RUTH FLANARY and CHARLES R. FLANARY, her husband, EMILY ANN CAUDILL, divorced, parties of the first part and ALICE LUCAS, party of the second part,

WITNESSETH:

That for One (\$1.00) Dollar, and other good and valuable consideration, the receipt of which is hereby acknowledged, the parties of the first part do hereby GRANT, BARGAIN, SELL and CONVEY unto the party of the second part with Covenants of General Warranty of Title, all their undivided right, title and interest in and to real estate lying and being in the Yokum Station Magisterial District of Lee County, Virginia, described as follows:

No. 1: BEGINNING at a rock near the old Litton Barn; thence S 63-30 W 640 feet to a hub a corner to tract No. 1; thence N 8-15 W 1000 feet to a hub; thence N 22 E 1250 feet to a hub in the old road and with the center of the same 306½ feet to Litton's corner; thence S 15 45 E 115 feet to E. S. Flanary's corner; thence S 15-45 E 2674 feet to a hub in a branch; thence S 49 W 398.5 feet to a rock; thence N 43 W 59 feet; thence West 10 feet to an X mark on a rock at head of Cave Spring; thence S 9-30 E 99 feet; thence 78-30 W 127 feet, N 15 45 W 1236 feet to the BEGINNING, containing 51 acres.

Being the same real estate which was conveyed to H. B. Lucas and Alice Lucas, by deed dated April 10, 1946, recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 118, page 281.

No. 2: A strip of land lying between the old and new road beginning at a hub on the Litton line and in the south edge of the Main State Highway right-of-way; thence N 74-15 W 174 feet to a marker; thence N 76-45 W 241 feet; thence N 78 W 157.5 feet

thence N 80 30 W 157.5 feet; thence South 4.5 feet to a rock;
thence with the center of the old pike road S 65 E 147.5 feet to
a rock, S 71 30 E 353 feet to a hub; thence S 82 E 107 feet
thence S 81 30 E 132.5 feet to the Litton line and with the same
N 8 E 52 feet to the BEGINNING.

Reference is here made to deed of record in the Clerk's
Office of Lee County, Virginia, from Ira Lucas, single, to H. B.
Lucas, for the particulars thereof.

The parties of the first part acquired their interest in
the above described tracts of parcels of land from H. B. Lucas,
who died intestate on the 3 day of JANUARY, 1972.

To have and to hold said undivided interest in said tracts
or parcels of land unto the party of the second part, her heirs
and assigns forever in fee simple, together with all the
appurtenances thereunto belonging or in anywise appertaining.

And the parties of the first part covenant to and with the
party of the second part that they have the right to convey
their interest in said real estate; that they have done no act
to encumber the same; that the party of the second part shall
have quiet and peaceable possession of said real estate, free
from all encumbrances, and that they, the parties of the first
part will execute such other and further assurances of title
to their interest in said real estate as may be requisite.

Witness the following signatures and seals.

Charles W. Lucas (SEAL)

Charles R. Flanary (SEAL)

Mary Ruth Flanary (SEAL)

Emily Ann Casdell (SEAL)

State of Virginia,

County of Lee, to-wit:

I, Betty W. Buehling, a notary public of and for the County and State aforesaid do hereby certify that Charles W. Lucas, single, Mary Ruth Flanary and Charles R. FLANARY, her husband, and Emily Ann Caudill, divorced, whose names are signed to the foregoing deed bearing date of January 8, 1972, have and each has this day personally appeared before me and acknowledged the same.

Given under my hand this the 8 day of January, 1972.
My Commission expires on the 7 day of December, 1975.

Betty W. Buehling
Notary Public

VIRGINIA, Lee County, to-wit:

In the Clerk's Office of Lee County, at 10:50 ^{A.M.} ~~pm~~ on this the 10th day of January, 1972 this Deed was presented and together with the certificate annexed, admitted to record and indexed. The taxes imposed by Section 58-54.1, of the Code of Virginia, as amended, have been paid in the amount of 30⁰⁰.

Teste Arthur J. Burchette, Clerk
By Patricia L. Parnis, D. Clerk

EXAMINED
DATE JUN 28 1988

BOOK 365 PAGE 652

THIS DEED, made and entered into this 29 day of April, 1988, by and between GEORGE F. CRIDLIN, Special Commissioner, hereinafter designated and referred to as the grantor; and, CECIL HORNE, Dryden, Virginia, hereinafter designated and referred to as the grantee;

W I T N E S S E T H :

THAT, WHEREAS, by Decree of the Circuit Court for the County of Lee, Virginia, entered on the 29th day of APR. 1, 1988, in the chancery cause of Cecil Horne vs. Tip Barnes, et als, the said George F. Cridlin was appointed Special Commissioner and authorized and directed to prepare, execute and deliver this deed unto Cecil Horne, or such person or persons as he may designate, upon the payment of the consideration therein recited; and the said Cecil Horne has directed said Special Commissioner to convey this property unto the said Cecil Horne, herein referred to as grantee.

NOW, THEREFORE, IN CONSIDERATION of the premises and of the further consideration as set forth in a Court Order hereinafter referred to, George F. Cridlin, Special Commissioner as hereinabove set forth, grantor, does hereby grant and convey with Special Warranty of Title unto Cecil Horne, grantee, all of the following lot or parcel of land lying and being in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, and more particularly described as follows:

BEGINNING at an iron pin at the northeast corner of the tract hereby conveyed; thence S 27° 02' 07" E 203.71 feet to an iron pin; thence S 62° 28' 17" W 69.75 feet to an iron pin; thence N 23° 24' 08" W 204.33 feet to an iron pin; thence N 62° 34' 09" E 56.80 feet to an iron pin and being the point of BEGINNING, and containing 0.296 acre, and being designated as Tract A on a plat, dated 4-5-88, labeled "Map Showing Cemeteries Located on the Cecil Horne Property," drawing number C-1368-95-72, said plat to be recorded in the Clerk's Office of Lee County, Virginia.

George F. Cridlin executes this deed pursuant to an Order entered on the 29 day of April, 1988, in the Chancery cause in the Circuit Court of Lee County, Virginia styled Cecil Horne vs. Tip Barnes, et als, said order being of record in Chancery Order Book _____ at Page _____, which order indicates in more detail the consideration for this tract of land.

TO HAVE AND TO HOLD unto Cecil Horne and to his heirs or assigns in

GEORGE F. CRIDLIN
ATTORNEY AT LAW
CHESVILLE VIRGINIA 24263

BOOK 365 - 653

fee simple forever.

WITNESS the following signature and seal:

George F. Cridlin (SEAL)
George F. Cridlin, Special Commissioner

STATE OF VIRGINIA

COUNTY OF LEE, to-wit;

I, the undersigned, a Notary Public in and for the County and State aforesaid, do hereby certify that George F. Cridlin, Special Commissioner, whose name is signed to the foregoing Deed, bearing date of April 29, 1988, has acknowledged the same before me in my County and State aforesaid.

Given under my hand this 29 day of April, 1988.

My commission expires: 1-26-91.

Kathy B. Harber
Notary Public

VIRGINIA, Lee County, to-wit:
in the Clerk's Office of Lee County, at 3:36 P.M. on this the 3rd
day of May, 1988, this Deed & Plat
was presented and together with the certificate annexed, admitted to record and
indexed. The taxes imposed by Section 58-1-1, of the Code of Virginia, as
amended have been paid in the amount of \$2.50.

Teste Cynthia Calton, Clerk
By Cathy Asmigo, D. Clerk

See Plat Slide
C-24

GEORGE F. CRIDLIN
ATTORNEY AT LAW
WINESVILLE VIRGINIA 24360

VIRGINIA: IN THE CIRCUIT COURT OF LEE COUNTY

CECIL HORNE and
JENELLE HORNE

VS.

All persons related to TIP BARNES, dod May 8, 1951;
NELLIE JANE BARNES, dod Augsut 12, 1910;
GERTRUDE BARNES, dod March 5, 1910;
VIRGINIA BARNES, dod March 30, 1912;
ANAME MOLY HOBBS: and
JABE HOBBS, all owners, trustees or persons having a right
thereto to a graveyard located on the property of the
complainants, located in the Yokum Station Magisterial District
of Lee County, Virginia, near Dryden, Lee County, Virginia

ORDER

This cause came to be heard upon the petition of the
plaintiffs, and depositions submitted in support of their
claim, and upon review of the evidence it appears to the
Court that pursuant to Virginia Code Section 57-39 there
remains on the petitioners' property evidence of an old,
abandoned and vacated graveyard which has been neglected
and is in a state of neglect and disuse with no parties in
interest for many years attending to any of the gravesites;
it further appearing that the petitioners own said graveyard
and that there are no exceptions in the chain of title to
reserve said property to any individual, church or group;
and it further appearing that the location of said apparent
burial ground adversely effects and interferes with proper
usage of the plaintiffs' land, and it further appearing that
the petitioners are willing to guarantee proper and suitable
removal of the identifiable graves to a more appropriate

spot near a cemetery on the petitioners' land at their cost, and it appearing to the Court that it is in the best interest of all parties to authorize the removal of the remains from the land in question, and it is therefore, ORDERED, that Cecil Horne and Jenelle Horne cause a properly licensed undertaker or mortician who in compliance with state law shall go upon the property and remove the identifiable gravesites from the property in question to a nearby adjacent location which the plaintiffs have set out and identified as a more suitable gravesite; it is further ORDERED that all identifiable markers be appropriately placed on the new gravesites and the new burial site and that all costs of reinterment be the expense of Cecil and Jenelle Horne, petitioners to this cause; and it is further ORDERED that pursuant to the petitioners assuming full responsibility for the removal and transfer and reinterment of the identifiable gravesites and erection of the markers at their expense that in consideration therefore George F. Cridlin, Special Commissioner be appointed to enter a Deed of Special Warranty for the former cemetery plot to Cecil Horne. Subject to the Order being fully complied with this cause is ORDERED dismissed.

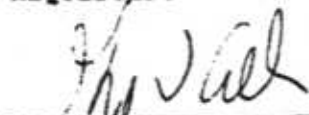
ENTER this Order this 29th day of April, 1988.

George F. Cridlin
JUDGE

GEORGE F. CRIDLIN
ATTORNEY AT LAW
EVILLE, VIRGINIA 22623

40 PAGE 833

REQUESTED:



George F. Cridlin
Attorney at Law
P. O. Box 703
Jonesville, VA 24263

GEORGE F. CRIDLIN
ATTORNEY AT LAW
JONESVILLE, VIRGINIA 24263

EXAMINED
DATE 11 28 1988

BOOK 367 PAGE 251

THIS DEED, made and entered into this the 24th day of June, 1988, by and between Ila S. Kinser, single, hereinafter designated and referred to as the grantor, and Cecil Horne, Dryden, Virginia, hereinafter designated and referred to as the grantee;

WITNESSETH:

That for and in consideration of the sum of TEN DOLLARS (\$10.00), cash in hand paid, the receipt of which is hereby acknowledged, and other good and valuable consideration, the said grantor does hereby Grant, Bargain, Sell and Convey unto the grantee, with General Warranty and English Covenants of Title, all that certain tract or parcel of land lying and being in the Yokum Station Magisterial District of Lee County, Virginia, bounded and further described as follows:

BEGINNING at a $\frac{1}{4}$ " rebar (found) at the intersection of the southerly right of way line of U. S. Alt. Route 58 and the westerly line of a 50 foot right of way and a common corner to Cecil Horne property; thence leaving said intersection point and with a common line to said Cecil Horne property N 85-18-00 W, 118.41 feet to a $\frac{3}{4}$ " rebar (set this survey); thence leaving said Cecil Horne property and with a new division line of Ila S. Kinser property N 23-55-11 E, 38.98 feet to a $\frac{3}{4}$ " rebar (set this survey) in said right of way of U. S. Alt. Route 58; thence with said right of way line S 66-04-49 E, 111.81 feet to the BEGINNING, and containing 0.050 acres, as shown on a plat of the Ila S. Kinser Property, dated 6/23/88, drawing number A-1448-98-54, which plat is to be recorded in the Clerk's Office of Lee County, Virginia, with this Deed.

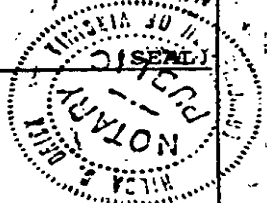
BEING a portion of the property acquired by the grantor by Deed dated January 17, 1962, of record in the Clerk's Office of Lee County, Virginia, in Deed Book 182 at Page 566.

TO HAVE AND TO HOLD the said tract or parcel of land unto the grantee, his heirs or assigns forever, in fee simple, together with all the appurtenances thereunto belonging or in anywise appertaining.

JORGE F. CRIDLIN
ATTORNEY AT LAW
LEESVILLE VIRGINIA 24263

WITNESS the following signature and seal.

Ila S. Kinser



STATE OF VIRGINIA

COUNTY OF LEE, to-wit:

I, the undersigned, a Notary Public in and for the County and State aforesaid, do hereby certify that Ila S. Kinser, single, whose name is signed to the foregoing Deed, bearing date of June 24, 1988, has acknowledged the same before me in my County and State aforesaid.

Given under my hand this 27th day of June, 1988.

My commission expires: April 12, 1991.

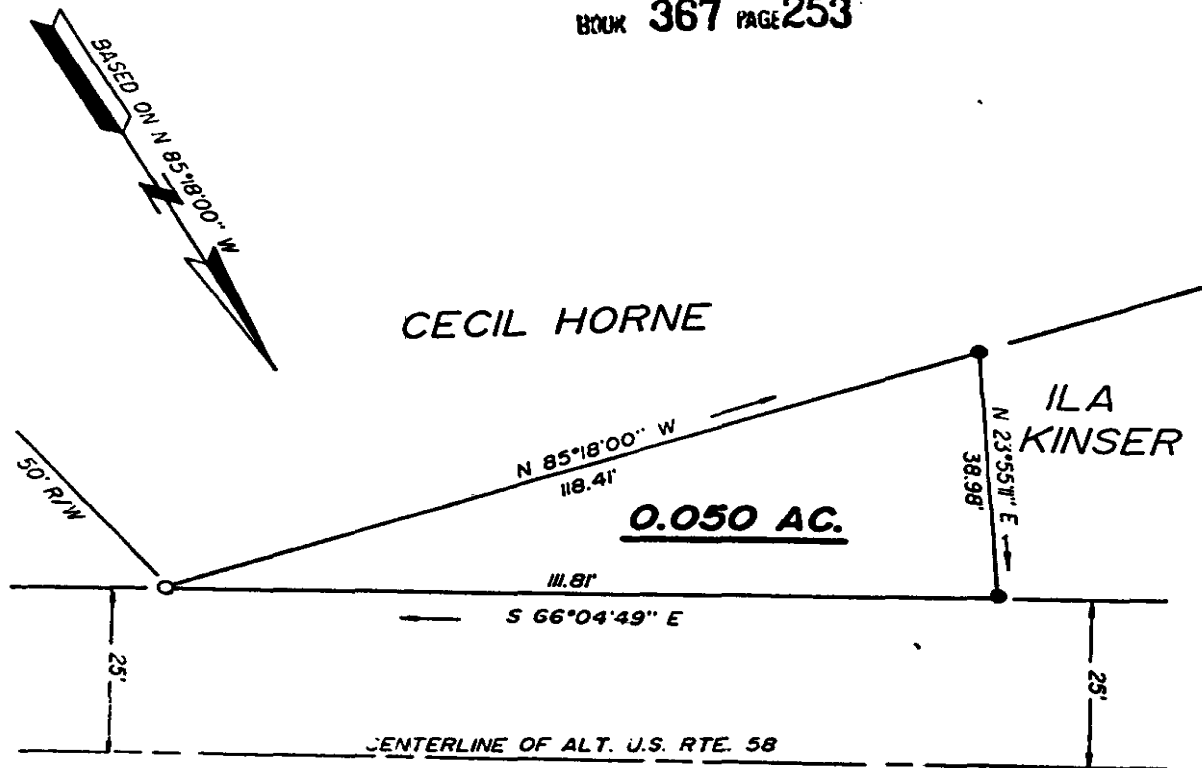
Willie B. Orick
Notary Public

VIRGINIA, Lee County, to-wit:

in the Clerk's Office of Lee County, at 3:25 A.M. on this the 27th day of June, 1988 this Deed & Plat was presented and together with the certificate annexed, admitted to record and indexed. The taxes imposed by Section 53-54.1, of the Code of Virginia, as amended, have been paid in the amount of 1.50.

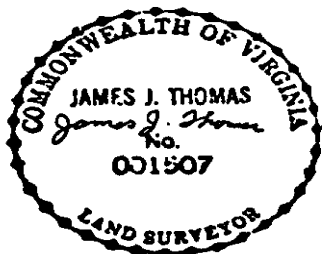
Teste Charles C. Carter, Clerk

By Cathy Arriaga, D. Clerk



- DENOTES 3/4" REBAR (SET THIS SURVEY)
- DENOTES 1/2" REBAR FOUND

SURVEYED BY:
CUMBERLAND PARTNERS
P. O. BOX 456
JONESVILLE, VA. 24263
PHONE (703) 346-3025

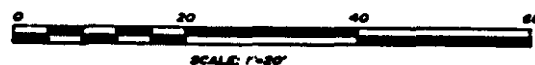


MAP SHOWING A PORTION OF
ILA S. KINSER PROPERTY
DEED BOOK 182, PAGE 566
YOKUM STATION DISTRICT OF
LEE COUNTY, VIRGINIA

FOR: CECIL HORNE

DATE: 6-23-1988

DRAWN BY: JEC



DRAWING NUMBER:

A - 1448 - 98 - 54

*Examined
2-1-62*

BOOK 182 PAGE 566

THIS DEED, made and entered into this the 17th day of January, 1962, by and between James Dale Gilbert and Stella Gilbert, his wife, parties of the first part, and Ila S. Kinser, party of the second part:

WITNESSETH:

That for and in consideration of the sum of FIVE THOUSAND (\$5000) DOLLARS, cash in hand paid, the receipt of which is hereby acknowledged, the parties of the first part hereby grant, bargain, sell and convey unto the party of the second part, with covenants of General Warranty of title, that certain parcel or lot of land situate about one and one-half miles east of Iryden, Yokum Station Magisterial District of Lee County, Virginia, and being the same parcel of land conveyed to Dale Gilbert and Stella Gilbert, his wife, on the 7th day of May, 1964, by Cora Collier, widow, which deed is of record in the Clerk's Office, Lee County, Virginia, in Deed Book No. 142, page 373, and to which reference is here made, and said lot or parcel of land hereby conveyed is bounded and described as follows:

Beginning at a stake on the south side of the New Highway No. 66, thence S 17-15 W 107 feet to a stake in the Planary line, and with the same N 87 E 307 feet to a stake on the south side of said Highway, and with the same N 70-20 W 292 feet to the Beginning, containing $\frac{1}{4}$ of an acre, more or less.

The parties of the first part hereby grant to the party of the second part, her heirs and assigns, the right to get water from a well located on adjoining property owned by the parties of the first part; a pipe line is now installed from the said well on adjoining property to the house located on the property hereby conveyed. The party of the second part is not to pay any water rent nor any part of the electric bill for running water from the well to her house but is to pay one-half ($\frac{1}{2}$) of the expenses of maintaining the pipe line, well and electric pump.

To have and to hold said lot of land unto the grantee, her heirs and assigns forever, in fee simple, together with all appurtenances thereunto belonging or in anywise appertaining.

EX- 182 567

Witness the following signatures and seals.

James Dale Gilbert (SEAL)
James Dale Gilbert

Stella Gilbert (SEAL)
Stella Gilbert

State of Virginia,
County of Lee, to-wit:

I, Riley W. Shanks, a Commissioner in Chancery for the Circuit Court of Lee County, Virginia, hereby certify that James Dale Gilbert and Stella Gilbert, whose names are signed to the foregoing writing, bearing date on the 17th day of January, 1962, have acknowledged the same before me in my county and state aforesaid.

Given under my hand this 18th day of January, 1962.

Riley W. Shanks
Commissioner in Chancery

Virginia, Lee County, to-wit:

In the County of Lee County, at 10:00 P.M. on this
the 18th day of January, 1962, I, Richard J. Archette was
presented to me by Nanette Ely and I, Richard J. Archette certify
approved, signed to record and indexed.

I, Richard J. Archette
By Nanette Ely Clerk

FILED
DATE JUL 9 1999

494 PAGE 540

Form RJS 3550-14 VA
(Rev. 11-96)

(Space Above This Line For Recording Data)

United States Department of Agriculture
Rural Housing Service

DEED OF TRUST FOR VIRGINIA

THIS DEED OF TRUST ("Security Instrument") is made on JUNE 10, 1999
The grantor is SHARON E. DAUGHERTY
("Borrower")

The trustee is PHILLIP H. STETSON, CULPEPER BUILDING, SUITE 238, 1606 SANTA ROSA ROAD,
RICHMOND, VIRGINIA 23229 of HANOVER COUNTY Virginia, and

Virginia, trustees (any one of whom may act and are referred to as "Trustee"). The beneficiary is the United States of America acting through the Rural Housing Service or successor agency, United States Department of Agriculture, whose address is Rural Housing Service, c/o Centralized Servicing Center, United States Department of Agriculture, P.O. Box 66889, St. Louis, Missouri 63166

Borrower is indebted to Lender under the following promissory notes and/or assumption agreements (herein collectively called "Note") which have been executed or assumed by Borrower and which provide for monthly payments, with the full debt, if not paid earlier, due and payable on the maturity date:

<u>Date of Instrument</u>	<u>Principal Amount</u>	<u>Maturity Date</u>
June 10, 1999	\$57,600.00	June 10, 2032

This Security Instrument secures to Lender: (a) the repayment of the debt evidenced by the Note, with interest, and all renewals, extensions and modifications of the Note; (b) the payment of all other sums, with interest, advanced under paragraph 7 to protect the property covered by this Security Instrument; (c) the performance of Borrower's covenants and agreements under this Security Instrument and the Note, and (d) the recapture of any payment assistance and subsidy which may be granted to the Borrower by the Lender pursuant to 42 U.S.C. § 1472(g) or 1490(a). For this purpose, Borrower irrevocably grants and conveys to Trustee, in trust, with power of sale, the following described property located in LEE COUNTY, Virginia:

See legal description attached as Exhibit A
This is a Purchase Money Deed of Trust

which has the address of (Street) 102 REDBUD LANE (City) DRYDEN,
VIRGINIA ("Property Address") 24243

(2p)

Exception from taxation under Virginia Code sections 58.1 and 58.1-903 is claimed under Virginia Code section 58.1-811 and 42 U.S.C. 1490(h).

EXHIBIT A

That certain tract or parcel of land situate, lying and being near the community of Dryden in the YOKUM STATION MAGISTERIAL DISTRICT of Lee County, Virginia, said tract or parcel of land being made up of all of LOT 87 and a *portion* of LOT 94 of Cross Creek Estates, Inc. and being more particularly described by a current survey as:

BEGINNING at an iron pin found in the southerly line of Oak Street (SR 1055), said iron pin being a common corner to Lot 87 and Lot 88; thence leaving Oak Street and with the line between said Lot 87 and Lot 88 S 02d 54' 00" W 106.14 feet to an iron pin found, said iron pin being a common corner to Lots 87, Lot 88, Lot 94, and Lot 95; thence with the line between Lot 94 and Lot 95 S 02d 46' 00" W 13.16 feet to an iron pin set; thence leaving the line between Lot 94 and Lot 95 and with a new line through Lot 94 N 81d 45' 00" W 125.11 feet to an iron pin set in the easterly line of Redbud Lane (SR1058); thence with said line of said lane along a curve to the left 93.37 feet to an iron pin found, said curve having a radius of 1360.64 feet, a delta angle of 03d 55' 45", and a chord with bearing and distance of N 15d 43' 04" E 93.29 feet to an iron pin found; thence continuing along a curve to the right 35.95 feet to an iron pin found in the southerly line of the aforesaid Oak Street, said curve having a radius of 25.00 feet, a delta angle of 82d 23' 29", and a chord with bearing and distance of N 54d 29' 16" E 32.93 feet; thence with said line of said street S 84d 19' 00" E 78.12 feet to the BEGINNING and containing 12,915.54 square feet or 0.296 acre as shown on a plat dated April 22, 1999, by W. R. Palmer, Registered Land Surveyor, said plat to be recorded herewith this deed.

There is also CONVEYED herewith a right of ingress and egress across all necessary streets as are dedicated by a Deed of Dedication recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 380, at Page 185, and as shown on a prior plat of Cross Creek Estates, Inc., of record in Plat Slide C-61.

This conveyance is made expressly subject to all easements, reservations, rights of way, encumbrances, covenants and restrictions of record, including, without limitation, covenants and easements and a Declaration of Restrictions, which is recorded in the Clerk's Office of Lee County, Virginia, in Deed Book 380 at page 194, together with a plat known as Cross Creek

494 PAGE 542

Estates, Inc., drawn by Thompson & Litton, Inc., dated May, 1988, Project Pt 3984, of record in Plat Slide C-61.

BEING the same property which Sharon E. Daugherty acquired by deed dated May 5, 1999, from Lee County Redevelopment And Housing Authority, which deed is to be recorded in the Office of the Clerk of the Circuit Court of the County of Lee, Virginia, immediately prior to the recordation of this deed of trust.

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances, and fixtures which now or hereafter are a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing is referred to in this Security Instrument as the "Property."

BORROWER COVENANTS that Borrower is lawfully seised of the estate hereby conveyed and has the right to grant and convey the Property and that the Property is unencumbered, except for encumbrances of record. Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to any encumbrances of record.

THIS SECURITY INSTRUMENT combines uniform covenants for national use and non-uniform covenants with limited variations by jurisdiction to constitute a uniform security instrument covering real property.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. **Payment of Principal and Interest; Prepayment and Late Charges.** Borrower shall promptly pay when due the principal of and interest on the debt evidenced by the Note and any prepayment and late charges due under the Note.

2. **Funds for Taxes and Insurance.** Subject to applicable law or to a written waiver by Lender, Borrower shall pay to Lender on the day monthly payments are due under the Note, until the Note is paid in full, a sum ("Funds") for: (a) yearly taxes and assessments which may attain priority over this Security Instrument as a lien on the Property; (b) yearly leasehold payments or ground rents on the Property, if any; (c) yearly hazard or property insurance premiums, and (d) yearly flood insurance premiums, if any. These items are called "Escrow Items." Lender may, at any time, collect and hold Funds in an amount not to exceed the maximum amount a lender for a federally related mortgage loan may require for Borrower's escrow account under the federal Real Estate Settlement Procedures Act of 1974 as amended from time to time, 12 U.S.C. § 2601 *et seq.* ("RESPA"), unless another law or federal regulation that applies to the Funds sets a lesser amount. If so, Lender may, at any time, collect and hold Funds in an amount not to exceed the lesser amount. Lender may estimate the amount of Funds due on the basis of current data and reasonable estimates of expenditures of future Escrow Items or otherwise in accordance with applicable law.

The Funds shall be held by a federal agency (including Lender) or in an institution whose deposits are insured by a federal agency, instrumentality, or entity. Lender shall apply the Funds to pay the Escrow Items. Lender may not charge Borrower for holding and applying the Funds, annually analyzing the escrow account, or verifying the Escrow Items, unless Lender pays Borrower interest on the Funds and applicable law permits Lender to make such a charge. However, Lender may require Borrower to pay a one-time charge for an independent real estate tax reporting service used by Lender in connection with this loan, unless applicable law provides otherwise. Unless an agreement is made or applicable law requires interest to be paid, Lender shall not be required to pay Borrower any interest or earnings on the Funds. Borrower and Lender may agree in writing, however, that interest shall be paid on the Funds. Lender shall give to Borrower, without charge, an annual accounting of the Funds, showing credits and debits to the Funds and the purpose for which each debit to the Funds was made. The Funds are pledged as additional security for all sums secured by this Security Instrument.

If the Funds held by Lender exceed the amounts permitted to be held by applicable law, Lender shall account to Borrower for the excess funds in accordance with the requirements of applicable law. If the amount of the Funds held by Lender at any time is not sufficient to pay the Escrow Items when due, Lender may so notify Borrower in writing, and, in such case Borrower shall pay to Lender the amount necessary to make up the deficiency. Borrower shall make up the deficiency in no more than twelve monthly payments, at Lender's sole discretion.

Upon payment in full of all sums secured by this Security Instrument, Lender shall promptly refund to Borrower any Funds held by Lender. If, under paragraph 21 Lender shall acquire or sell the Property, Lender, prior to the acquisition or sale of the Property, shall apply any Funds held by Lender at the time of acquisition or sale as a credit against the sums secured by this Security Instrument.

3. **Application of Payments.** Unless applicable law or Lender's regulations provide otherwise, all payments received by Lender under paragraphs 1 and 2 shall be applied in the following order of priority:

- First, to protective advances;
- Second, to accrued interest due under the Note;
- Third, to principal due under the Note;
- Fourth, to amounts required for the escrow items under paragraph 2;
- Fifth, to late charges and other fees and charges.

4. **Charges; Liens.** Borrower shall pay all taxes, assessments, charges, fines and impositions attributable to the Property which may attain priority over this Security Instrument, and leasehold payments or ground rents, if any. Borrower shall pay these obligations in the manner provided in paragraph 2, or if not paid in that manner, Borrower shall pay them on time directly to the person owed payment. Borrower shall promptly furnish to Lender all notices of amounts to be paid under this paragraph. If Borrower makes these payments directly, Borrower shall promptly furnish to Lender receipts evidencing the payments.

Borrower shall promptly discharge any lien which has priority over this Security Instrument unless Lender has agreed in writing to such lien or Borrower: (a) agrees in writing to the payment of the obligation secured by the

lien in a manner acceptable to Lender; (b) contests in good faith the lien by, or defends against enforcement of the lien in, legal proceedings which in the Lender's opinion operate to prevent the enforcement of the lien; or (c) secure from the holder of the lien an agreement satisfactory to Lender subordinating the lien to this Security Instrument. If Lender determines that any part of the Property is subject to a lien which may attain priority over this Security Instrument, Lender may give Borrower a notice identifying the lien. Borrower shall satisfy the lien or take one or more of the actions set forth above within ten (10) days of the giving of notice.

Borrower shall pay to Lender such fees and other charges as may now or hereafter be required by regulations of Lender, and to pay or reimburse the Lender or Trustee for all of Trustee's fees, costs, and expenses in connection with any full or partial release or subordination of this instrument or any other transaction affecting the property.

5. **Hazard or Property Insurance.** Borrower shall keep the improvements now existing or hereafter erected on the Property insured against loss by fire, hazards included within the term "extended coverage" and any other hazards, including floods or flooding, for which Lender requires insurance. This insurance shall be maintained in the amounts and for the periods that Lender requires. The insurance carrier providing the insurance shall be chosen by Borrower subject to Lender's approval which shall not be unreasonably withheld. If Borrower fails to maintain coverage described above, Lender may, at Lender's option, obtain coverage to protect Lender's rights in the Property in accordance with paragraph 7.

All insurance policies and renewals shall be acceptable to Lender and shall include a standard mortgagee clause. Lender shall have the right to hold the policies and renewals. If Lender requires, Borrower shall promptly give to Lender all receipts of paid premiums and renewal notices. In the event of loss, Borrower shall give prompt notice to the insurance carrier and Lender. Lender may make proof of loss if not made promptly by Borrower.

Unless Lender and Borrower otherwise agree in writing, insurance proceeds shall be applied to restoration or repair of the Property damaged, if the restoration or repair is economically feasible and Lender's security is not lessened. If the restoration or repair is not economically feasible or Lender's security would be lessened, the insurance proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with any excess paid to Borrower. If Borrower abandons the Property, or does not answer within thirty (30) days a notice from Lender that the insurance carrier has offered to settle a claim, then Lender may collect the insurance proceeds. Lender may use the proceeds to repair or restore the Property or to pay sums secured by this Security Instrument, whether or not then due. The thirty (30) day period will begin when the notice is given.

Unless Lender and Borrower otherwise agree in writing, any application of proceeds to principal shall not extend or postpone the due date of the monthly payments referred to in paragraphs 1 and 2 or change the amount of the payments. If under paragraph 21 the Property is acquired by Lender, Borrower's right to any insurance policies and proceeds resulting from damage to the Property prior to the acquisition shall pass to Lender to the extent of the sums secured by this Security Instrument immediately prior to the acquisition.

6. **Preservation, Maintenance and Protection of the Property; Borrower's Loan Application; Leaseholds.** Borrower shall not destroy, damage or impair the Property, allow the Property to deteriorate, or commit waste on the Property. Borrower shall maintain the improvements in good repair and make repairs required by Lender. Borrower shall comply with all laws, ordinances, and regulations affecting the Property. Borrower shall be in default if any forfeiture action or proceeding, whether civil or criminal, is begun that in Lender's good faith judgment could result in forfeiture of the Property or otherwise materially impair the lien created by this Security Instrument or Lender's security interest. Borrower may cure such a default by causing the action or proceeding to be dismissed with a ruling that, in Lender's good faith determination, precludes forfeiture of the Borrower's interest in the Property or other material impairment of the lien created by this Security Instrument or Lender's security interest. Borrower shall also be in default if Borrower, during the loan application process, gave materially false or inaccurate information or statements to Lender (or failed to provide Lender with any material information) in connection with the loan evidenced by the Note. If this Security Instrument is on a leasehold, Borrower shall comply with all the provisions of the lease. If Borrower acquires fee title to the Property, the leasehold and the fee title shall not merge unless Lender agrees to the merger in writing.

7. **Protection of Lender's Rights in the Property.** If Borrower fails to perform the covenants and agreements contained in this Security Instrument, or there is a legal proceeding that may significantly affect Lender's rights in the Property (such as a proceeding in bankruptcy, probate, for condemnation or forfeiture or to enforce laws or regulations), then Lender may do and pay for whatever is necessary to protect the value of the Property and Lender's rights in the Property. Lender's actions may include paying any sums secured by a lien which has priority over this Security Instrument, appearing in court, paying reasonable attorneys' fees and entering on the Property to make repairs. Although Lender may take action under this paragraph 7, Lender is not required to do so.

Any amounts disbursed by Lender under this paragraph 7 shall become additional debt of Borrower secured by this Security Instrument. Unless Borrower and Lender agree to other terms of payment, these amounts shall bear interest from the date of disbursement at the Note rate and shall be payable, with interest, upon notice from Lender to Borrower requesting payment.

8. **Refinancing.** If at any time it shall appear to Lender that Borrower may be able to obtain a loan from a responsible cooperative or private credit source, at reasonable rates and terms for loans for similar purposes, Borrower will, upon the Lender's request, apply for and accept such loan in sufficient amount to pay the note and any indebtedness secured hereby in full.

9. **Inspection.** Lender or its agent may make reasonable entries upon and inspections of the Property. Lender shall give Borrower notice at the time of or prior to an inspection specifying reasonable cause for the inspection.

10. Condemnation. The proceeds of any award or claim for damages, direct or consequential, in connection with any condemnation or other taking of any part of the Property, or for conveyance in lieu of condemnation, are hereby assigned and shall be paid to Lender. In the event of a total taking of the Property, the proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with any excess paid to Borrower. In the event of a partial taking of the Property in which the fair market value of the Property immediately before the taking is equal to or greater than the amount of the sums secured by this Security Instrument immediately before the taking, unless Borrower and Lender otherwise agree in writing, the sums secured by this Security Instrument shall be reduced by the amount of the proceeds multiplied by the following fraction: (a) the total amount of the sums secured immediately before the taking, divided by (b) the fair market value of the Property immediately before the taking. Any balance shall be paid to Borrower. In the event of a partial taking of the Property in which the fair market value of the Property immediately before the taking is less than the amount of the sums secured hereby immediately before the taking, unless Borrower and Lender otherwise agree in writing or unless applicable law otherwise provides, the proceeds shall be applied to the sums secured by this Security Instrument whether or not the sums are then due.

If the Property is abandoned by Borrower, or if, after notice by Lender to Borrower that the condemnor offers to make an award or settle a claim for damages, Borrower fails to respond to Lender within thirty (30) days after the date the notice is given, Lender is authorized to collect and apply the proceeds, at its option, either to restoration or repair of the Property or to the sums secured by this Security Instrument, whether or not then due. Unless Lender and Borrower otherwise agree in writing, any application of proceeds to principal shall not extend or postpone the due date of the monthly payments referred to in paragraphs 1 and 2 or change the amount of such payments.

11. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time for payment or modification of amortization of the sums secured by this Security Instrument granted by Lender to Borrower and any successor in interest of Borrower shall not operate to release the liability of the original Borrower or Borrower's successors in interest. Lender shall not be required to commence proceedings against any successor in interest or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy shall not be a waiver of or preclude the exercise of any right or remedy.

12. Successors and Assigns Bound; Joint and Several Liability; Co-signers. The covenants and agreements of this Security Instrument shall bind and benefit the successors and assigns of Lender and Borrower, subject to the provisions of paragraph 16. Borrower's covenants and agreements shall be joint and several. Any Borrower who co-signs this Security Instrument but does not execute the Note: (a) is co-signing this Security Instrument only to mortgage, grant and convey that Borrower's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that Lender and any other Borrower may agree to extend, modify, forbear or make any accommodations with regard to the terms of this Security Instrument or the Note without that Borrower's consent.

13. Notices. Any notice to Borrower provided for in this Security Instrument shall be given by delivering it or by mailing it by first class mail unless applicable law requires use of another method. The notice shall be directed to the Property Address or any other address Borrower designates by notice to Lender. Any notice to Lender shall be given by first class mail to Lender's address stated herein or any other address Lender designates by notice to Borrower. Any notice provided for in this Security Instrument shall be deemed to have been given to Borrower or Lender when given as provided in this paragraph.

14. Governing Law; Severability. This Security Instrument shall be governed by federal law. In the event that any provision or clause of this Security Instrument or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Security Instrument or the Note which can be given effect without the conflicting provision. To this end the provisions of this Security Instrument and the Note are declared to be severable. This instrument shall be subject to the present regulations of Lender, and to its future regulations not inconsistent with the express provisions hereof. All powers and agencies granted in this instrument are coupled with an interest and are irrevocable by death or otherwise; and the rights and remedies provided in this instrument are cumulative to remedies provided by law.

15. Borrower's Copy. Borrower acknowledges receipt of one conformed copy of the Note and of this Security Instrument.

16. Transfer of the Property or a Beneficial Interest in Borrower. If all or any part of the Property or any interest in it is leased for a term greater than three (3) years, leased with an option to purchase, sold, or transferred (or if a beneficial interest in Borrower is sold or transferred and Borrower is not a natural person) without Lender's prior written consent, Lender may, at its option, require immediate payment in full of all sums secured by this Security Instrument.

17. Nondiscrimination. If any part of the loan for which this instrument is given shall be used to finance the purchase, construction or repair of property to be used as an owner-occupied dwelling (herein called "the dwelling") and if Borrower intends to sell or rent the dwelling and has obtained Lender's consent to do so (a) neither Borrower nor anyone authorized to act for Borrower, will, after receipt of a bona fide offer, refuse to negotiate for the sale or rental of the dwelling or will otherwise make unavailable or deny the dwelling to anyone because of race, color, religion, sex, national origin, handicap, age, or familial status, and (b) Borrower recognizes

as illegal and hereby disclaims and will not comply with or attempt to enforce any restrictive covenants on dwelling relating to race, color, religion, sex, national origin, handicap, age or familial status.

18. **Sale of Note; Change of Loan Servicer.** The Note or a partial interest in the Note (together with this Security Instrument) may be sold one or more times without prior notice to Borrower. A sale may result in a change in the entity (known as the "Loan Servicer") that collects monthly payments due under the Note and this Security Instrument. There also may be one or more changes of the Loan Servicer unrelated to a sale of the Note. If there is a change of the Loan Servicer, Borrower will be given written notice of the change in accordance with paragraph 15 above and applicable law. The notice will state the name and address of the new Loan Servicer and the address to which payments should be made.

19. **Uniform Federal Non-Judicial Foreclosure.** If a uniform federal non-judicial foreclosure law applicable to foreclosure of this security instrument is enacted, Lender shall have the option to foreclose this instrument in accordance with such federal procedure.

20. **Hazardous Substances.** Borrower shall not cause or permit the presence, use, disposal, storage, or release of any hazardous substances on or in the Property. The preceding sentence shall not apply to the presence, use, or storage on the Property of small quantities of hazardous substances that are generally recognized to be appropriate to normal residential uses and to maintenance of the Property. Borrower shall not do, nor allow anyone else to do, anything affecting the Property that is in violation of any federal, state, or local environmental law or regulation.

Borrower shall promptly give Lender written notice of any investigation, claim, demand, lawsuit or other action by any governmental or regulatory agency or private party involving the Property and any hazardous substance or environmental law or regulation of which Borrower has actual knowledge. If Borrower learns, or is notified by any governmental or regulatory authority, that any removal or other remediation of any hazardous substance affecting the Property is necessary, Borrower shall promptly take all necessary remedial actions in accordance with applicable environmental law and regulations.

As used in this paragraph "hazardous substances" are those substances defined as toxic or hazardous substances by environmental law and the following substances: gasoline, kerosene, other flammable or toxic petroleum products, toxic pesticides and herbicides, volatile solvents, materials containing asbestos or formaldehyde, and radioactive materials. As used in this paragraph, "environmental law" means federal laws and regulations and laws and regulations of the jurisdiction where the Property is located that relate to health, safety or environmental protection.

21. **Cross Collateralization.** Default hereunder shall constitute default under any other real estate security instrument held by Lender and executed or assumed by Borrower, and default under any other such security instrument shall constitute default hereunder.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

22. **Acceleration.** SHOULD DEFAULT occur in the performance or discharge of any obligation in this instrument or secured by this instrument, or should the parties named as Borrower die, or should any one of the parties named as Borrower be declared insolvent or make an assignment for the benefit of creditors, Lender, at its option, with or without notice may: (a) declare the entire amount unpaid under the note and any indebtedness to Lender hereby secured immediately due and payable, (b) for the account of Borrower incur and pay reasonable expenses for repair or maintenance of and take possession of, operate or rent the property, (c) upon application by Lender and production of this instrument, without other evidence and without notice of hearing of said application, have a receiver appointed for the property, with the usual powers of receivers in like cases, and (d) authorize and request Trustee to foreclose this instrument and sell the property as provided by law.

23. **Substitute Trustee.** The power to appoint a substitute trustee is hereby granted to Lender and its assigns, to be exercised at any time hereafter, without notice and at Lender's discretion for any reason whatsoever, by filing for record in the office where this instrument is recorded an instrument of appointment, whereupon the substitute trustee shall succeed to all the estates, rights, powers, and trusts herein granted to or vested in Trustee, and the former trustee or substitute trustee shall be divested thereof; and notice of the exercise of this power and any requirement of, or right to require, a bond from any trustee hereunder, are hereby waived.

24. **Release.** Upon payment of all sums secured by this Security Instrument, Lender shall see to the release of this Security Instrument and shall surrender all notes evidencing debt secured by this Security Instrument. This Security Instrument will be released without charge to Borrower. Borrower shall pay any recordation costs.

25. **Non-judicial Foreclosure.** At the request of Lender, Trustee may foreclose this instrument by advertisement and sale of the property as provided by law, for cash or secured credit at the option of the Government, personal notice of which sale need not be served on the Borrower but may be given by mailing a copy of the notice of sale to Borrower by certified or registered mail at Borrower's last-known address as such owner and address appears in Lender's records for the loan secured hereby; such sale may be adjourned from time to time without other notice than oral proclamation at the time and place appointed for such sale and correction made on the posted notices; and, at such sale Lender and its agents may bid and purchase as a stranger; Trustee at Trustee's option may conduct such sale without being personally present, through Trustee's delegate authorized by Trustee for such purpose orally or in writing, and Trustee's execution of a conveyance of the property or any part thereof to any purchaser at foreclosure sale shall be conclusive evidence that the sale was conducted by Trustee personally or through Trustee's delegate duly authorized in accordance herewith.

26. **Waiver of State Rights.** Borrower agrees that Lender will not be bound by any present or future state laws, (a) providing for homestead or exemption of the property, (b) prohibiting an action for a deficiency judgment

or limiting the amount thereof or the time within which such action must be brought, (c) prescribing any other statute of limitations, or (d) limiting the conditions which Lender may by regulation impose, including the interest rate it may charge, as a condition of approving a transfer of the property to a new Borrower. Borrower expressly waives the benefit of any such state laws. Borrower hereby relinquishes, waives, and conveys all rights, inchoate or consummate, of their augmented estate, and distributive share and expressly waives and relinquishes all rights of redemption statutory or otherwise, provided for under state law.

27. **Advertisement Required Before Foreclosure Sale by Trustee.** (a) Notice of Foreclosure published once a week for four (4) successive weeks in a newspaper having general circulation in the city or county wherein the property to be sold (or any portion thereof) lies will be deemed adequate. (b) However, if the property or some portion thereof is located in a city or in a county immediately contiguous to a city, publication of the advertisement five (5) days, which may be consecutive days, shall be deemed adequate; HOWEVER, the date of sale shall not be less than eight (8) days after the first advertisement appears nor more than thirty (30) days following the last advertisement.

28. **Foreclosure Proceeds.** The proceeds of foreclosure sale shall be applied in the following order to the payment of: (a) costs and expenses incident to enforcing or complying with the provisions hereof, (b) any prior liens required by law or a competent court to be so paid, (c) the debt evidenced by the note and all indebtedness to Lender secured hereby including recapture, (d) inferior liens of record required by law or a competent court to be so paid, (e) at Lender's option, any other indebtedness of Borrower owing to or guaranteed by Lender, and (f) any balance to Borrower. In case the lender is the successful bidder at foreclosure or other sale of all or any part of the property, Lender may pay its share of the purchase price by crediting such amount on any debts of Borrower owing to or guaranteed by Lender, in the order prescribed above.

29. **Riders to this Security Instrument.** If one or more riders are executed by Borrower and recorded together with this Security Instrument, the covenants and agreements of each rider shall be incorporated into and shall amend and supplement the covenants and agreements of this Security Instrument as if the rider(s) were a part of this Security Instrument. [Check applicable box(es)]

☐ Condominium Rider ☐ Planned Unit Development Rider ☐ Other(s) [specify]

NOTICE-THE DEBT SECURED HEREBY IS SUBJECT TO CALL IN FULL OR THE TERMS THEREOF BEING MODIFIED IN THE EVENT OF SALE OR CONVEYANCE OF THE PROPERTY CONVEYED.

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in pages 1 through 6 of this Security Instrument and in any rider executed by Borrower and recorded with this Security Instrument.

Sharon E. Daugherty (Seal)
(Borrower)

(Borrower) (Seal)

ACKNOWLEDGMENT

COMMONWEALTH OF VIRGINIA
_____/COUNTY OF LEE

ss:

I, Kathy B. Harber, a Notary Public for the city/county and Commonwealth

aforesaid, do certify that Sharon E. Daugherty and _____

whose names are signed to the writing above, bearing date on the 10th day of June, 1999

acknowledged the same before me in my city/county aforesaid.

Given under my hand and official seal this 10th day of June, 1999

Notary Public Kathy B. Harber My term of office as Notary Expires: 1/31/2003

COMMONWEALTH OF VIRGINIA
CITY/COUNTY OF Lee

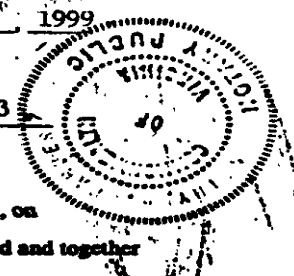
In the clerk's office of Lee City/County, at 4:22 P. on

this 10 day of June 99, this deed was presented properly stamped and together

with the certificate annexed, admitted to record.

Teste Charles Calton Clerk

Buy Blenda Mott DC



0208614

DEED OF TRUST

951705

☐ If this box is checked, this Deed of Trust secures future advances.

TAX MAP #
26E-(1)-87-94A, THIS DEED OF TRUST is made this 29TH day of JUNE, 2002, among the Grantor(s),
SHARON E. DAUGHERTY, NOT STATED

(herein "Borrower"), KEITH FREELAND

3959 ELECTRIC RD #200, ROANOKE, VA 24018

as Trustee (any one of whom may act and who are referred to herein as "Trustee"), and the Beneficiary,

BENEFICIAL MORTGAGE CO. OF VIRGINIA

a corporation organized and existing under the laws of DELAWARE whose address is

1315 EUCLID AVENUE, BRISTOL, VA 24201

(herein "Lender").

The following paragraph preceded by a checked box is applicable.

☒ WHEREAS, Borrower is indebted to Lender in the principal sum of \$ 128,077.92, evidenced by Borrower's Loan Agreement dated JUNE 29, 2002 and any extensions or renewals thereof (including those pursuant to any Renegotiable Rate Agreement) (herein "Note"), providing for monthly installments of principal and interest, including any adjustments to the amount of payments or the contract rate if that rate is variable, with the balance of the indebtedness, if not sooner paid, due and payable on JUNE 29, 2032;

☐ WHEREAS, Borrower is indebted to Lender in the principal sum of \$ _____, or so much thereof as may be advanced pursuant to Borrower's Revolving Loan Agreement dated _____ and extensions and renewals thereof (herein "Note"), providing for monthly installments, and interest at the rate and under the terms specified in the Note, including any adjustments in the interest rate if that rate is variable, and providing for a credit limit stated in the principal sum above with initial advance of \$ _____;

TO SECURE to Lender the repayment of the indebtedness, including future advances, evidenced by the Note, with interest thereon at the applicable contract rate (including any adjustments to the amount of payment or the contract rate if that rate is variable) and other charges; the payment of all other sums, with interest thereon, advanced in accordance herewith to protect the security of this Deed of Trust; and the performance of the covenants and agreements of Borrower herein contained, Borrower, in consideration of the indebtedness herein recited and the trust herein created, irrevocably grants and conveys to Trustee, in trust with power of sale, the following described property located in the _____
LEE State of Virginia:

DEED BOOK 494 PAGE 536:

BEGINNING AT AN IRON PIN FOUND IN THE SOUTHERLY LINE OF OAK STREET (SR 1055), SAID IRON PIN BEING A COMMON CORNER TO LOT 87 AND LOT 88; THENCE LEAVING OAK STREET AND WITH THE LINE BETWEEN SAID LOT 87 AND LOT 88 S 02D 54' 00" W 106.14 FEET TO AN IRON PIN FOUND, SAID IRON PIN BEING A COMMON CORNER TO LOTS 87, LOT 88, LOT 94, AND LOT 95; THENCE WITH THE LINE BETWEEN LOT 94 AND LOT 95 S 02 D 46' 00" W 13.16 FEET TO AN IRON PIN SET; THENCE LEAVING THE LINE BETWEEN LOT 94 AND LOT 95 AND WITH A NEW LINE THROUGH LOT 94 N 81D 45' 00" W 125.11 FEET TO AN IRON PIN SET EASTERLY LINE OF REDBUD LANE (SR 1058); THENCE WITH SAID LINE OF SAID LANE ALONG A CURVE TO THE LEFT 93.37 FEET TO AN IRON PIN FOUND, SAID CURVE HAVING A RADIUS OF 1360.64 FEET, A DELTA ANGLE OF 03D 55' 45", AND A CHORD WITH BEARING AND DISTANCE OF N 15D 43' 04" E 93.29 FEET TO AN IRON PIN FOUND; THENCE CONTINUING ALONG A CURVE TO THE RIGHT 35.95 FEET TO AN IRON PIN FOUND IN THE SOUTHERLY LINE OF AFORESAID OAK STREET, SAID CURVE HAVING A

CONTINUED ON EXHIBIT A-LEGAL DESCRIPTION

This instrument was prepared by: Beneficial Mortgage Co. of Virginia.



*D02375414096DOT8000VAB013110**DEAN

ORIGINAL

TOGETHER with all the improvements now or hereafter erected on the property, and all easements, rights, appurtenances and rents (subject however to the rights and authorities given herein to Lender to collect and apply such rents), all of which shall be deemed to be and remain a part of the property covered by this Deed of Trust; and all of the foregoing, together with said property (or the leasehold estate if this Deed of Trust is on a leasehold) are hereinafter referred to as the "Property;"

Borrower covenants that Borrower is lawfully seised of the estate hereby conveyed and has the right to grant and convey the Property, and that the Property is unencumbered, except for encumbrances of record. Borrower covenants that Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to encumbrances of record.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. Payment of Principal and Interest. Borrower shall promptly pay when due the principal and interest indebtedness evidenced by the Note, including any variations resulting from changes in the Contract Rate, and late charges as provided in the Note.

2. Funds for Taxes and Insurance. Subject to applicable law and only if requested in writing by Lender, Borrower shall pay to Lender on the day monthly payments of principal and interest are payable under the Note, until the Note is paid in full, a sum (herein "Funds") equal to one-twelfth of the yearly taxes and assessments (including condominium and planned unit development assessments, if any) which may attain priority over this Deed of Trust, and ground rents on the Property, if any, plus one-twelfth of yearly premium installments for hazard insurance, plus one-twelfth of yearly premium installments for mortgage insurance, if any, all as reasonably estimated initially and from time to time by Lender on the basis of assessments and bills and reasonable estimates thereof. Borrower shall not be obligated to make such payments of Funds to Lender to the extent that Borrower makes such payments to the holder of a prior mortgage or deed of trust if such holder is an institutional Lender.

If Borrower pays Funds to Lender, the Funds shall be held in an institution the deposits or accounts of which are insured or guaranteed by a Federal or state agency (including Lender if Lender is such an institution). Lender shall apply the Funds to pay said taxes, assessments, insurance premiums and ground rents. Lender may not charge for so holding and applying the Funds, analyzing said account or verifying and compiling said assessments and bills, unless Lender pays Borrower interest on the Funds and applicable law permits Lender to make such a charge. Borrower and Lender may agree in writing at the time of execution of this Deed of Trust that interest on the funds shall be paid to Borrower, and unless such agreement is made or applicable law requires such interest to be paid, Lender shall not be required to pay Borrower any interest or earnings on the Funds. Lender shall give to Borrower, without charge, an annual accounting of the Funds showing credits and debits to the Funds and the purpose for which each debit to the funds was made. The Funds are pledged as additional security for the sums secured by this Deed of Trust.

If the amount of the Funds held by Lender, together with the future monthly installments of Funds payable prior to the due dates of taxes, assessments, insurance premiums and ground rents, shall exceed the amount required to pay said taxes, assessments, insurance premiums and ground rents as they fall due, such excess shall be, at Borrower's option, either promptly repaid to Borrower or credited to Borrower on monthly installments of Funds. If the amount of the Funds held by Lender shall not be sufficient to pay taxes, assessments, insurance premiums and ground rents as they fall due, Borrower shall pay to Lender any amount necessary to make up the deficiency in one or more payments as Lender may require.

Upon payment in full of all sums secured by this Deed of Trust, Lender shall promptly refund to Borrower any Funds held by Lender. If under paragraph 17 hereof the Property is sold or the Property is otherwise acquired by Lender, Lender shall apply, no later than immediately prior to the sale of the Property or its acquisition by Lender, any Funds held by Lender at the time of application as a credit against the sums secured by this Deed of Trust.

3. Application of Payments. Unless applicable law or the Note provide otherwise, all payments received by Lender under the Note and paragraphs 1 and 2 hereof shall be applied by Lender first in payment of amounts payable to Lender by Borrower under paragraph 2 hereof, then to interest payable at the applicable Contract Rate and then to the principal of the Note.

4. Prior Mortgages and Deeds of Trust; Charges; Liens. Borrower shall perform all of Borrower's obligations under any mortgage, deed of trust or other security agreement with a lien which has priority over this Deed of Trust, including Borrower's covenants to make payments when due. Borrower shall pay or cause to be paid all taxes, assessments and other charges, fines and impositions attributable to the Property which may attain a priority over this Deed of Trust, and leasehold payments or ground rents, if any.

5. Hazard Insurance. Borrower shall keep the improvements now existing or hereafter erected on the Property insured against loss by fire, hazards included within the term "extended coverage," and such other hazards as Lender may require and in such amounts and for such periods as Lender may require.

The insurance carrier providing the insurance shall be chosen by the Borrower subject to approval by Lender; provided, that such approval shall not be unreasonably withheld. All insurance policies and renewals thereof shall be in a form acceptable to Lender and shall include a standard mortgage clause in favor of and in a form acceptable to Lender. Lender shall have the right to hold the policies and renewals thereof, subject to the terms of any mortgage, deed of trust or other security agreement with a lien which has priority over this Deed of Trust.

In the event of loss, Borrower shall give prompt notice to the insurance carrier and Lender. Lender may make proof of loss if not made promptly by Borrower.

If the Property is abandoned by Borrower, or if Borrower fails to respond to Lender within 30 days from the date notice is mailed by Lender to Borrower that the insurance carrier offers to settle a claim for insurance benefits, Lender is authorized to collect and apply the insurance proceeds at Lender's option either to restoration or repair of the Property or to the sums secured by this Deed of Trust.

6. Preservation and Maintenance of Property; Leaseholds; Condominiums; Planned Unit Developments. Borrower shall keep the Property in good repair and shall not commit waste or permit impairment or deterioration of the Property and shall comply with the provisions of any lease if this Deed of Trust is on a leasehold. If this Deed of Trust is on a unit in a condominium or a planned unit development, Borrower shall perform all of Borrower's obligations under the declaration or covenants creating or governing the condominium or planned unit development, the by-laws and regulations of the condominium or planned unit development, and constituent documents.

7. Protection of Lender's Security. If Borrower fails to perform the covenants and agreements contained in this Deed of Trust, or if any action or proceeding is commenced which materially affects Lender's interest in the property, then Lender, at Lender's option, upon notice to Borrower, may make such appearances, disburse such sums, including reasonable attorney's fees, and take such action as is necessary to protect Lender's interest. If Lender required mortgage insurance as a condition of making the loan secured by this Deed of Trust, Borrower shall pay the premiums required to maintain such insurance in effect until such time as the requirement for such insurance terminates in accordance with Borrower's and Lender's written agreement or applicable law.

Any amounts disbursed by Lender pursuant to this paragraph 7, with interest thereon, at the applicable Contract Rate, shall become additional indebtedness of Borrower secured by this Deed of Trust. Unless Borrower and Lender agree to other terms of payment, such amounts shall be payable upon notice from Lender to Borrower requesting payment thereof. Nothing contained in this paragraph 7 shall require Lender to incur any expense or take any action hereunder.

8. Inspection. Lender may make or cause to be made reasonable entries upon and inspections of the Property, provided that Lender shall give Borrower notice prior to any such inspection specifying reasonable cause therefor related to Lender's interest in the Property.

9. Condemnation. The proceeds of any award or claim for damages, direct or consequential, in connection with any condemnation or other taking of the Property, or part thereof, or for conveyance in lieu of condemnation, are hereby assigned and shall be paid to Lender, subject to the terms of any mortgage, deed of trust or other security agreement with a lien which has priority over this Deed of Trust.

10. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time for payment or modification of amortization of the sums secured by this Deed of Trust granted by Lender to any successor in interest of Borrower and all other parties who are or who hereafter may become secondarily liable shall not operate to release, in any manner, the liability of the original Borrower and Borrower's successors in interest. Lender shall not be required to commence proceedings against such successor or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Deed of Trust by reason of any demand made by the original Borrower and Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy hereunder, or otherwise afforded by applicable law, shall not be a waiver of or preclude the exercise of any such right or remedy.

11. Successors and Assigns Bound; Joint and Several Liability; Co-signers. The covenants and agreements herein contained shall bind, and the rights hereunder shall inure to, the respective successors and assigns of Lender and Borrower, subject to the provisions of paragraph 16 hereof. All covenants and agreements of Borrower shall be joint and several. Any Borrower who co-signs this Deed of Trust, but does not execute the Note, (a) is co-signing this Deed of Trust only to grant and convey that Borrower's interest in the Property to Trustee under the terms of this Deed of Trust, (b) is not personally liable on the Note or under this Deed of Trust, and (c) agrees that Lender and any other Borrower hereunder may agree to extend, modify, forbear, or make any other accommodations with regard to the terms of this Deed of Trust or the Note without that Borrower's consent and without releasing that Borrower or modifying this Deed of Trust as to that Borrower's interest in the Property.

12. Notice. Except for any notice required under applicable law to be given in another manner, (a) any notice to Borrower provided for in this Deed of Trust shall be given by delivering it or by mailing such notice by certified mail addressed to Borrower at the Property Address or at such other address as Borrower may designate by notice to Lender as provided herein, and (b) any notice to Lender shall be given by certified mail to Lender's address stated herein or to such other address as Lender may designate by notice to Borrower as provided herein. Any notice provided for in this Deed of Trust shall be deemed to have been given to Borrower or Lender when given in the manner designated herein.

13. Governing Law; Severability. The applicable law contained in the Note shall control. Where no applicable law is contained therein, the state and local laws of the jurisdiction in which the Property is located shall apply except where such laws conflict with Federal law, in which case Federal law applies. The foregoing sentence shall not limit the applicability of Federal law to this Deed of Trust. In the event that any provision or clause of this Deed of Trust or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Deed of Trust or the Note which can be given effect without the conflicting provision, and to this end the provisions of this Deed of Trust and the Note are declared to be severable. As used herein, "costs," "expenses," and "attorneys' fees" include all sums to the extent not prohibited by applicable law or limited herein.

14. Borrower's Copy. Borrower shall be furnished a conformed copy of the Note and of this Deed of Trust at

15. Rehabilitation Loan Agreement. Borrower shall fulfill all of Borrower's obligations under any home rehabilitation, improvement, repair, or other loan agreement which Borrower enters into with Lender. Lender, at Lender's option, may require Borrower to execute and deliver to Lender, in a form acceptable to Lender, an assignment of any rights, claims or defenses which Borrower may have against parties who supply labor, materials or services in connection with improvements made to the Property.

16. Transfer of the Property. If Borrower sells or transfers all or any part of the Property or an interest therein, excluding (a) the creation of a lien or encumbrance subordinate to this Deed of Trust, (b) a transfer by devise, descent, or by operation of law upon the death of a joint tenant, (c) the grant of any leasehold interest of three years or less not containing an option to purchase, (d) the creation of a purchase money security interest for household appliances, (e) a transfer to a relative resulting from the death of the Borrower, (f) a transfer where the spouse or children of the Borrower become an owner of the property, (g) a transfer resulting from a decree of dissolution of marriage, legal separation agreement, or from an incidental property settlement agreement, by which the spouse of the Borrower becomes an owner of the property, (h) a transfer into an inter vivos trust in which the Borrower is and remains a beneficiary and which does not relate to a transfer of rights of occupancy in the property, or (i) any other transfer or disposition described in regulations prescribed by the Federal Home Loan Bank Board, Borrower shall cause to be submitted information required by Lender to evaluate the transferee as if a new loan were being made to the transferee. Borrower will continue to be obligated under the Note and this Deed of Trust unless Lender releases Borrower in writing. If Lender does not agree to such sale or transfer, Lender may declare all of the sums secured by this Deed of Trust to be immediately due and payable. If Lender exercises such option to accelerate, Lender shall deliver or mail Borrower notice of acceleration in accordance with paragraph 12 hereof. Such notice shall provide a period of not less than 30 days from the date the notice is mailed or delivered within which Borrower may pay the sums declared due. If Borrower fails to pay such sums prior to the expiration of such period, Lender may, without further notice or demand on Borrower, invoke any remedies permitted by paragraph 17 hereof.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

17. Acceleration; Remedies. Except as provided in paragraph 16 hereof, or as otherwise required by law, upon Borrower's breach of any covenant or agreement of Borrower in this Deed of Trust, including the covenants to pay when due any sums secured by this Deed of Trust, Lender prior to acceleration shall give notice to Borrower as when due any sums secured by this Deed of Trust, Lender prior to acceleration shall give notice to Borrower as provided in paragraph 12 hereof specifying: (1) the breach; (2) the action required to cure such breach; (3) a date, not less than 30 days from the date the notice is mailed to Borrower, by which such breach must be cured; and (4) that failure to cure such breach on or before the date specified in the notice may result in acceleration of the sums secured by this Deed of Trust and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the nonexistence of a default or any other defense of Borrower to acceleration and sale. If the breach is not cured on or before the date specified in the notice, Lender, at Lender's option, may declare all of the sums secured by this Deed of Trust to be immediately due and payable without further demand and may invoke the power of sale and any other remedies permitted by applicable law. Lender shall be entitled to collect all reasonable costs and expenses incurred in pursuing the remedies provided in this paragraph 17, including, but not limited to, reasonable attorneys' fees.

If Lender invokes the power of sale, Lender or Trustee shall give to Borrower (and the owner of the Property, if a different person) notice of sale in the manner prescribed by applicable law. Trustee shall give public notice of sale by advertising, in accordance with applicable law, once a week for two successive weeks in a newspaper having general circulation in the county or city in which the Property or some portion thereof is located, and by such additional or different form of advertisement as the Trustee may deem advisable, if any. Trustee may sell the Property on the eighth day after the first advertisement or any day thereafter, but not later than 30 days following the last advertisement. Trustee, without demand on Borrower, shall sell the Property at public auction to the highest bidder at the time and place and under the terms designated in the notice of sale in one or more parcels and in such order as Trustee may determine.

Trustee may postpone sale of all or any parcel of the property by advertising in accordance with applicable law. Lender or Lender's designee may purchase the Property at any sale. Trustee shall deliver to the purchaser Trustee's deed conveying the Property so sold with special warranty of title. The recitals in Trustee's deed shall be prima facie evidence of the truth of the statements made therein. Trustee shall apply the proceeds of the sale in the following order: (a) to all reasonable costs and expenses of the sale, including, but not limited to, Trustee's fees, reasonable attorney's fees and costs of title evidence; (b) to the discharge of all taxes, levies and assessments on the Property, if any, as provided by applicable law; (c) to all sums secured by this Deed of Trust; and (d) the excess, if any, to the person or persons legally entitled thereto. Trustee shall not be required to take possession of the Property prior to the sale thereof or to deliver possession of the Property to the purchaser at such sale.



0208618

18. Borrower's Right to Reinstate. Notwithstanding Lender's acceleration of the sums secured by this Deed of Trust due to Borrower's breach, Borrower shall have the right to have any proceedings begun by Lender to enforce this Deed of Trust discontinued at any time prior to the earlier to occur of (i) the fifth day before sale of the Property pursuant to the power of sale contained in this Deed of Trust or (ii) entry of a judgment enforcing this Deed of Trust if (a) Borrower pays Lender all sums which would be then due under this Deed of Trust and the Note had no acceleration occurred; (b) Borrower cures all breaches of any other covenants or agreements of Borrower contained in this Deed of Trust; (c) Borrower pays all reasonable expenses incurred by Lender and Trustee in enforcing the covenants and agreements of Borrower contained in this Deed of Trust, and in enforcing Lender's and Trustee's remedies as provided in paragraph 17 hereof, including, but not limited to, reasonable attorneys' fees; and (d) Borrower takes such action as Lender may reasonably require to assure that the lien of this Deed of Trust, Lender's interest in the Property and Borrower's obligation to pay the sums secured by this Deed of Trust shall continue unimpaired. Upon such payment and cure by Borrower, this Deed of Trust and the obligations secured hereby shall remain in full force and effect as if no acceleration had occurred.

19. Assignment of Rents; Appointment of Receiver; Lender in Possession. As additional security hereunder, Borrower hereby assigns to Lender the rents of the Property, provided that Borrower shall, prior to acceleration under paragraph 17 hereof or abandonment of the Property, have the right to collect and retain such rents as they become due and payable.

Upon acceleration under paragraph 17 hereof or abandonment of the Property, Lender, in person, by agent or by judicially appointed receiver, shall be entitled to enter upon, take possession of and manage the Property and to collect the rents of the Property including those past due. All rents collected by Lender or the receiver shall be applied first to payment of the costs of management of the Property and collection of rents, including, but not limited to, receiver's fees, premiums on receiver's bonds and reasonable attorneys' fees, and then to the sums secured by this Deed of Trust. Lender and the receiver shall be liable to account only for those rents actually received.

20. Release. Upon payment of all sums secured by this Deed of Trust, Lender shall request Trustee to release this Deed of Trust and shall surrender all notes evidencing indebtedness secured by this Deed of Trust to Trustee. Trustee shall release this Deed of Trust.

21. Substitute Trustee. Lender may from time to time in Lender's discretion remove Trustee and appoint a successor trustee to any Trustee appointed hereunder. Without conveyance of the Property, the successor trustee shall succeed to all the title, power and duties conferred upon the Trustee herein and by applicable law.

22. Identification of Note. The note is identified by a certificate on the Note executed by any Notary Public who certifies an acknowledgement hereto.

23. Arbitration Rider to Note. The Arbitration Rider attached to and made a part of the Note is hereby incorporated by reference and made a part of this Deed of Trust.

0208619

**REQUEST FOR NOTICE OF DEFAULT
AND FORECLOSURE UNDER SUPERIOR
MORTGAGES OR DEEDS OF TRUST**

Borrower and Lender request the holder of any mortgage, deed of trust or other encumbrance with a lien which has priority over this Deed of Trust to give Notice to Lender, at Lender's address set forth on page one of this Deed of Trust, of any default under the superior encumbrance and of any sale or foreclosure action.

IN WITNESS WHEREOF, Borrower has executed and sealed this Deed of Trust.

Sharon E. Daugherty
Sharon E. Daugherty
Randall L. Dean
Randall L. Dean



STATE OF VIRGINIA, _____ County _____ of _____ Lee
The foregoing instrument was acknowledged before me on this 06/29/02
(date)

by Sharon E. Daugherty and Randall L. Dean

(person acknowledged)

My commission Expires:

9/30/06

Kelly P. McClure
Kelly P. McClure (Notary Public)

(Space Below This Line Reserved For Lender and Recorder)

Return To:
Records Processing Services
577 Lamont Road
Elmhurst, IL 60126

INSTRUMENT #0208614
RECORDED IN THE CLERK'S OFFICE OF
LEE ON
JULY 9, 2002 AT 11:19AM
BENJAMIN F. DAVIDSON, CLERK
BY: Shonda Witt (DC)

NOTICE: THE DEBT SECURED HEREBY IS SUBJECT TO CALL IN FULL OR THE TERMS THEREOF BEING MODIFIED IN THE EVENT OF SALE OR CONVEYANCE OF THE PROPERTY CONVEYED.



0208620

EXHIBIT A (PAGE 1)

RADIUS OF 25.00 FEET, A DELTA ANGLE OF 82D 23' 29", AND A CHORD WITH BEARING AND DISTANCE FO N 54D 29' 16" E 32.93 FEET; THENCE WITH SAID LINE FO SAID STREET S 84D 19' 00" E 78.12 FEET TO THE BEGINNING AND CONTAINING 12,915.54 SQUARE FEET OR 0.296 ACRE AS SHOWN ON A PLAT DATED APRIL 22, 1999, BY W. R. PALMER, REGISTERED LAND SURVEYOR, SAID PALT TO BE RECORDED HEREWITH THIS DEED.

DEED BOOK 282 PAGE 453:

BEGINNING AT AN IRON PIN; THENCE N 74 DEGREES 44 MINUTES E 179.37 FEET TO A POINT; THENCE S 23 DEGREES 14 MINUTES E 166.22 FEET TO AN IRON PIN; THENCE S 71 DEGREES 51 MINUTES W 204.22 FEET TO AN IRON PIN; THENCE N 14 DEGREES 11 MINUTES W 164.06 FEET TO THE POINT OF BEGINNING, CONTAINING .70 ACRE, MORE OR LESS, AS SHOWN ON THE ATTACHED PLAT OF PART OF THE HENRY AND GLADYS CAMPBELL PROPERTY, DRAWN BY R. STANLEY TRENT, LAND SURVEYOR, DATED OCTOBER 28, 1978.

TAX MAP OR PARCEL ID NO.: 26E-(1)-87.94A ,TAX MAP OR
PARCEL ID NO.: 47-(A)-56A

DEED BOOK 494 PAGE 536:

BEGINNING AT AN IRON PIN FOUND IN THE SOUTHERLY LINE OF OAK STRET (SR 1055), SAID IRON PIN BEING A COMMON CORNER TO LOT 87 AND LOT 88; THENCE LEAVING OAK STREET AND WITH THE LINE BETWEEN SAID LOT 87 AND LOT 88 S 02D 54' 00' W 106.14 FEET TO AN IRON PIN FOUND, SAID IRON PIN BEING A COMMON CORNER TO LOTS 87, LOT 88, LOT 94, AND LOT 95; THENCE WITH THE LINE BETWEEN LOT 94 AND LOT 95 S 02 D 46' 00' W 13.16 FEET TO AN IRON PIN SET; THENCE LEAVING THE LINE BETWEEN LOT 94 AND LOT 95 AND WITH A NEW LINE THROUGH LOT 94 N 81D 45' 00' W 125.11 FEET TO AN IRON PIN SET EASTERLY LINE OF REDBUD LANE (SR 1058); THENCE WITH SAID LINE OF SAID LANE ALONG A CURVE TO THE LEFT 93.37 FEET TO AN IRON PIN FOUND, SAID CURVE HAVING A RADIUS OF 1360.64 FEET, A DELTA ANGLE OF 03D 55' 45', AND A CHORD WITH BEARING AND DISTANCE OF N 15D 43' 04' E 93.29 FEET TO AN IRON PIN FOUND; THENCE CONTINUING ALONG A CURVE TO THE RIGHT 35.95 FEET TO AN IRON PIN FOUND IN THE SOUTHERLY LINE OF AFORESAID OAK STREET, SAID CURVE HAVING A RADIUS OF 25.00 FEET, A DELTA ANGLE OF 82D 23' 29', AND A CHORD WITH BEARING AND DISTANCE FO N 54D 29' 16' E 32.93



*D02375414096D0T8000VA8013100**DEAN

*

ORIGINAL

0208621

EXHIBIT A (PAGE 2)

FEET; THENCE WITH SAID LINE FO SAID STREET S 84D 19' 00' E 78.12 FEET TO THE BEGINNING AND CONTAINING 12,915.54 SQUARE FEET OR 0.296 ACRE AS SHOWN ON A PLAT DATED APRIL 22, 1999, BY W. R. PALMER, REGISTERED LAND SURVEYOR, SAID PALT TO BE RECORDED HERewith THIS DEED.

DEED BOOK 282 PAGE 453:

BEGINNING AT AN IRON PIN; THENCE N 74 DEGREES 44 MINUTES E 179.37 FEET TO A POINT; THENCE S 23 DEGREES 14 MINUTES E 155.22 FEET TO AN IRON PIN; THENCE S 71 DEGREES 51 MINUTES W 204.22 FEET TO AN IRON PIN; THENCE N 14 DEGREES 11 MINUTES W 164.06 FEET TO THE POINT OF BEGINNING, CONTAINING .70 ACRE, MORE OR LESS, AS SHOWN ON THE ATTACHED PLAT OF PART OF THE HENRY AND GLADYS CAMPBELL PROPERTY, DRAWN BY R. STANLEY TRENT, LAND SURVEYOR, DATED OCTOBER 28, 1978.

TAX MAP OR PARCEL ID NO.: 26E-(1)-87.94A ,TAX MAP OR PARCEL ID NO.: 47-(A)-56A



*D02375414096DOT8000VAB013100**DEAN

*

ORIGINAL

1800176

DATE: 01/08/2018 @02:52 PM

VIRGINIA
COUNTY/TOWN OF LEE
LOAN NO.: 418217418



TAX MAP NO. 26E-(1)-87.94A; 47-(A)-56A

PREPARED BY: FIRST AMERICAN MORTGAGE SOLUTIONS
WHEN RECORDED MAIL TO: FIRST AMERICAN MORTGAGE SOLUTIONS, 1795 INTERNATIONAL WAY, IDAHO FALLS, ID 83402, PH. 208-528-9895

NOTICE OF ASSIGNMENT OF DEED OF TRUST

FOR VALUE RECEIVED, BENEFICIAL FINANCIAL I INC., located at C/O SELECT PORTFOLIO SERVICING, INC. 3217 S. DECKER LAKE DRIVE, SALT LAKE CITY, UT 84119, Assignor, does hereby grant, assign, transfer, and set over unto DLJ MORTGAGE CAPITAL, INC., located at ELEVEN MADISON AVENUE 4TH FLOOR, NEW YORK, NY 10010, Assignee, its successors and assigns, all of Assignor's interest in that certain Deed of Trust described below:

Name of Trustor(s): SHARON E. DAUGHERTY

Trustor Surname: DAUGHERTY

Name of Original Beneficiary(s): BENEFICIAL MORTGAGE CO. OF VIRGINIA

Name of Original Trustee(s): KEITH FREELAND

Said Deed of Trust dated JUNE 29, 2002, in the amount of \$128,077.92 and recorded on JULY 09, 2002 as Instrument No. 0208602 in the Land Records of the Circuit Court for the COUNTY of LEE, State of VIRGINIA, described herein as follows:

AS DESCRIBED IN SAID DEED OF TRUST REFERRED TO HEREIN.

Property Address: 102 REDBUD LN, DRYDEN, VA 24243

TOGETHER WITH ALL RIGHTS ACCRUED OR TO ACCRUE TO SAID DEED OF TRUST.

IN WITNESS WHEREOF, the undersigned has caused this Instrument to be executed this DECEMBER 18, 2017.

BENEFICIAL FINANCIAL I INC., BY SELECT PORTFOLIO SERVICING, INC. AS ATTORNEY IN FACT

Valentin Salcedo
VALENTIN SALCEDO, ASSISTANT VICE
PRESIDENT

STATE OF IDAHO

COUNTY OF BONNEVILLE) ss.

On DECEMBER 18, 2017, before me, TREVOR HAYES, personally appeared VALENTIN SALCEDO known to me to be the ASSISTANT VICE PRESIDENT of SELECT PORTFOLIO SERVICING, INC. AS ATTORNEY-IN-FACT FOR BENEFICIAL FINANCIAL I INC. the corporation that executed the instrument or the person who executed the instrument on behalf of said corporation, and acknowledged to me that such corporation executed the same.

Trevor Hayes
TREVOR HAYES (COMMISSION EXP. 07/21/2022)
NOTARY PUBLIC

TREVOR HAYES
NOTARY PUBLIC
STATE OF IDAHO

INSTRUMENT 1800176
RECORDED IN THE CLERK'S OFFICE OF
LEE CIRCUIT COURT ON
January 8, 2018 AT 02:54 PM
RENE LAMEY, CLERK
RECORDED BY: JCK

Jean C Kirk, DC



EXAMINED
DATE ~~DEC 29~~ 1989

DEED 380 PAGE 185

THIS DEED OF SUBDIVISION AND DEDICATION AND EASEMENT is made this 17 day of November, 1989, by CROSS CREEK ESTATES, INC., a Virginia corporation, party of the first part, hereinafter referred to as "Grantor"; and, LEE COUNTY, VIRGINIA, party of the second hereinafter referred to as "County";

WITNESSETH;

WHEREAS, the Grantor is the Owner of a tract of land, being that property it acquired by Deed dated April 13, 1989, from Gateway Resources, Inc., which property is described on said Deed to be recorded immediately prior to this Deed of Dedication, and is further described on a plat of Cross Creek Estates, Inc., recorded in Plat Cabinet C-61, also recorded immediately prior to this Deed, and further by Deed dated April 20, 1989, said instrument being a Deed of Easement which is also recorded immediately prior to this Deed of Subdivision, in the Circuit Court Clerk's Office of Lee County, Virginia, in Deed Book 380 at Page 177, which properties are lying and being in the Yokum Station Magisterial District of Lee County, Virginia, which properties constitute at this time Phase I of a Subdivision known as Cross Creek Estates, all properties being shown on said plat, (hereinafter "Plat"); and

WHEREAS, it is the desire of the Grantor to dedicate

GEORGE F. CRIDLIN
ATTORNEY AT LAW
JONESVILLE, VIRGINIA 24363

to public us for street purposes those streets identified on said plat and named thereon; and

WHEREAS, it is the desire of the Grantor to create said drainage easements as set forth on the above referenced plat and identified in said Deed in compliance with the requirements of the Virginia Department of Transportation and Highways, and further having been accepted as drainage easements by Lee County, Virginia, by resolution dated July 25, 1989; and

WHEREAS, it is the desire of the Grantor to create all easements as shown on said plat and defined, for a more particular identification of the nature, type and route.

THIS DEED WITNESSETH: That for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Grantor does hereby subdivide and create the following lots and streets as shown on the aforesaid plat, and described in more detail on said plat as follows:

By Resolution dated October 30, 1989 the Lee County Subdivision Committee certifies that Phase I of the development as shown on this plat which lots are numbered Cross Creek Drive. 109, 110, 112, 27, 35, 43, 117, 122, 127, 132, 135, 138, 141, 118, 123, 128, 133, 98, 99, 100, 156

Dogwood Avenue. 3, 4, 5, 6, 7, 8, 9, 10, 15, 16, 19

Redbud Lane. 53, 62, 58, 61, 68, 75, 81, 86, 93, 87,
44
Holly Lane. 17, 18, 25, 26, 33, 34, 42, 41, 116,
49, 121, 55, 126, 131, 65, 72, 134, 137, 79, 140, 85,
143, 92, 145
Pine Street. 64, 63, 54
Poplar Street. 71, 70, 76, 77, 78, 69
Oak Street. 82, 83, 84, 88, 89, 90, 91
Mulberry Street. 94, 95, 96, 97, 103, 104
Maple Street. 107, 108

and color-coded orange, and currently served by paved streets as shown by a blue color code and described as such: Cross Creek Drive beginning on the southern right-of-way of State Route 58, traversing in a southwest direction and ending at Lot No. 108; Dogwood Avenue beginning at the intersection with Cross Creek Drive near Lot No. 10 and traversing in a westward direction and ending at the westernmost property line of Lot No. 3; Redbud Lane beginning at the northernmost property line of Lot No. 58 and traversing in a southwest direction and ending at the southernmost property line of Lot No. 93; Holly Lane beginning at the intersection with Dogwood Avenue near Lot No. 18, traversing in a southeast direction and ending at the intersection with Cross Creek Drive near Lot No. 145; Pine Street beginning at the intersection with Holly Lane

Near Lot No. 55, traversing in a westward direction and ending with the intersection with Redbud Lane near Lot No. 62; Poplar Street beginning at the intersection with Holly Lane near Lot No. 72, traversing in a westward direction and ending with the intersection with Redbud Lane near Lot No. 44; Oak Street beginning at the intersection with Holly Lane near Lot No. 85, traversing in a westward direction and ending with the intersection with Redbud lane near Lot No. 87; Mulberry Street beginning at the intersection with Cross Creek Drive near Lot No. 104, traversing in a westward direction and ending with the intersection with Redbud Lane near Lot No. 93 also a point of ending of Redbud Lane; Maple Street beginning at the intersection with Cross Creek Drive also being a point on ending of Cross Creek Drive, traversing in a westward direction and ending approximately 100 feet beyond the westernmost property line of Lot No. 107, and no other lots or area of this plat, conforms to the Subdivision Ordinance of Lee County, Virginia and is approved for recordation subject to the conditions set forth by V.D.O.T. for street approval.

This subdivision is made with the consent and approval of the authorities of Lee County, Virginia, as evidenced by the signatures set forth on the attached and incorporated plat. The platting and dedication of the aforementioned lots are with the free consent and in accordance with the

desire of the undersigned Owner and Grantor as evidenced by the signatures set forth below.

THIS DEED FURTHER WITNESSETH: That for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, Grantor does hereby grant, bargain, and convey to the county and dedicate for public street purposes that portion of the property set forth on the attached Plat and incorporated plat as above identified and said streets are shown and set forth on said plat for particular reference as to their distance, route and description. Said dedication is made with the consent and approval of the appropriate authority of Lee County as evidenced by the signatures set forth on the attached and incorporated plat. The dedication of this right of way is with the free consent and in accordance with the desire of the undersigned Owners as evidenced by the signatures set forth below.

THIS DEED FURTHER WITNESSETH: That for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, Grantor does hereby create, bargain, sell and convey to the County the following easements as said easements are set forth on the attached and incorporated plat, and identified as follows:

Drainage easements reserved for the drainage, and maintenance of said drainageway, into a sinkhole located on the right side of Road A and more particularly described as follows:

GEORGE F. CRIDLIN
ATTORNEY AT LAW
JONESVILLE, VIRGINIA 22023

EASEMENT #1: Beginning at point 25' to the right of the centerline of Road "A" at Station 17 + 49; thence S 7 degrees 53' 45" E, 111.00' along the right of way line of Road "A"; thence N 65 degrees 56' 48" W, 47.95'; thence N 1 degree 39' 37" E, 69.03; thence N 69 degrees 25' 45" E, 60.92 to the point of beginning, containing .103 acres, more or less.

There shall also be a drainage easement reserved from the drainage, and maintenance of said drainageway, into a sinkhole located on the left side of Road "A" and more particularly described as follows:

Beginning at point 25' to the left of the centerline of Road "A" at Station 33 + 63; thence S 25 degrees 52' 06" W, 221.10' along the right of way of Road "A"; thence S 69 degrees 20' 08" E, 191.58'; thence N 16 degrees 21' 09" E, 174.04; thence N 54 degrees 40' 34" W, 161.37' to the point of beginning, containing .784 acres, more or less.

EASEMENT #2: BEGINNING at the western edge of a 50 foot right of way conveyed by the party of the first part to the party of the second part; thence N 64 degrees 58' 06" W 62.10 feet; thence S 31 degrees 30' 15" W 72.72 feet; thence S 66 degrees 58' 28" W 173.85 feet; thence S 0 degrees 00' 00" W 75.00 feet; thence S 71 degrees 34' 59" E 132.26 feet; thence along said 50 foot right of way to the point of BEGINNING.

And being drainage easements as above identified and in general drainage easements along a road as further described in Deed Book 362 at Page 607.

EASEMENT #3: A drainage easement reserved for the drainage, and maintenance of said drainageway, and designated as Sink Hole #1 and Sink Hole #2, as shown on a plat of Clifford A. Parsons, which plat is recorded in Deed Book 374 at Page 410.

This conveyance is made with the approval and consent of Lee County as evidenced by the signatures and stamps set out on the attached and incorporated plat, and by resolution dated July 25, 1989.

Said easements being SUBJECT to the following conditions:

GEORGE F. CRIDEN
ATTORNEY AT LAW
JONESVILLE, VIRGINIA 22024

1. The County and its agents shall have full and free use of the said easements for the purposes named, and shall have all rights and privileges reasonably necessary to the exercise of the easements, including the right to use abutting land adjoining the easements where necessary; provided, however, that this right to use abutting land shall be exercised only during periods of actual construction or maintenance, and then only to the minimum extent necessary for such construction or maintenance, and further, this right shall not be construed to allow the County to erect any building or structure of a permanent nature on such abutting land.

2. The County shall have the right to trim, cut, and remove trees, shrubbery, fences, structures, or other natural obstructions or facilities in or near the easements being conveyed, deemed by it to interfere with the proper and efficient construction, operation and maintenance of said facilities.

3. Grantor, its successors and assigns reserve the right to make any use of the easements herein granted which may not be inconsistent with the rights herein conveyed or interfere with the use of said easements for the purposes named; provided, however, that Grantor, its successors and assigns shall not erect any building or other structure,

including fencing, on the easements granted to the County without obtaining the prior written approval of the County.

THIS DEED FURTHER WITNESSETH, that declarations or restrictions of even date herewith to be recorded immediately prior to this Deed of Subdivision and Easement are hereby dedicated and to made apart and incorporated by reference as encumbering, all lots in the subdivision hereinafter to be sold.

WITNESS the following signatures and seals:

CROSS CREEK ESTATES, INC.

 (SEAL)
Cecil J. Horne, President

STATE OF VIRGINIA

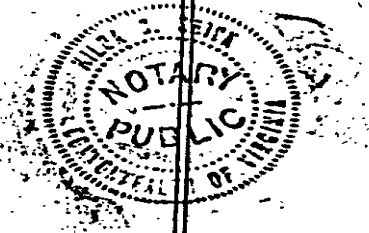
COUNTY OF LEE, to-wit:

I, the undersigned, a Notary Public of and for the County and State aforesaid do hereby certify that Cecil J. Horne, President of Cross Creek Estates, Inc., whose name is signed to the foregoing Deed of Subdivision, Dedication and Easement dated November 17, 1989, has acknowledged the same before me in my County and State aforesaid.

Given under my hand this the 17th day of November, 1989.

My Commission expires: April 12, 1991.

Willard B. Orisk
NOTARY PUBLIC



Virginia, Lee County, with:
In the Clerk's Office of Lee
County, the 20th day of Nov, 1989
presented and together with me
and indexed.

2:48 P.M. on the
20th day of Nov, 1989
at Lee, Dedication & Settlement
the above named, admitted to record

Charles Patton.....Clerk
by Charles Patton.....D. Clerk

See plat slide C-41
Deed Book 380 - p 8180
Charles Patton
clerk

GEORGE F. CRIDLIN
ATTORNEY AT LAW
JONESVILLE VIRGINIA 22093

EXAMINED
DATE DEC. 29 1989

BOOK 380 PAGE 194

DECLARATION OF RESTRICTIONS

THIS DECLARATION, made this 17th day of November, 1989,
by CROSS CREEK ESTATE, INC., herein referred to as "Declarant",

W I T N E S S E T H :

WHEREAS, Declarant is the owner of all the real property set forth and described on that certain plat (herein called "the plat") entitled "Cross Creek Estates", which plat is to be recorded herewith in the Circuit Court of Lee County and is made a part hereof and incorporated herein by reference; and

WHEREAS, there are subdivided numbered lots set forth and described in the recorded plat, which numbered lots comprise in the aggregate Phase I, and further that there are other areas described in said plat which are numbered and comprise Phase II which shall be developed by Declarant; and

WHEREAS, Declarant is about to sell and convey said lots and before doing so desires to subject them to and impose upon them mutual and beneficial restriction, covenants, conditions and charges, hereinafter collectively referred to as "Restrictions", under a general plan or scheme of improvement for the benefit and complement of all of the lots in the Subdivision, and the future owners of said lots;

NOW THEREFORE, Declarant hereby declares that all of said lots are held, conveyed, hypothecated or encumbered, leased, rented, used, occupied, and improved, subject to the following Restrictions, all of which are declared and agreed to be in furtherance of a plan for the subdivision, improvement and sale of

RECORDED
JUL 15 1950
380 PAGE 195

said lots and are established and agreed upon the purpose of enhancing and protecting the value, desirability and attractiveness of the property described in the plat and of the Subdivision as a whole. All of the Restrictions shall run with the land and shall be binding on all parties having or acquiring any right, title or interest in and to the real property or any part or parts thereof subject to such Restrictions.

1. Definitions

A. "Properties" shall mean and refer to that certain real property as shown on said plat as subdivided numbered lots and such additions thereto as may hereafter be brought within the jurisdiction of the association.

B. "Lots" shall mean and refer to any separately identifiable plot of land shown on any recorded subdivision plat of the Properties, and upon which one residential unit may be, is being, or has been built, but shall not include all or any part of the Common Area.

C. "Member" shall mean and refer to every owner, or an immediate member of an owner's family.

D. "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of a fee simple title to any Lot which is part of the Properties, including contract sellers, but excluding purchasers who have not yet taken title, and further those holding such interest solely as security for the performance of an obligation. In the case where any lot is held by one or more persons for life with remainder to another or

others, the term "Owner" shall mean and refer only to such life tenant or tenants until such time as the remainderman or remaindermen shall come into use, possession and enjoyment of such lot.

2. Applicability

A. These Restrictions shall apply to subdivided numbered lots and streets only, which have been approved for sale on a plat approved by the Lee County Subdivision Committee, designated as follows:

PLAT LEGEND, PHASE I DEVELOPMENT

"RESOLUTION OF PLAT APPROVAL

By Resolution dated October 30, 1989 the Lee County Subdivision Committee certifies that Phase I of the development as shown on this plat which lots are numbered

Cross Creek Drive. 109, 110, 112, 27, 35, 43, 117, 122, 127, 132, 135, 138, 141, 118, 123, 128, 133, 98, 99, 100, 156

Dogwood Avenue. 3, 4, 5, 6, 7, 8, 9, 10, 15, 16, 19

Redbud Lane. 53, 62, 58, 61, 68, 75, 81, 86, 93, 87, 44

Holly Lane. 17, 18, 25, 26, 33, 34, 42, 41, 116, 49, 121, 55, 126, 131, 65, 72, 134, 137, 79, 140, 85, 143, 92, 145

Pine Street. 64, 63, 54

Poplar Street. 71, 70, 76, 77, 78, 69

Oak Street. 82, 83, 84, 88, 89, 90, 91

Mulberry Street. 94, 95, 96, 97, 103, 104

Maple Street. 107, 108

and color-coded orange, and currently served by paved streets as shown by a blue color code and described as such: Cross Creek Drive beginning on the southern right-of-way of State Route 58, traversing in a southwest direction and ending at Lot No. 108; Dogwood Avenue beginning at the intersection with Cross Creek Drive near Lot No. 10 and traversing in a westward direction and ending at the westernmost property line of Lot No. 3; Redbud Lane beginning at the northernmost property line of Lot No. 58 and traversing in a southwest direction and ending at the southernmost property line of Lot No. 93; Holly Lane beginning at the intersection with Dogwood Avenue near Lot No. 18, traversing in a southeast direction and ending at the intersection with Cross Creek Drive near Lot No. 145; Pine Street beginning at the intersection with Holly Lane Near Lot No. 55, traversing in a westward direction and ending with the intersection with Redbud Lane near Lot No. 62; Poplar Street beginning at the intersection with Holly Lane near Lot No. 72, traversing in a westward direction and ending with the intersection with Redbud Lane near Lot No. 44; Oak Street beginning at the intersection with Holly Lane near Lot No. 85, traversing in a westward direction and ending with the intersection with Redbud lane near Lot No. 87; Mulberry Street beginning at the intersection with Cross Creek Drive near Lot No. 104, traversing in a westward direction and ending with the intersection with Redbud Lane near Lot No. 93 also a point of ending of Redbud Lane; Maple Street beginning at the intersection with Cross Creek Drive also being a

point on ending of Cross Creek Drive, traversing in a westward direction and ending approximately 100 feet beyond the westernmost property line of Lot No. 107, and no other lots or area of this plat, conforms to the Subdivision Ordinance of Lee County, Virginia and is approved for recordation subject to the conditions set forth by V.D.O.T. for street approval.

Jack Collins /s/
Lee County Subdivision Committee

Denver R. Browning /s/

James J. Thomas /s/

3. Mutuality of Benefit and Obligation

A. The Restrictions and agreements set forth herein are made for the mutual and reciprocal benefit of each and every lot in Phase I of the Subdivision, as described in paragraph 2 A above, and are intended to create mutual, equitable servitudes upon each of said lots in favor of each and all of the other lots herein; to create reciprocal rights between the respective owners of all said lots; to create a privity of contract and estate between the grantees of said lots, their heirs, successors or assigns, operate as covenants running with the land for the benefit of each and all other lots in the Subdivision and their respective owners. Restrictions substantially the same as those contained herein shall be recorded on other phases as approved in conformity with the general scheme of improvement of all lands to be included therein.

4. Exclusive Residential Use and Improvements

A. No lot shall be used except for residential purposes. No structures shall be erected, placed or permitted to remain on any lot other than one (1) detached, single family residence dwelling. A storage building, carport, or garage if any may be erected only after approval by the appropriate committee.

5. Environmental Control Committee

A. All plans and specifications for any structure or improvement whatsoever to be erected on or moved upon or to any lot, and the proposed location thereof on any lot or lots, the construction material, the roofs and exterior color schemes, any later changes or additions after initial approval thereof and any remodeling, reconstruction, alterations, or additions thereto on any lot shall be subject to and shall require the approval in writing before any such work is commenced of the Environmental Control Committee (herein called "Committee"), as the same is from time to time composed.

B. The Committee shall be composed of three (3) members to be appointed by Declarant. One member may be the building inspector for Lee County. Other committee members shall be subject to removal by Declarant and any vacancies from time to time existing shall be filled by appointment of Declarant, provided, however, that at any time hereafter the Declarant may, at its sole option relinquish to the Board of Directors of the Homeowners Association, if one be formed. The power of appointment and removal reserved herein to the Declarant. Such transfer of power

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must be evidenced in writing.

C. There shall be submitted to the Committee two (2) complete sets of plans and specifications for any and all proposed improvements, the erection or alteration of which is desired, and no structures or improvement of any kind shall be erected, altered, placed or maintained upon any lot unless and until the final plans, elevations, and specifications therefor have received such written approval as herein provided. Such plans shall include plot plans showing the location on the lot of the building, wall, fence, or other structure proposed to be constructed, altered, placed or maintained, together with the proposed construction material, and proposed landscape planting. At the discretion of the Committee, a filing fee of \$_____ shall accompany the submission of such plans to defray Committee expenses. No additional fee shall be required for resubmission of plans revised in accordance with Committee recommendations.

D. The Committee shall approve or disapprove plans, specifications and details within thirty (30) days from the receipt thereof. One (1) set of said plans and specifications and details with the approval or disapproval endorsed thereon, shall be returned to the person submitting them and the other copy thereof shall be retained by the Committee for its permanent files.

E. The Committee shall have the right to disapprove any plans, specifications or details submitted to it in the event the same are not in accordance with all of the provisions of these Restrictions; if any design or color scheme of the proposed

building or other structure is not in harmony with the general surroundings of such lot or with the adjacent buildings or structures; if the plans and specifications submitted are incomplete; or in the event the Committee deems the plans, specifications or details, or any part thereof, to be contrary to the interests, welfare or rights of all or any part of the real property subject hereto, or the owners thereof. The decisions of the Committee shall be final.

F. Neither the Committee nor any architect or agent thereof or of Declarant shall be responsible in any way for any defects in any plans or specifications submitted, revised or approved in accordance with the foregoing provisions, nor for any structural or other defects in any work done according to such plans and specifications.

6. Size and Placement of Residences and Structures

A. Every residence dwelling constructed on a lot shall contain nine hundred (900) minimum square feet of fully enclosed floor area devoted to living purposes (exclusive of roofed or unroofed porches, terraces, garages, carports and other outbuildings).

B. Each dwelling shall be a single story construction; provided, however, the split level or two story residences may be constructed on lots where, in the opinion of the Committee, the terrain of such lot lends itself to such construction.

C. The Committee shall have the authority to set up regulations as to the height and size requirements for all other

types of buildings, and structures, including fences, walls, copings, etc.

D. In order to preserve the natural quality and aesthetic appearance of the existing geographic areas within the Subdivision, all property lines shall be kept free and open one to another and no fences shall be permitted on any lot or lines except where, in the opinion of the Committee, a fence of other enclosure, as a structure or aesthetic feature of a design concept, will contribute to and be in keeping with the character of the area.

E. Except as may be otherwise shown on the plat, the following minimum dimensions shall govern the front, side and rear setbacks on all lots (except fences or walls where approved or required by the Committee), with respect to any dwelling house or above grade structure that may be constructed or placed on any lot in the Subdivision.

(a) Twenty-five (25) feet from the front line of each lot abutting a street, and

(b) Seven (7) feet from each lot side line.

7. Particular Rules for Application of Setback Requirements

A. If the line with respect to which a setback measurement is to be made is a meandering line, the average length of the two lot lines that intersect said meandering line shall be determined, and using the average length, an imaginary straight line shall be drawn through the meandering line and the setback measurement shall be made along a line perpendicular to such imaginary line.

B. The term "side line" defines a lot boundary line that extends from the street on which the lot abuts to the rear line of the lot.

C. The term "rear lot line" defines the boundary line of the lot that is farthest from, and substantially parallel to, the line of the street on which the lot abuts, except that on corner lots it may be determined from either street line.

D. A corner lot shall be deemed to have a front line on each street on which the lot abuts, and such lot need only one rear line.

8. General Prohibitions and Requirements

A. The following general prohibitions and requirements shall prevail as to the construction or activities conducted on any lot in the Subdivision:

(a) No outside toilet or individual water well shall be constructed on any lot. All plumbing fixtures, dishwashers, toilets or sewage disposal systems shall be connected to the sewage system constructed by the Declarant or its assigns.

(b) No temporary house, trailer, tent, garage, or other outbuilding shall be placed or erected on any lot, provided, however, that the Committee may grant permission for any such temporary structure for storage of materials during construction. No such temporary structures as may be approved shall be used at any time as a dwelling place.

(c) Once construction of improvements started on any lot, the improvements must be substantially completed in accordance with

plans and specifications, as approved, within six (6) months from commencement.

(d) No residence shall be occupied until the same has been substantially completed in accordance with its plans and specifications, and occupancy permit obtained.

(e) All structures constructed or placed on any lot shall be constructed with a substantial quantity of new material and no used structures shall be relocated or placed on any such lot.

(f) All signs, billboards, or advertising structures of any kind are prohibited except upon application to and written permission from the Committee.

(g) No stripped down, partially wrecked, or junk motor vehicle, or sizable part thereof, nor any vehicle or motorcycle which may not lawfully be operated in the Commonwealth of Virginia shall be permitted to be parked, or operated on any street in the Subdivision or on any lot in such manner as to be visible to the occupants of other lots within the Subdivision or to the users of any street.

(h) Every tank for the storage of fuel installed outside any building in the Subdivision shall be either buried below the surface of the ground or screened to the satisfaction of the Committee by fencing or shrubbery. Every outdoor receptacle for ashes, trash, rubbish or garbage shall be installed underground, screened or so placed and kept as not to be visible from any street except during refuse collections.

(i) All outdoor clothes poles, clothes lines and similar equipment shall be so placed or screened by shrubbery as not to be visible from any street within the Subdivision.

(j) All lots, whether occupied or unoccupied, and any improvements place thereon, shall at all times be maintained in such manner as to prevent their becoming unsightly by reason of unattractive growth on such lot or the accumulation of rubbish or debris thereon.

(k) No noxious, offensive or illegal activities shall be or become an unreasonable annoyance or nuisance to the neighborhood.

(l) No oil or natural gas drilling, refining, quarrying, or mining operations of any kind shall be permitted upon or in any lot and no derrick or other structure designed for use in boring for oil or natural gas shall be erected, maintained or permitted on any lot.

(m) No vehicle shall be parked on any street in the Subdivision. No commercial truck shall be parked for storage overnight or longer, on any lot in the Subdivision in such a manner as to be visible to the occupants of other lots in the Subdivision or the users of any street.

(n) Any dwelling or outbuilding on any lot in the Subdivision which may be destroyed in whole or in part by fire, windstorm or for any other cause or act of God must be rebuilt or all debris removed and the lot restored to a sightly condition with reasonable promptness, provided, however, that in no event shall

such debris remain longer than six (6) months.

(c) No radio station or shortwave operators of any kind shall operate from any lot or residence. No exterior television or radio antenna or satellite dish of any kind shall be constructed or erected on any lot or residence after such time as a central television system has been made available to the Subdivision at rates commensurate with those prevailing in the area.

(p) No trash, ashes, garbage or other refuse shall be dumped or stored or accumulated on any lot in the Subdivision. No outside burning of wood, leaves, trash, garbage or household refuse shall be permitted. Each resident or lot owner shall be responsible for removing said trash from the Subdivision. In order to enhance the appearance and orderliness of the Subdivision, the Declarant hereby reserves for itself, its successors and assigns, the exclusive right to operate, or from time to time to grant an exclusive license to a third party to operate a commercial scavenging service within the Subdivision for the purpose of removing garbage, trash and other like household refuse. The charge to be made for such refuse collection and removal service shall be at a reasonable rate commensurate with the rates charged by commercial scavengers serving other subdivisions of high standards in the area, and shall be subject to change from time to time.

(q) There shall be no access to any lot on the perimeter of the Subdivision except from designated roads within the Subdivision.

(r) Invalidation of any one of these covenants by judgment or court order shall in no wise effect any of the other provisions, which shall remain in full force and effect.

(s) No lot or portion of a lot may be used, deeded, leased, or otherwise conveyed for the purpose of gaining vehicular right-of-way access to adjacent properties unless approved in writing by the grantors of Cross Creek Estates or to whomever their powers are delegated.

(t) No business, commercial, single wide mobile home, amusement, apartment house, hospital, clubhouse, school, religious or manufacturing use shall be allowed on any lot located within the Subdivision, nor may any lot be utilized for a commercial purpose.

(u) No accessory uses such as camper trailer, house trailers, boats or automobiles shall be parked in the front lawn or front yard space of any lot.

(v) No horses, mules, ponies, donkeys, burros, cattle, sheep, goats, swine, rodents, reptiles, pigeons, pheasants, game birds, game fowl, poultry or guineas, or wild game or livestock shall be kept on the premises of any lot. Dogs, cats and other household pets that are of such nature that do not interfere with the safety and comfort of adjoining property owners may be kept on an individual lot provided they are not used in a commercial manner and are properly restrained, fenced and cared for at all times.

(w) No garbage, refuse, or obnoxious or offensive material shall be permitted to accumulate on any lot and the owner of each lot shall dispose of his garbage and other like material

in appropriate sanitary means. Owner shall comply with any county ordinance regarding waste disposal, or transport such garbage to a designated area within the subdivision once it is designated.

(x) Radio aerials, playground equipment and other such uses shall be erected so as to not present a hazard to neighboring property and be so situated as to not be distracting to the neighborhood.

(y) Perpetual easements are reserved in the Subdivision as shown on the recorded plat, including easements for public utility installation, maintenance and drainage.

(z) No lot shall be resubdivided to create two building lots.

(aa) Only one accessory outbuilding shall be located on said lot. The outbuilding shall be constructed to completion including finishing or exterior surfaces of new materials and in no case be closer than seven (7) feet to any lot line and shall not be larger in area than 150 square feet excepting that one garage either single or double may be provided on the individual lot in conjunction with or separate from one accessory building. In no case shall the garage extend closer than seven (7) feet to any lot line, nor shall any accessory building or garage be allowed in the front yard of the lot. The front yard of the lot shall be considered all land area between the street line and the building line.

(bb) Landscaping of lots shall be commenced within six months or construction completion and every lot owner and building

shall prevent soil erosion during construction.

(cc) All development and construction shall of course be approved by all State or Federal agencies, including the Lee County ordinances, and directions of the county building inspector.

(dd) Water and sewer charges shall be assured for each homeowner and paid to the appropriate agency including Dryden Water Authority or its assigns and the Development or its assigns for sewer charges.

(ee) All properties shall have lawns planted, regularly mowed and regularly remove trash, brush, leaves, clippings, etc. Failure to do so shall be deemed to delegate the declarant to do this at the owners expense.

9. Variances

A. The Committee may allow reasonable variances and adjustments of these Restrictions in order to overcome practical difficulties and prevent unnecessary hardships in the application of the provisions contained herein; provided, however, that such is done in conformity with the intent and purposes hereof and provided also that in every instance such variance or adjustment will not be materially detrimental or injurious to other property or improvements in the neighborhood, or the Subdivision.

10. Easements

A. Declarant reserves for itself, its successors and assigns, for purposes incident to its development of the real property subject to these Restrictions, the following easements and/or rights-of-way:

(a) For the use and maintenance of drainage courses of all kinds designated on the plat as "Drainage Easements". These easements are specified on the recorded deeds and plats and are centered about the existing drainage channels, in accordance with Lee County and state requirements and acceptance.

(b) For maintenance and permanent stabilization control of slopes in the slope-control areas as set forth in the note regarding slope easements on the plat.

B. Declarant has dedicated, the appropriate utility and telephone company or companies rights-of-way and easement areas for the installation and maintenance of public utilities over certain areas along side and rear property lines, as shown on attached plat.

C. Declarant reserves for itself, its successors or assigns an exclusive easement for the installation and maintenance of radio and television transmission cables, water, sewer, and telephone lines, within the rights-of-way and easement areas reserved and defined in paragraph 10 B above.

D. On each lot, the rights-of-way and easement areas reserved by Declarant or dedicated to public utilities purposes shall be maintained continuously by the owner but no structures, plantings or other material shall be placed or permitted to remain or other activities undertaken which damage or interfere with the installation or maintenance of utilities, which may change the direction of flow of drainage channels in the easements, which may obstruct or retard the flow of water through the drainage channels

in the easements, or which damage or interfere with established slope ratios or create erosion or sliding problems, provided, however, that where the existing location of a drainage channel may be relocated as shown on the recorded plat by drainage arrows, provided such relocation does not cause an encroachment on any other lot in the Subdivision. Improvements within such areas shall also be maintained by the respective lot owner except for those for which a public authority or utility company is responsible.

E. The lots in the Subdivision shall be burdened by such additional easements as may be shown on recorded plats.

F. Declarant reserves for itself, its successors and assigns, an exclusive easement for the installation and maintenance of a sewage disposal system, and water lines.

11. Ownership, Use and Enjoyment of Common Areas

A. Each of the areas in the Subdivision designated on the plat as a Common Area, if any be so designated within the Subdivision is a private facility or amenity and neither Declarant's execution or recording of the plat nor any other act of Declarant with respect to the plat is, or is intended to be, or shall be construed as a dedication to the public of any said facilities and amenities. An easement for the use and enjoyment of each of said areas is reserved to Declarant, its successors and assigns, to the persons who are from time to time owners of the Cross Creek Estates property, their successors and assigns and to the invitees of all the aforementioned persons.

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B. The ownership of the Common Areas within the Subdivision shall be in Declarant or its successors and assigns and the use and enjoyment thereof shall be of such terms and conditions as Declarant, its successors and assigns shall from time to time license, provided, however, that all of such areas shall be available to the Cross Creek Estates homeowners.

12. Charges for Sewage Disposal Service and Water Purchase

A. Every owner (legal or equitable) of a lot in the Subdivision shall be conclusively presumed to have covenanted, by acquiring title to his lot (regardless of the means of such title acquisition) to pay charges for sewage disposal service and the purchase of water as established by the Declaration of Restrictions for its assigns.

13. Remedies

A. Any party to whose benefit these Restrictions inure may proceed at law or in equity to prevent the occurrence, continuation or violation of any of these restrictions and the court in any such action may award the successful party reasonable expenses in prosecuting such action, including attorney's fees.

B. The remedies hereby specified are cumulative, and this specification of them shall not be taken to preclude an aggrieved party's resort to any other remedy at law, in equity, or under any statute. No delay or failure on the part of an aggrieved party to invoke an available remedy in respect of a violation of any of these Restrictions shall be held to be a waiver by that party of (or an estoppel of that party to assert) any right available to him

upon the recurrence or continuation of said violation or the occurrence of a different violation.

14. Grantee's Acceptance

A. The grantee of any lot subject to the coverage of this Declaration, of acceptance of a deed conveying title thereto, or the execution of a contract for the purchase thereof, whether from Declarant or a subsequent owner of such lot, shall accept such deed or contract upon and subject to each and all of these Restrictions and the agreements herein contained, and also the jurisdiction, rights and powers of Declarant, and by such acceptance shall for himself, his heirs, personal representatives, successors and assigns, covenant, consent and agree to and with Declarant, and to and with the grantees and subsequent owners of each of the lots within the Subdivision to keep observe, comply with and perform said Restrictions and agreements.

B. Each such grantee also agrees, by such acceptance, to assume, as against Declarant, its successors or assigns, all of the risks and hazards of ownership or occupancy attendant to such lot.

C. Each such grantee whose lots are adjacent to available underground electrical service also agrees to complete the underground secondary electrical service shall be made by Powell Valley Electric, its successors and assigns, who will be paid by the owners at established rates for underground service on file with and approved by the Virginia State Corporation Commission, such payments to be made prior to the service being extended.

15. Severability

A. Every one of the Restrictions is hereby declared to be independent of , and severable from, the rest of the Restrictions and of and from every other one of the Restrictions and of and from every combination of the Restrictions. Therefore, if any of the Restrictions shall be held to be invalid or to be unenforceable or to lack the quality of running with the land, that holding shall be without effect upon the validity, enforceability, or "running" quality of any other one of the Restrictions.

16. Captions

A. The underlined captions preceding the various paragraph and subparagraphs of these Restrictions are for convenience of reference only, and none of them shall be used as an aid to the construction of any provision of the Restrictions. Wherever and whenever applicable, the singular form of any word shall be taken to mean or apply to the plural, and the masculine form shall be taken to mean or apply to the feminine or to the neuter.

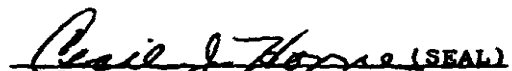
17. Term

A. The covenants and restrictions of this Declaration shall run with and bind the land, and shall inure to the benefit of and be enforceable by the Association, the declarant, or the Owner of any other lot subject to this Declaration, their respective legal representatives, heirs, successors, and assigns, for a term of twenty (20) years from the date this Declaration is recorded, after which time said covenants shall be automatically

extended for successive periods of ten (10) years. The covenants and restrictions of this Declaration may be amended during the first twenty (20) year period by an instrument signed by the Owners of not less than ninety percent (90%) of the lots, and thereafter by an instrument signed by the Owners of not less than seventy-five (75%) of the lots. Any amendment must be properly recorded.

18. Non-Discrimination

A. Any person, when he becomes an Owner, agrees that neither he nor anyone authorized to act for him will refuse to sell or rent, after the making of a bona fide offer, or refuse to negotiate for the sale or rental of, or to otherwise make unavailable or deny any of the property owned by him in Cross Creek Estates to any person because of race, color, religion, sex or national origin. Any restrictive covenant affecting Cross Creek Estates relating to race, color, religion, sex or national origin which is inconsistent with this Section is recognized as being illegal and void and is specifically disclaimed.

 (SEAL)
Cross Creek Estates Inc.
By: Cecil J. Horne, President

RECORDED
6571 05 11 1989

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STATE OF Virginia,
COUNTY OF Lee, to-wit:

The foregoing instrument was acknowledged before me this 17th
day of November, 1989, by Cecil R. Hume.

Nilda B. Ornd
NOTARY PUBLIC

My Commission Expires: April 12, 1991.



See Plat Slide C-61

Notary Lee County, to-wit:
In the Clerk's Office of Lee
the 20th day of Nov, 1989.
presented and together with the
of indexed.
2:54 P.M. on the
Declaration.....Wt
presented, admitted to rec:
Teste: Charles Dalton.....Clerk
By: John E. [Signature].....D. Cler'